

Rules for Bank Accounts

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Important Note:

- 1- Arabic shall be the language used in construing these Rules.
2. Please refer to SAMA's website (www.sama.gov.sa) for the last updated and amended version of the Rules.



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Chapter I. Definitions

The following terms and phrases, wherever mentioned herein, shall have the meanings assigned thereto unless the context otherwise requires:

1. SAMA:

The Saudi Central Bank

2. Rules:

Rules for Bank Accounts.

3. Bank Account:

An accounting record maintained by a bank licensed to operate in Saudi Arabia. Such a record is generated under a contract called "Account Opening Agreement" between the bank and the account holder (the Customer) or its representative. The Agreement sets out the rights and obligations of each party including accounting entries posted by the bank in accordance with the applicable regulations and the acceptable rules and practices agreed upon under the account opening agreement, other agreements signed by the two parties, and other instructions given by the account holder to the bank.

4. Freezing of Account:

A temporary suspension of withdrawal/transfer or the like from a bank account/relationship due to the expiration of the customer's ID; non update by the customer or his representative of KYC data or violation of any provision of the Account Opening Agreement.

5. Bank Verification:

Placing the bank official stamp or the like in addition to the bank employee signature and stamp on a copy of a document or ID card to confirm that it is a copy of the original.

6. Special Purposes Entities

Entities established and licensed under Rules for Special Purposes Entities, issued by the Capital Market Authority.

7. Government Entities:

Government entities, public institutions, authorities, funds and the like, whether they have appropriations in the State general budget or not.

8. Foreign Schools:

Schools licensed by the Ministry of Education that apply non-Saudi curriculum and are subject to the Regulation for Foreign Schools in Saudi Arabia. They are different from educational institutions of foreign embassies.

9. International Multilateral Organizations:

International organizations in Saudi Arabia that exist under a headquarters agreement (license), signed by Saudi government, such as the Muslim World League, World Assembly of Muslim Youth and the like.

10. Chambers of Commerce and Industry:

Non-profit organizations that represent commercial and industrial interests before public entities and protect and develop such interests. They have their own Boards of Directors.

11. Freelancer:

A self-employed person (who gets paid per hour, day, or work) rather than working for an employer in exchange for a monthly salary.

12. Minor:

A male or female under the age of 18 Hijri years.

13. Curator:

A person appointed by a Guardianship Deed issued by the competent courts to be a guardian of a minor.

14. Guardian:

The father of a minor or a person appointed by the court under a Guardianship Deed.

15. Custodial Person:

A person appointed by the court under a Custody Deed authorizing him/her to receive the allowances provided by public or private entities to a child in his/her custody.

16. Legally Incompetent Person:

A person not allowed to manage his/her money under a court deed that proves the lack or loss of mental capacity.

17. Private Associations and Foundations:

Associations and foundations as defined in the Civil Associations and Foundations Law.

18. Philanthropic/Charitable Committees:

Committees licensed by local government entities to serve the public, such as Patients' Friends Committee and Disabled Persons Committee and the like.

19. National Societies and Committees:

Societies and committees established pursuant to a royal approval or a resolution by the Council of Ministers to perform specialized roles to serve the public interests.

20. Cooperative Associations and Funds:

-Cooperative associations:

An associations formed by individuals in accordance with the provisions of the Law of Cooperative Associations to improve the social and economic conditions of its members in production, consumption, marketing or services through the joint efforts of the members using cooperative principles.

-Cooperative funds:

Funds established by the employees of a government agency or a company in accordance with the provisions of Cooperative Funds. The source of funding is member

contributions. Such funding is mainly used to cover social, cultural and sport activities of the Fund's members.

21. Foreign Endowment:

Endowment for specific Saudi individuals or Saudi charities inside Saudi Arabia owned by natural or juristic non-Saudi persons with one or more Saudi legal agents.

22. Escrow Account for Real Estate Development – Off-plan Unit Sale Project:

A bank account for off-plan unit sale or lease project in which amounts paid by buyers and financiers are deposited.

23. Scientific Societies:

Societies established in Saudi universities under their direct management and supervision in accordance with the Rules for Scientific Societies in Saudi universities.

24. Professional Associations:

Juristic and financially independent associations established to improve specific professions and work under the supervision of a government entity authorized to do so.

Chapter II. Supervisory Rules and Controls

1. Electronic Record:

For the purpose of setting up a unified electronic database for bank accounts, all banks shall establish an electronic registration system in accordance with the classification set forth in Appendix (C) and its updates and based on the information provided in the approved IDs. This system serves as an electronic record, and should include the requirements provided in the paragraphs below as well as the detailed requirements provided in Chapters III and IV herein, as a basis for opening, operating, and following up bank accounts.

1.1 Saudi natural persons:

- Banks must have in place an electronic record for all Saudi nationals having, as a minimum, the following:
 - a. The full name (first, second, third and family name) as shown in the ID.
 - b. ID number.
 - c. ID expiry date.
 - d. National address and contact information.
 - e. Employer (if any).
- Information used shall be based on the national ID, family register for minors, or birth certificate for people of special circumstances staying at housing centers of the Ministry of Human Resources and Social Development and shall be obtained from reliable sources.

1.2 GCC natural persons:

- Banks must maintain an electronic record for all GCC nationals having, as a minimum, the following:
 - a. The full name as shown in the national ID.
 - b. National ID number.
 - c. National ID expiration date.
 - d. Nationality.
 - e. Address and contact information.
 - f. employer (if any).
- Information shall be obtained from the national ID and from reliable sources.

1.3 Non-Saudi natural persons:

- Banks must maintain an electronic record for all non-Saudi natural persons having, as a minimum, the following:
 - a. The full name as in the passport or Iqama and in the same language according to the following priority (Arabic - English- Latin alphabets). If the name is in any other language, the name provided in the entry visa granted by Saudi embassies and consulates should be used.
 - b. Nationality.
 - c. Iqama No. and validity date.
 - d. National address and contact information.
 - e. Employer (if any).

- For persons holding Iqama cards with five-year validity period that is given to some tribe members, the full name, number and validity date of the card shall be written.
- No accounts may be opened for expatriates holding Saudi passports except with the approval of the Ministry of Interior through SAMA.

1.4 Juristic persons:

- Banks must maintain an electronic record for all juristic persons having, as a minimum, the following:
 - a. The official full name of the juristic person as per official documents.
 - b. Commercial register number or license number if the activity does not require a CR, (if the account is opened for the main commercial register, the main commercial register number shall be written. However, if the account is opened for a subsidiary commercial register, the subsidiary commercial register number shall be written. The main commercial register accounts shall be electronically linked with the subsidiary commercial register accounts).
 - c. The ID numbers of the owners as indicated in the last update of memorandum of association and persons authorized to manage the accounts (owners of joint stock companies are exempted from providing their ID numbers).
 - d. Signature of the person authorized to manage the account.
 - e. The national address of the juristic person.
 - f. Tax No. (if any).
 - g. Legal Entity Identifier (if any).
- For accounts opened pursuant to official approvals or applications, the reference number, date and name of body issuing such approval or making such application shall be recorded.

2. Requirements for Inspection Purposes:

Banks shall use an electronic search system to perform the routine search according to information required in the electronic records under each category. Such search shall cover all transactions, relationships, products and services offered to customers in addition to express transfers and investment deposits.

3. Freezing of Bank Accounts Upon Expiration of Identification Documents:

3.1 Freezing of bank accounts:

As a rule between banks and customers, the relationship must start and continue under valid identification documents and IDs for all transactions, whether those covered by the definition of bank account in Chapter I or other contractual relations or account-related services.

3.1.1 Saudi natural persons:

Banks must freeze all accounts held by Saudi natural persons upon the expiration of the documents provided below unless the account holder presents a renewed document or a valid ID card. A bank may verify ID renewal without requiring the customer attendance via trusted and independent source and it shall document that.

The following are the documents to be presented by Saudi customers prior to opening or maintaining a bank account:

- National ID Card: The account opened by an ID card shall be frozen after the elapse of (90) days from expiry date and shall not be re activated except after renewal.
- Family Register for Minors: An account opened for a minor under a family register shall be frozen upon the elapse of five years from the account opening date or five years from last account update. Presence of the minor is not required as the presence of his/her guardian or curator will suffice. The bank shall inform the guardian or curator, (90) calendar days prior to the minor reaching the age of (15) Hijri years, to update such account and present a valid national ID of the minor.
- Birth Certificate of Children of Special Circumstances: The account must be frozen when the minor reaches the age of (15) Hijri years and may be reactivated when he/she is issued a valid ID card or when a letter is received from the Ministry of Human Resources and Social Development requesting continuation of the account until the minor reaches (18) Hijri years.

3.1.2 Non-Saudi natural persons:

Banks shall freeze all accounts and transactions of all non-Saudi natural persons after (90) days of the expiration of the documents mentioned below. After (180) days of the expiration of the ID, the account balance shall be transferred to an unified account created by the bank for such cases. After 5 years from the date of last transaction/dealing carried out by the customer in his/her account, the balance shall be transferred to the suspense account created for unclaimed accounts and all outstanding obligations of the customer during and after this period shall be met. Also, all accounts of expatriates must be closed upon their final exit. The documents are as follows:

- National ID Card for GCC citizens.
- Iqama for expatriates.
- Diplomatic card for diplomats.

3.1.3 Juristic persons:

All banks must:

- Freeze all accounts of juristic entities after (90) days from the expiration date of the respective authorization to practice their activity (license, commercial registration, etc.) unless the customer provides a renewed authorization or any document valid for (90) days from a the responsible authority proving that it is being renewed.
- Freeze all accounts of juristic persons and organizations whose documents of opening their accounts do not contain a validity date, such as the accounts of charity and welfare societies or organizations, government accounts and licensed schools and the like upon the lapse of five years from the date of opening the account or the date of last update to the account until the account data is updated.
- Freeze the relationship with correspondent banks upon the end of the period specified in Rule (4) and until all requirements of KYC and AML/CFT are fulfilled.

- Monitor the ID validity of the directors and authorized signatories of juristic person accounts and freeze and suspend their powers to operate the account only, depending if they are Saudis or non-Saudis, until the renewal of IDs. This shall also be applicable to sole proprietorship owners.

3.2 General instructions for freezing of bank accounts:

- The bank must ensure that the account opening agreement, contractual relationships and services state that the bank has the right to freeze the account upon the expiration of the customer's ID and/or when the customer does not update his/her personal and financial data and addresses.
- The bank must notify the customer of the account freezing date at least (30) days in advance, and must have adequate processes in place to ensure the same with respect to each customer or authorized person acting on his behalf and such processes should be documented.
- A joint account with a single or joint signature must be frozen upon the expiration of the ID card of either of the account holders.
- Freezing order issued due to the expiry of identification documents other than the national ID may be lifted upon presentation of a valid national ID. However, banks shall not lift freezing order on accounts opened by a national ID if other identification document is presented.
- Natural or juristic persons shall have the right to close their own accounts or any accounts they are authorized to operate (only single transaction) that are frozen due to the expiry of IDs or failure to update their data, provided that the customer completes a form prepared by the bank for this purpose and that the procedures stated in account closure instructions are applied.
- If the request to freeze the account of an expatriate is made after his final exit from Saudi Arabia, and if the account balance is less than SAR (50,000), banks may transfer the money to the owner with the approval of the bank's compliance department, according to procedures set by the bank depending on the customers, their countries and signature checks. However, if the account balance is over SAR (50,000), the money shall only be transferred to the owner upon a request approved by the correspondent bank of the local bank or the branch of the resident foreign bank. Banks are not allowed to transfer only part of the balance. The balance shall only be transferred abroad to the account holder or the legal agent of his/her heirs upon the approval of the compliance department.
- In case an expatriate customer requests the bank to transfer the balance of his/her account immediately after his/her previous final exit and presents a visa other than the work visa, the balance exceeding SAR (50,000) may only be paid upon the approval of the compliance department after evaluating the account. If such a customer directly applies to the bank and submits a new Iqama issued under the same passport or a new passport, the frozen account shall be closed if it is still within the freezing duration, before (180) days, and a new account shall be opened for him/her and the amount shall be transferred to the new account, and thereafter he/she shall be allowed to deal on such account.

3.3 Freezing exceptions:

Banks shall not allow a customer or its authorized person to carry out transactions from his/her accounts after the expiration of his/her ID, unless upon renewal thereof or updating his/her KYC data. The following shall be exempted from freezing:

- Personal deposits or deposits received through clearing and local and international transfers, SARIE payments/ collections and salaries of employees.
- The customer existing obligations already effected by the bank with or on behalf of the customer in favor of the bank or third parties (government or non-government) before the expiration of the ID of account holder or authorized representative. Such obligations include, but are not limited to, payment of credit cards, loans, direct debit payments, standing regular instructions for payments such as payment of utility bills, letters of credit and letters of guarantee etc. These also include high risk investment transactions due to price fluctuations that are likely to inflict damages to the customer, in which case the customer would be called upon by a bank officer and given a maximum period of (60) days from the date of executing the transaction to have his ID renewed.
- Standing instructions governing Saudi account not related to outstanding obligations are allowed to continue after the freezing of the account subject to the approval of the operation manager at the bank's Head Office, for a limited number of times and for a maximum period of (180) days as of the ID's expiry date. The bank should lay down the procedures and the policies which ensure control and activation of these cases in terms of limits and number of times.
- Accounts of Saudi (male and female) diplomats, students on scholarship abroad, patients with chronic diseases staying at hospitals or other places and their accompanying family members, prisoners and the like, soon after the bank becomes aware of them, in which case they may be given (180) days from the date of expiration of ID for unlimited number of times after obtaining the approval of the bank's compliance department manager. In order to extend the period specified, an approval from the bank's CEO/general manager and the compliance department must be obtained. Banks shall contact their customers using the preferred method of contact according to their files or the procedures banks deem appropriate to encourage customers to renew their IDs.
- For the accounts of the State employees whose salaries are delivered through banks and whose accounts are frozen and are not able to present national IDs because of certain formality problem in respect therewith, they shall be allowed a 180 days' delay period after the date of expiration of their identification documents or updating due date, after presenting the official employment card or an official reference letter.

4. Updating Account Data:

Customer identification must be established at the outset of relationship. As a measure of control, banks must require all their customers to update the database of their accounts with the bank according to the cases and the periods provided in these Rules. The updating process must include the customer ID, personal information, national address, financial information including personal information of the customer's

authorized representatives/agents and information of the beneficiary of legal persons. Banks shall establish permanent procedures and policies for the updating process which shall be carried out as follows:

4.1 Updating the customer's ID:

a. Updating official identification cards and documents by type/duration.

- Identification cards and documents that are valid for less than five years shall be updated upon expiration, such as commercial register or license.
- Identification cards and documents that are valid for more than five years shall be updated every 5 years or upon expiration, whichever comes first.
- Accounts opened under official approvals or letters, such as accounts of government entities, embassies and the like and international organizations and the like, or under open-term licenses and registrations, such as accounts of private associations, foundations and schools, shall be updated every 5 years maximum.

b. Updating identity information online:

- Banks, at their discretion, may update identity information online for customers.
- Incompetent persons or the like shall not be allowed to use this service.
- Banks shall check the validity of and document the identification documents by using documents, data or information obtained from reliable and independent sources.

4.2 Updating customer information:

- a. Banks may update the customer information in any of the following cases:
 - The customer information is outdated (the period specified has ended), or there is a change in the customer information, for example, a change in the commercial entity's board of directors;
 - The customer's behavior in executing financial transactions on the account has changed.
 - The bank performs due diligence in case of ML/FT risks.
- b. Banks shall understand that official identification documents and approvals can be used to update account approvals; however, using such documents only is not sufficient to update the customer information.
- c. Accounts of correspondent banks shall be updated every three years maximum.
- d. Banks may accept updating the information of the customer via electronic banking services (e.g. online or phone banking) for those subscribing to such services, provided that the identification information is verified and documented using documents, data or information obtained from reliable and independent sources.

5. Inoperative Accounts:

Accounts, relationships and transactions shall be considered non-moving after two calendar years from the date of the last financial transaction carried out by the customer, his/her authorized representative, or his/her heirs. Inoperative accounts are divided into three types as described in this Rule. The purpose of this Rule is to keep accounts active, save the customer assets (money) that have not been used for recorded debit transactions or documented correspondences during the period specified in Article (5.2). The Rule also supports communicating with customers, returning the rights

to their owners upon request immediately after the completion of documents and necessary procedures, changing account status to abandoned if banks are unable to reach the account holder after using all methods of contact. Accounts of government entities shall be excluded from the provisions of this Rule in respect of the phase of abandoned accounts only as set forth in paragraph (5.2.4). Accounts of statutory reserve deposited by financial institutions supervised by SAMA, whose balances are not allowed to be disposed of without prior written permission from SAMA, shall also be excluded from the provisions of this Rule.

5.1 Transactions subject to this Rule:

This Rule applies to all assets (accounts, banking relationships, transactions, etc.) in cash and in-kind for natural and juristic persons which are deposited in banks operating in Saudi Arabia. Such assets include the following:

1. Inoperative current and saving accounts on which no withdrawal or other debit transactions were carried out.
2. Automatically renewed investment deposits whose owners do not visit the bank after the completion of the agreed-upon period and cannot be reached by the bank.
3. Bank transfers (SARIE, Swift, remittance membership, etc.) that have not been settled, deducted or received from the date they are made.
4. Shares, bonds and title deeds of properties pledged against banking facilities that are fully paid by their owners, but they do not contact the bank to regain their ownership.
5. Safe deposit boxes (lockers) rented by banks to customers with contracts that have not been renewed from the date of the customer's last visit, and banks were unable to reach the owners by using direct contact or other methods of contact or checking the customer's other accounts and information in the bank. SAMA instructions on safe deposit boxes shall be applicable.
6. Unpaid amounts and profits due to customers on their investments in different types of investment funds managed, or was managed, or held by the bank for customers whose investment periods have expired and their owners have not received the amounts due because they do not visit the bank to receive such amounts and profits, they do not have active accounts for the bank to deposit such amounts and profits, or they can not be reached by the bank after they have been notified in writing.
7. Prepaid services accounts, in a way that does not conflict with the Regulatory Rules for the Prepaid Payment Services.
8. Amounts on credit cards that are not used or claimed by customers.
9. Leasing finance settlement accounts.
10. Amounts held against letters of guarantee and letters of credit as of their expiry date.
11. Other amounts due to customers and the accruals related thereof.

5.2 Durations, periods and requirements for dealing with inoperative accounts:

5.2.1 Active accounts:

Accounts shall be considered active if a debit transaction is carried out by a customer or his/her legal agent before a period of (24) months is completed.

5.2.2 Dormant accounts:

Accounts shall be considered dormant after (24) calendar months from the date of the last recorded debit transaction carried out by a customer or his/her authorized agent or the last reliable and documented correspondence.

Requirements for dealing with dormant accounts:

- Activation of dormant accounts shall be subject to double supervision with higher authority, one of which includes the branch manager or the branch operation manager.
- Withdrawal and transfer transactions on a dormant account shall only be accepted in the presence of the customer (natural person), the customer's legal agent holding a deed allowing him/her to operate the account, the agent of the customer's heirs or the person authorized to operate the account if the account is for a juristic person. As an exception, fax number or e-mail address registered in the bank records shall be accepted. In addition, carrying out financial transactions using electronic services, such as online services and phone banking, shall also be accepted. The status of the account and the nature of the executed transaction shall be clear to the customer.
- Dormant accounts shall be allowed to accept all deposits, domestic and international transfers and dividends made by another person other than the account holder. The account status shall not be changed from dormant to active due to carrying out such transactions.
- This shall be applied to all customers, including those who have other active accounts. Banks are required to contact customers and inform them of the action to be taken on his/her account before completing five years if such customers have other active accounts. Customers shall also be asked to activate the account by carrying out a transaction. If the account is not activated during the specified period, the requirements of unclaimed accounts shall be applied.

5.2.3 Unclaimed accounts:

Accounts shall be considered unclaimed after completing five years (60 months), including the dormant phase, from the date of the last recorded debit transaction or reliable and documented correspondence, and the bank becoming unable to reach the customer after using all methods of contact.

Requirements for dealing with unclaimed accounts:

- Banks shall transfer the balance of the account within the month following the five-year period to the bank's suspense account created for unclaimed accounts.
- Such accounts shall be classified in the suspense account to be easy to deal with and manage according to the different communication policies and procedures and supervision aspects.
- Unclaimed accounts shall be allowed to accept all deposits, domestic and international transfers and dividends made by another person other than the account holder.
- Banks shall completely conceal the customer signature and balance from the branch screens during this phase. Supervision on such accounts shall be limited to the Head Office.

- If the customer visits the bank to activate the account or withdraw the balance, the customer may open a new account to which the outstanding balance in the bank's records can be transferred, or may receive the balance by check or bank transfer after confirming the identity of the customer; legal agent; the agent of the customer's heirs or the person authorized to manage and operate the account (as the case may be).
- Banks shall establish policies and procedures to ensure double supervision over the files of such accounts, with a supervision level higher than that applied to the other files. Banks shall also save such files separately from the other files and provide the necessary safety tools to protect the files from recordkeeping risks.
- Balances of such accounts shall be recorded as liabilities in the bank balance sheet. Banks shall not take any action regarding the balances regardless of the balance limit, the subsequent period and the account type.
- Outstanding debt obligations on such accounts shall be deducted before transferring the balance to the suspense account.
- The bank may close customer accounts whose balances are equal to (1,000) riyals and less, provided that the customer is notified a month prior to the date of closing, and notifies him when closing, document the notices and save them in his file. The bank must keep all the data of these customers and the amounts of their balances in the combined account; to hand it over to them when they go back to the bank.

5.2.4 Abandoned accounts:

Accounts shall be considered abandoned after completing the periods specified in this paragraph from the date of classifying the accounts as unclaimed, and the banks becoming unable to reach the customer after observing the account movements and his/her other transactions with the bank and using all methods of contact according to the communication policies and procedures provided in the Rules. The periods of such accounts shall be as follows:

- Unclaimed for a period of ten years (total of 15 years as of the last transaction) for current accounts, saving accounts, investment deposits, balances of deceased persons and credit amounts in credit cards.
- Unclaimed for a period of five years (total of ten years as of the last transaction) for bank transfers, safe deposit boxes, retained earnings, unpaid amounts and profits due to customers on their investments, shares; bonds and title deeds of properties pledged against banking facilities that are fully paid by their owners, but they do not contact the bank to regain their ownership, amounts held against letters of guarantee and letters of credit as of their expiry date, leasing finance settlement accounts, prepaid services accounts, and other amounts due to customers and the accruals related thereof.

Requirements for dealing with abandoned accounts:

- Banks shall change the account status to abandoned within the month following the completion of the periods specified.
- Such accounts shall be under direct supervision of an authorized official from the bank senior management.

5.3 General requirements:

For inoperative accounts:

- a. Account commissions and profits shall continue to be calculated as agreed upon or at market rates.
- b. Accounts shall be checked and classified and the procedures stipulated in the Rules thereon shall be taken according to the periods specified for each.
- c. Copies of documents and records of all the amounts and dues shall be kept as per the regulatory period of record-keeping.
- d. Detailed records of accounts shall be kept. Such records must include, as a minimum, the following:
 - Customer full name as shown in the identification document.
 - Customer ID number as shown in bank records.
 - Amount of assets and time periods related thereto.
 - Nature of customer assets (current accounts, investment deposits, remittances, etc.).
 - The national address, residence address and contact numbers, if any.
 - Bank account number, relationship number or the serial number in safe records, if any.
 - Ownership certificate numbers, if any or relevant.
 - Any other data about the customer, if available or necessary.
- e. Personal and financial data shall be kept by the bank in electronic records according to the technical specifications set by SAMA for easy future reference. A copy of such data shall be submitted to SAMA.
- f. Provisions containing the periods and procedures for freezing accounts and other funds mentioned in these Rules shall be added to contracts, agreements, account opening forms signed by customers, as well as account statements sent to customers.
- g. The role of the compliance department shall be supervisory at all phases and periods stated to ensure the fulfillment of the requirements of such accounts. In addition, rights shall be returned by the bank operation department.

5.4 Communication policy and procedures for inoperative account holders:

5.4.1 The communication policy and procedures shall be implemented in accordance with the customer classification and legal nature, as a minimum, as follows:

- Resident natural persons, including Saudis, GCC nationals, expatriates and politically exposed persons residing in Saudi Arabia.
- Non-resident natural persons, including Saudis, GCC nationals and foreigners not residing in Saudi Arabia, including those who leave Saudi Arabia and still have balances in their accounts.
- Resident juristic persons.
- Non-resident juristic persons.
- Commercial banks, including international accounts.
- Correspondent banks.

- Accounts of government entities.

5.4.2 Methods of contact:

Banks shall communicate with and try to reach customers, without disclosing any financial data, in all time periods specified by all possible legal means, for example:

- SMS.
- Email.
- Available phone numbers.
- Official letter sent by the mail to customers inside and outside Saudi Arabia.
- On-site visits by the bank relation staff.
- Messages on bank statements showing the account status and the actions required from the customer.
- Available public search tools and official information centers that help reaching customers by providing banks with the customer new contact numbers not registered with the bank, or informing banks of the customer status if alive, left Saudi Arabia, or if his/her business and financial activity was terminated.
- Media awareness advertisements explaining the relevant regulations, the actions required from dormant account holders, and balance search procedures.
- Inquiries to competent official authorities.
- Banks shall communicate with customers using the above mentioned methods during the different phases of inoperative accounts at intervals. Therefore, customers shall be contacted, at least, two times during each phase. If the customer is not responding and cannot be reached, banks shall stop communication a year after each stage and document the methods of contact used.

5.4.3 Bank communication unit:

Banks shall establish a unit (formally established or defined) to implement the communication policy effectively. The tasks of the unit shall include implementing communication procedures and documentation, taking all related responsibilities and preparing periodic reports on communication and the results thereof.

5.4.4 Stages and steps of implementing communication policy and procedures for inoperative account holders:

Banks shall comply with the following when communicating with customers according to each phase:

a. Dormant accounts:

- Banks shall inform customers, using their preferred methods of contact, of their account status, the required actions, and the procedure that will be taken by the bank in case customers fail to cooperate, including changing the account status to unclaimed.
- Government entities and private associations shall be officially informed, a year before changing the account status from dormant to unclaimed, without prejudice to the provisions of paragraph (4.2), of the procedures to be taken if there are no transactions in the account.

- Embassies, consulates, their educational institutions, and resident diplomats shall be officially informed, a year before changing the account status from dormant to unclaimed, of the procedures to be taken if there are no transactions in the account.
- b. **Unclaimed accounts:**
 - A bank check shall be issued with the unclaimed account balance of the government entity to the Ministry of Finance's account with SAMA. The check shall be sent to SAMA under an official letter and a copy of the check to the government entity and the Deputy Ministry for Financial and Accounts Affairs.
 - Banks shall inform customers, using the preferred methods of contact based on the results of communication in the previous phase, of the unclaimed account status and that they are required to contact the bank to receive the balance and open alternative new accounts.
 - A bank check shall be sent to embassies, consulates and their educational institutions with the account balance. Such procedure shall be documented.
- c. **Abandoned accounts:**
 - Banks shall inform customers, using the preferred methods of contact based on the results of communication in the previous phase, of the abandoned account status.

5.5 Internal audit control and reports:

Unclaimed and abandoned accounts shall be subject to the internal audit program once every two years, as a maximum. In addition, audit reports shall be submitted to the Audit Committee and the annual audit program shall not be linked to any other periodic programs related to such accounts.

5.6 Annual statistical reports required by SAMA:

Banks shall submit an annual report to SAMA at the end of March in accordance with the schedule sent by SAMA. The report shall cover all unclaimed and abandoned accounts, including the nature, type and number of the account as of the end of December of the previous year, without disclosing any personal information.

6. Application of KYC Principle and AML/CFT Requirements:

- Banks shall fully apply the KYC principle, provided that the primary purpose of the application is for the bank to be fully aware and have a complete picture of the customer and the nature of his/her activities and transactions, prior to or during the business relationship or the process of opening the account, or prior to carrying out a transaction to a customer with whom it has no business relationship, by assessing the risks that the customer may impose on the bank and the level of such risks. The identification of customers and assessment of risks shall be made while ensuring the fulfillment of all statutory requirements of opening accounts or starting business relationship.
- Banks shall establish, define, review and update the necessary procedures for the application of the KYC principle in accordance with the relative significance and degree of risk assessment made by the bank.
- Banks shall ensure that staff has the experience and training required to identify and assess the customer's level of risks.

- These Rules shall be read in conjunction with the requirements of the Anti-Money Laundering Law and its Implementing Regulations, the Law on Terrorism Crimes and Financing and the Guidelines issued thereunder.
- The Compliance Department shall have the authority and right to timely access the customer identification data, due diligence information, transaction records and other relevant data.

7. Curators, Legal Agents, Custodians and Authorized Persons (Natural or Juristic):

Banks shall ascertain the nature of the relationship for natural curators, legal agents, custodians and authorized persons when opening accounts and check the validity of the documents submitted.

8. On-Going Monitoring of Accounts and Transactions:

- Without prejudice to the provisions of the Anti-Money Laundering Law and its Implementing Regulations, the Law on Terrorism Crimes and Financing and the Guidelines issued thereunder, Banks should have appropriate systems in place to monitor the customer's transactions and activities and identify any suspicious or wrong behavior. Manual transaction monitoring is not sufficient and banks shall invest in developing electronic systems in accordance with the best standards in monitoring and information security and protection to continuously monitor customers' transactions.
- Banks shall continuously assess internal risk-based controls in order to benefit from unusual activities that have been detected.
- The electronic systems used in banks should be suitable for the nature of the bank's risk profile, and the monitoring system should be integrated with the bank's core systems. In case of incompatibility between the two systems due to integration, the bank shall be prepared to take the necessary precautions and manual procedures to address the incompatibility.
- If the bank suspects that banking accounts are being used illegally or that the source of the money deposited is found to be earned from illegal business, the bank must notify the Saudi Arabia Financial Investigation Unit of such case.

9. Training as a Key Principle for these Rules:

- Banks should not assign any teller or customer service staff before attending courses on KYC, AML/CFT measures, and ethical and professional behavior of bankers.
- Banks should put in place continued training programs to provide on-job training to employees in these areas. Banks should include extensive training on the contents of these Rules and their applications in their training programs.

10. Disclosure of and Enforcement on Bank Accounts, Balances and Relationships:

- Subject to SAMA's instructions on providing government and non-government entities with documents, information and data of customer bank accounts, the disclosure of and enforcement on bank balances, accounts and relationships (such as, blocking and compulsory deduction) shall be made by an order from SAMA upon the request of the competent authorities.

- Enforcement on banking relationships means blocking, compulsory deduction, check issuance and money transfer from the bank's customer accounts.
- Procedures taken for the disclosure of and enforcement on bank balances, accounts and relationships at all stages shall be strictly confidential. Such requests shall be received only by SAMA except for cases stated in SAMA's instructions.
- Banks shall carry out requests for disclosure and enforcement according to the form, manner and period specified by SAMA.

10.1 Disclosure of bank balances, accounts and relationships:

For the purpose of disclosing bank balances, accounts and relationships upon SAMA's request and according to the relevant instructions, banks shall search for all relationships between the bank and the customer, including all active; closed and suspended accounts, inoperative accounts, deposits, valuable boxes, credit cards, remittance accounts (remittance membership) and any other relationships or products offered by the bank. Banks shall ensure that the search is made based on the customer name, ID or the document under which the account is opened according to the following:

- The search shall include sole proprietorships owned by the person inquired about and his/her participation in companies. Banks shall state in the statements submitted to SAMA that the search included such accounts and transactions. However, if the disclosure is requested for a certain relationship/transaction, banks shall only include the requested relationship/transaction in the statement.
- The validity of information sent to SAMA in compliance with the requirements of this Rule shall be checked.
- In case of requesting the disclosure of balances, accounts and relationships of a natural person, the disclosure shall include all the information required above in this Rule, in addition to institutions and stores owned by the natural person pursuant to the principle of full financial disclosure. If disclosure is requested for a specific institution or store, disclosure shall include the relationships related to such institution or store not the owner.
- In case of requesting the disclosure of balances, accounts and relationships of a natural person, disclosure shall be limited to the name of the company and the percentage of ownership. The accounts and balances of companies the natural person co-owns or in which he/she owns shares shall not be disclosed. The same shall apply to joint accounts by disclosing only the number of the account and the percentage of ownership of the customer subject of the disclosure request, unless otherwise provided in SAMA's request.

10.1.1 Attachment of bank balances, accounts and relationships:

Banks shall comply with the following when attaching bank accounts, balances and relationships upon the request of SAMA in accordance with the relevant instructions:

- If a specific amount of money is requested to be attached from the customer's account, the bank shall, from the receipt of the request, commit to attaching only

the amount of money specified from the outstanding balance if the amount is available. In case the amount is not available, the bank shall not allow the customer to make debit transactions from the outstanding balance in the customer's accounts (withdrawal, transfer, etc.) or open new accounts. Only credit transactions shall be allowed until the amount is available again in the account.

- Attachment shall include all credit balances in the bank accounts and relationships, except the accounts of the companies that the customer co-owns directly or indirectly, and the joint accounts, unless otherwise provided in SAMA's request.
- If the request includes precautionary or executive attachment of a specific amount of money, attachment shall be enforced only on the amount specified. Once the amount requested to be attached is available, SAMA shall be informed and attachment of other accounts and amounts of money shall be lifted.
- If attachment is requested for a specific period of time, attachment shall be automatically lifted upon the expiry of the period.
- Banks shall, when imposing attachment, comply with the instructions issued on deduction. If deducting from an employee, the amount of money seized shall not exceed one third of the net monthly salary, except for the alimony debt if provided for in SAMA's instructions. If deducting from a retiree, the amount of money seized shall not exceed one quarter of the net monthly pension, except for the alimony debt if provided for in SAMA's instructions. Banks shall also comply with the instructions issued on bank accounts opened for or receive government compensation and subsidy for citizens, as well as any other instructions on the amounts excluded from attachment. In addition, banks shall allow the withdrawal of such amounts from ATMs.

10.1.2 Instructing banks to stop dealing with customers:

- Upon receipt of requests to stop dealing with customers, banks shall ban such customers from managing their existing banking relationships and shall not
- be allowed to establish new relationships or carry out debit transactions. The ban shall be imposed in respect of the customer's funds and in his/her personal capacity only,
- and shall not include the fact that the customer is a guardian, curator, legal agent or a person authorized to manage accounts not opened in his/her name, unless otherwise provided in SAMA's request.
- If the stop dealing order is issued for a specific period of time, the order shall be automatically lifted upon the expiry of the period.
- If the stop dealing order is issued with an attachment order, the stop dealing order shall be automatically lifted upon lifting the attachment order by the bank.

10.1.3 Compulsory deduction from accounts:

- Compulsory deduction shall be enforced by an order issued from SAMA to the bank at the request of the authorized entities. Upon the request, the bank

shall deduct a specified amount on a monthly basis from the bank's customer account to a specific beneficiary account.

- Compulsory deductions and expenses are considered priority and must be carried out or deducted before any other debts. Necessary steps shall be taken by banks to ensure the execution of such action.
- SAMA's deduction request for expenses or debts is to be made on the customer bank account to which salary payments are credited. The deduction shall be made promptly upon crediting such payments to the account. Necessary steps shall also be taken to ensure the execution of such action. The only exception here, however, is when SAMA's request states that such deductions shall be made from another bank account.

10.2 Freezing in the event of death, bankruptcy or loss of legal competence

10.2.1 Official notice on freezing by reason of death, loss of legal competence, starting any liquidation or administrative liquidation procedures under the Bankruptcy Law, or going into liquidation under Companies Law:

I. In accordance with the applicable laws, the bank must stop all dealings related to the account and freeze the balance therein if it becomes aware of, or receives official notification from a competent authority about, any of the following:

- a. Death of the account holder or one of the account holders.
- b. Restriction on the legal competence of the account holder or one of the account holders.
- c. Issuance of a judicial order or a decision from the company's general assembly or partners to liquidate the company that owns the account.
- d. Starting any liquidation or administrative liquidation procedures under the Bankruptcy Law for the account holder.

II. When carrying out the above, the following shall be considered.

- The absence of a provision in the company's memorandum of association and articles of association that allows the company to continue if any of the cases mentioned in Paragraphs (a) and (b) of Item (I) stated above occurs.
- The account must be operated in accordance with Paragraph (c) of Item (I) stated above by the liquidator appointed by a judicial liquidation decision or a decision of the company's general assembly or partners. The decision should include the appointment of the liquidator, restrictions imposed on its power and the period needed for liquidation (provided that such period shall not exceed five years if the decision is issued by the company's general assembly or partners). The exception to the provisions of this paragraph and Paragraph (c) of Item (I) above is when the company's memorandum of association, its articles of association, or partners' agreement contain(s) a provision on how to liquidate the company. In such case, the liquidation should be performed thereby, as the case may be.
- The account shall be operated in accordance with Paragraph (d) of Item (I) above by the liquidator or bankruptcy committee as determined in the decision of the competent court.

- Checks issued before the occurrence of any of the cases mentioned in Item (I) above should be considered, unless otherwise stated by a court order issued thereon.

10.2.2 Request of Heirs, guardians and curators to banks to disclose transactions and account balances of their deceased or incompetent persons and the like

10.2.2.1 Inquiring about and operation of a deceased's account:

- If any person requests a bank to disclose transactions, accounts' balances or banking relationships of his/her legator, the bank must respond to the request after verifying the existence of the necessary documents, which empower him/her to act so, including, as a minimum, the death certificate and determination of heirs deed (or an original copy thereof) that defines the names of heirs, including the person requesting the disclosure. If the requesting person is a legal agent of all the heirs or of one of them, he should produce the original power of attorney of his heirs or any of them that gives him the right to inquire about the legator's balances. The inquirer should be provided with the answer in a written form. The statement provided should be accurate and should include all banking relationships pertaining to the deceased. The Bank should keep a copy of the statement after being signed by the recipient.
- To operate the accounts of a deceased after freezing balances and stopping dealings because of death, the bank must verify the persons who have the right to the account of the deceased. Disbursement should be made based on legal practices and documents, including, as a minimum, the provision of the determination of heirs deed (or an original copy thereof) and the presence of heirs or their representatives collectively or individually, provided that such representatives have a power of attorney thereon. In addition, the decision of disbursement or distribution made by mutual agreement or by the competent court should be presented to the bank. If it is impossible to provide any of the required documents in connection with the deceased expatriate, the bank, after obtaining an attested death certificate, should issue a banking check with the amount of the balance in the name of the deceased's country's embassy to hand it to his/her heirs. The bank must comply with the requirements and procedures for heirs' accounts set forth in Rule (200.1.1).
- Providing heirs or their representative with the deceased's account statements or account activity for the period preceding the date of death is prohibited unless SAMA informs the bank of the issuance of a judicial order requiring so.

10.2.2.2 Inquiring about incompetent persons' accounts:

If any person contacts a bank to inquire about or require disclosing of transactions, accounts' balances or banking relationships of an incompetent person, the bank must respond to the request after verifying the existence of the necessary empowering documents, including, as a minimum, a legal document that proves the person's guardianship or custody over the incompetent person. The inquirer should be provided with the answer in a written form. The statement provided should be accurate and should include all banking relationships pertaining to the incompetent person. The bank should keep a copy of the statement after being signed by the

recipient. Providing curators or guardians with the incompetent person's account statements or account activity information for the period preceding the issuance of the custody or guardianship deed is prohibited. For account operation, the provisions of the related rules should be applied on a case-by-case basis (interdicted, disabled, etc.).

11. Providing Services to Customers with Disabilities and Giving them Priority:

The bank should give the optimum priority and care to customers with disabilities in a way that facilitates the procedures of providing banking services thereto.

Chapter III. Procedural Rules

100. General Instructions for Opening Bank Accounts

1. Customer ID:

- The bank must obtain copies of all required documents and compare them with their originals in order to ensure conformity and authenticity. All copies of documents must also be stamped to confirm their authenticity.
- The bank must obtain customer's signature on the photocopy of his/her ID, confirming the authenticity of the photocopy and the original. The bank must ensure that no transaction shall be carried out for any customers before examining the customer's ID and verifying its validity as prescribed for the identification documents of customers set forth herein.
- The bank must identify and examine persons authorized to sign for bank accounts.

2. Documents Required to Open a Bank Account are as Follows:

- a. An original copy of the ID of natural or juristic customer.
- b. Account opening agreement form which is prepared according to the requirements hereof. The agreement should include, as a minimum, the following:
 - Customer's personal data: Name, nationality, ID number, validity date of ID, national address, occupation, and contact details.
 - Financial information: Source of income (primary/additional), the expected size of financial movement on the account (deposits/withdrawals), and the purpose of opening the account.
 - Terms and conditions of the agreement between the two parties (i.e. the bank and the account holder), along with customer signature thereon placed in the designated space.
 - A specimen signature (personal signature, thumbprint, or personal stamp) which the customer will use for his/her transactions with the bank.
 - Details and identity document of the guardian or representative and the like, and their signatures.
 - A declaration by the customer of the following:
 - That he/she is not legally prohibited to be dealt with, that all information and data he/she has given is true and reliable, and that he/she has understood the terms, conditions and other provisions of the account opening agreement.
 - That he/she would be liable before the competent authorities for the funds deposited in his/her account by him/her personally or deposited by others with or without his/her knowledge, whether or not he/she used such funds, and when he/she failed to formally report to the bank the existence of such funds. That the funds deposited are from legal sources, that he/she is liable for their being free from any forgery or counterfeiting, and that if the bank receives from him/her (the customer) any illegal or counterfeit notes, he/she will not be refunded or compensated.

- That he/she commits himself/herself to updating his/her personal data when requested by the bank or from time to time (as specified by the bank), provided that the interval shall not exceed 5 years. The customer also undertakes to provide a renewed ID before the expiration of its existing validity, and he/she acknowledges that if he/she fails to do so, the bank will freeze his/her account.
- That the bank reserves the right to freeze the account or an amount of money credited to the account if the bank suspects that the bank account is being used illegally or that the amounts deposited are from financial fraud.
- That he/she is the real beneficiary. The bank should verify such information.
- The bank must ensure that the account opening agreement (for juristic persons) contains, at a minimum, the following information:
 - Information on members of the board of directors.
 - Information on managers of the juristic person as per its status.
 - Information on authorized signatories, and their specimen signatures.
 - Verification of the ownership structure to identify the actual beneficiary, in addition to the structure of control and ownership.

3. Rules for Remote Opening of Bank Accounts for Natural Persons:

1. Opening bank accounts remotely for customers with existing accounts in the same bank is not allowed.
2. The service is provided for individual citizens (national ID holders) and residents (Iqama holders).
3. The bank is responsible for verifying the identity of customers by using documents, data or information acquired from a reliable and independent source.
4. Risks associated with such accounts shall be assessed, policies and procedures for mitigating the associated risks shall be established periodically, and preventive measures to mitigate risks commensurate with the risk assessment results shall be developed and implemented.
5. The bank must set a clear and secure mechanism to activate the ATM card used for the bank account.
6. Documents and requirements referred to in Paragraph (2) above must be submitted and fulfilled by the customer, except the following:
 - An original copy of the ID of the natural or juristic customer.
 - A specimen signature (personal signature, thumbprint, or personal stamp) that the customer will use for his/her transactions with the bank.

4. Rules for Remote Opening of Bank Accounts for Sole Proprietorships:

1. The bank is responsible for verifying the identity of the enterprise and its owner by using documents, data or information acquired from a reliable and independent source.
2. Risks associated with such accounts shall be assessed, policies and procedures for mitigating the associated risks shall be established periodically, and preventive measures to mitigate risks commensurate with the risk assessment results shall be developed and implemented.

3. The bank must set a clear and secure mechanism to activate ATM card used for the bank account.

5. Rules for Remote Opening of Bank Accounts for Resident Corporations:

1. The bank is responsible for verifying the identity of the corporation by using documents, data or information acquired from a reliable and independent source. The following at least shall be checked: The name and legal form of the corporation, the powers that regulate and govern its work, the corporation's capital, its owners and the ownership percentage of each owner (except for the partners of a listed joint-stock company), the members of the board of directors if any, the directors, and the persons authorized to open and operate the accounts.
2. Appropriate standards must be set to manage risks associated with these accounts before approving the opening of such accounts in order to avoid opening an account for a company or a person with whom dealing is prohibited, for an incompetent person or the like.
3. The bank must set a clear and secure mechanism to activate the ATM card used for the bank account.

6. Rules for Remote Opening of Bank Accounts for Foreign Companies According to the Foreign Investment Law:

1. Verifying the identity of the company by using documents, data or information acquired from a reliable and independent source as follows: The commercial register and the license obtained from the Ministry of Investment (MISA), the name and legal form of the company, the powers that regulate and govern its work, the capital, the owners and the ownership percentage of each one, and the members of the board of directors/executives.
2. The service shall only be provided to the general director of the company whose name and powers are stated in the company's memorandum of association, including the opening and managing of bank accounts. Additionally, the identity of the general director shall be verified by using documents, data or information acquired from a reliable and independent source.
3. As an exception to Chapter 4 requirements concerning the operation of bank accounts, the authorized general director may operate the account with the passport, provided that the Iqama is presented after (90) days from the account opening date.
4. Risks associated with such accounts shall be assessed, policies and procedures for mitigating the associated risks shall be established and reviewed periodically, and preventive risk mitigation measures commensurate with the assessment results shall be developed and implemented.

7. Account Information Card:

The bank must provide the customer (using any appropriate means) with account information, including the customer's name, account number and IBAN as evidence of opening the account.

8. Opening an Account Without Making a Deposit:

The bank must agree to open an account for any customer if the required documents and conditions are submitted and satisfied. The bank must not require the customer to deposit any amounts as a condition for opening the account. If no amount is deposited in the customer account within a period of 90 days, then the bank must close such account. The exception is being made to government entities' accounts that the Ministry of Finance (MOF) approves opening without the need to deposit any amounts for a period specified by the MOF.

9. Blind and Illiterate Customer Service and Dealing:

- The bank must open an account for any blind or illiterate customers who request so. The bank must also provide the blind or illiterate customer with an ATM card, in addition to a checkbook upon his/her request. The blind or illiterate customer has the right to obtain any banking services (telephone banking and/or Internet banking), provided he/she has been advised of the terms and conditions governing these services. Further, his/her signature must be obtained in this regard, confirming that such services are provided for him/her upon his/her request and choice, that he/she is aware of the risks associated with the use of such services, and that he/she is legally liable for all dealings being conducted through such type of services.
- Both the blind customer and illiterate customer must present a personal reference to introduce them to the banking procedures taken and documents and papers required by the bank. Such personal reference shall have an ID, be 15 years old or older, and be able to read out to the blind or the illiterate and to act as a witness. The bank must obtain from the personal reference a copy of his/her ID, in addition to his/her national address and signature.
- Should the blind or illiterate customer request to go through banking procedures without the presence of the personal reference, then the banking procedures will be introduced to him/her by one of the customer service representatives at the bank. Such introduction will be certified by one of the branch's authorized signatories (branch/operations manager), confirming that the customer has been introduced to all necessary information and terms and conditions for the opening of accounts as well as the account management controls and that such terms and conditions and controls have been read out to him/her.
- Both the blind customer and illiterate customer must provide a thumbprint and a personal stamp as his/her specimen signature. Should either of them wish to use the (manual) personal signature as a specimen signature, he/she will be permitted to do so. In this case, it should be documented that this procedure has been taken at his request and choice and on his/her own responsibility.

10. Foreign Currency Accounts:

Customers may open accounts in any available foreign currency. They may deposit and withdraw funds in a foreign currency. If such foreign currency is not available, payments can be made in Saudi riyal. Normal fees and expenses involved in such transactions will be borne by the customer.

11. Multiple Bank Accounts:

The customer may have more than one account at the same bank, provided that all accounts bear one Customer Information File (CIF) number. Using the same account number for a new customer is not permitted.

12. Presence of Customer:

Subject to the provisions hereof, as a basic rule, no account should be opened for new customers without their presence at the bank. The exception is being made to cases where there are powers of attorney explicitly authorizing the opening of bank accounts and containing the personal information of both parties. Furthermore, this rule (the presence of customer) shall also be applied when updating Know Your Customer (KYC) details for the account.

13. Visiting the Customers in Exceptional Cases:

In exceptional cases where the customer is unable to visit the bank for reasons beyond his/her control, the bank may delegate two or more of its staff (with different powers) to meet the customer on-site and obtain relevant information and documents as required herein. The bank must develop the appropriate procedures and policies to ensure correct implementation.

14. Transfer and Check Services:

14.1 Outgoing transfers and sold checks:

Banks are not allowed to render outgoing transfer and sold check service except to customers maintaining accounts therewith. Customer number is sufficient in the Express Transfers System as a substitute for bank account for customers of this service only, provided that the bank, upon the initiation of membership, obtains the personal data of customers on a special form designated for this service and uses a separate file. In addition, the bank must obtain the customer specimen signature and valid ID certified by both the customer and the bank employee pursuant to these Rules. Customer Number should be based on the ID number. Moreover, the Transfers System should be subject to regulatory procedures for accounts, such as freezing, verification of the ID validity and customer's name, and limits placed on concerned customers. Membership account shall also be linked to transactions monitoring systems.

14.2 Incoming transfers and purchased checks:

Incoming transfers and purchased checks may be accepted in the following cases:

- If the transfer or check is made or issued from an account with the bank to a natural or juristic beneficiary account in one of the branches of the same bank, the transfer or check may be paid in cash to the beneficiary or his/her legal agent.

- If the transfer or check is from a local bank to another local bank, then payment shall be from the account of transferor to the account of the transferee.
- If the transfer is coming from outside Saudi Arabia in the personal name of the beneficiary, money transferred shall be paid through a bank account only.

15. Time Period for Opening the Bank Accounts:

Banks shall open bank accounts for natural and juristic persons, for whom no approvals from bank's concerned departments are required, within one business day if they meet all bank requirements and within two business days for those who need approvals. The applicant must be informed in writing of any missing or additional requirements upon application.

200. Rules for Opening Accounts for Natural Persons

200.1 Natural persons residing in Saudi Arabia:

Natural persons are allowed to open accounts and use services provided by banks operating in Saudi Arabia pursuant to conditions regulating such services, as follows:

200.1.1 Saudi natural persons:

- **Male and female citizens:**

Male and female citizens may open bank account by presenting their national ID (or family register for minors).

- **Saudi natural persons exempted from personal photographs:**

No accounts shall be opened by a national ID containing a statement on exempting its holder from providing personal photo, unless SAMA receives from the Ministry of Interior an official letter to this effect and informs the bank thereof.

- **Minors:**

Bank accounts may be opened for minors as follows:

1. The bank account shall be opened through the guardian, curator, or custodial person.
2. The account shall be in the name of the minor, while it is operated by the guardian, curator or custodial person.
3. The bank shall receive a copy of the custodianship deed issued by the competent court for the curator, or a copy of the guardianship deed where the guardian is not the father, or a copy of the custody deed for the custodial person.
4. The bank shall obtain and verify the data of the family register to which the customer's information is added, as well as the national identity information of the guardian, curator or custodial person.
5. When the minor reaches the age of (18) Hijri years and is still incompetent, the bank must receive a copy of the legal deed that proves the minor's condition as well as a copy of the guardianship continuation deed for the guardian or a copy of the custodianship deed for the curator.
6. As an exception of Paragraphs (1) and (2), a minor who has reached the age of (15) Hijri years and has a national ID may open and operate a bank account himself/herself, provided that the bank obtains the consent of the guardian or

curator to open the account for the minor. In this case, no checkbook shall be issued until he/she reaches the age of (18) Hijri years.

• **Bank accounts of people with disabilities–upper-limb disabled/ people with no upper limbs:**

Bank accounts may be opened for upper-limb disabled people and people with no upper limbs, who cannot write or sign, subject to the following conditions and requirements:

1. A copy of the person's national ID or Iqama must be submitted to the bank.
2. The bank should approve the customer's seal instead of the personal signature on all documents and bank transactions.
3. Withdrawals from the account shall be made only in the presence of the customer personally at one of the bank's branches. If the customer requests an ATM card, e-banking service, telephone banking service, or/and a checkbook, the bank should provide him/her with these services, upon receiving the customer's declaration and undertaking carrying his/her own seal and upon submission of a testimony by two of the bank branch's employees (one of them should be the branch manager or his deputy) stating that the services are granted under the customer's own responsibility.
4. Procedures should be introduced, if necessary, to the customer by two of the branch's employees (one of them should be the branch manager or his deputy). Such employees should sign on each transaction, contractual relationship, or deposit or withdrawal document.

• **Legally Incompetent Person:**

A bank account may be opened for a legally incompetent person by his/her legal representative who shall be the one authorized to sign for and operate such account. The legal representative must present the original documents supporting the authority given to him/her, along with the originals of his/her own personal identification documents as well as those of the legally incompetent person.

• **Children with special circumstances:**

- These are children born in the Kingdom of Saudi Arabia from unknown parents, illegitimate children, and children deprived of care from parent(s) or relatives due to death, divorce of parents, imprisonment of mother, suffering of mother from mental illness or chronic or contagious physical illness, or any other similar reason that prevents the mother from properly looking after her children. Such children are staying at housing centers of the Ministry of Human Resources and Social Development (MHRSD), such as social nurseries, social education homes, model educational institutions, or charities caring for orphans, or living with substitute families as per a status letter from the MHRSD. Such children are Saudi and are given certificate of birth, in addition to the right to have a national ID when reaching the age of 15 Hijri years.
- A bank account may be opened for such children, upon a letter from the General Manager of Orphan Welfare or the General Manager of Social Affairs at the MHRSD. In addition, a copy of the child's birth certificate authenticated by the housing

center, the MHRSD or the bank (where the original is presented to the bank for verification) must be submitted. Drawing/dispersing funds from such account shall be made possible only by presenting a letter from either the Deputy Minister for Social Development or the Assistant Deputy Minister for Welfare Affairs. If the child is living with a foster family (substitute family sponsoring him/her) and the family requests opening a bank account for the child, an account may be opened in the child's name after obtaining a letter from the MHRSD issued by the General Manager of Orphan Welfare or the General Manager of Social Affairs in the concerned region in Saudi Arabia. The letter should specify the name of the child and the names of both spouses of the family sponsoring the child. Additionally, certified copies of the child's birth certificate and the sponsoring family's identification documents as well as other relevant personal information of such family must be submitted to the bank. Such account shall be operated by the sponsoring family in all drawing and depositing transactions until the child reaches the legal age of 18 Hijri years. When the child reaches the age of (15) Hijri years, his/her national ID shall be accepted if presented instead of the birth certificate.

- **Prisoners:**

Bank accounts may be opened for prisoners if they approach banks escorted by officers of the General Directorate of Prisons. The bank must obtain from the accompanying officers a letter by the prison management in the city where the prison is located. The letter should be addressed to the bank branch, indicating the prisoner's name and ID or Iqama number and the desire of the prisoner to open a bank account. The branch shall assign its senior teller, customer service representative or any other higher senior officer to receive the security car outside the premises of the branch, meet the prisoner, complete all regular procedures for opening the account as stipulated in Rule (100), and enable the prisoner to perform transactions and benefit from services offered by the bank. The prisoner shall also be permitted to operate his/her account following the same applicable manner and procedures. For female prisoners who do not present a national ID, the prison management's letter introducing the female prisoner may be accepted.

- **Prisoners' trust accounts:**

Opening of bank accounts for depositing and withdrawing of Prisoners' Trusts shall be allowed according to the following controls:

1. The account shall be opened by a letter from the General Director of Prisons or his authorized representative. The letter shall be addressed to the bank branch at which the account will be opened, clearly indicating the purpose of opening the account.
2. The name of the account shall be "The General Directorate of Prisons, Prisons of (.....) Region, (name of) Prison—Holding Prisoners' Trusts". The same regular procedures for account updating shall be applied to this account.
3. The account shall be operated by a joint signature of at least two persons: the prison warden or his deputy and the officer in charge of the prisoners' trusts or his deputy. Copies of the authorized signatories' IDs and specimen signatures shall be obtained.

4. Withdrawal from the account shall be made only by checks signed by the authorized persons, by transfer from the prisoners' trust account to the prisoner's own account, or to the enforcement court according to a court ruling.
5. Deposit shall be made in cash through the bank branch or by a check if the trust is a check drawn to the order of the prisoner. Deposit shall be made by the authorized person or the person he/she may authorize. The cash deposit service can be offered by ATMs, if available at the prison department. Cash deposit card can be issued in the name of "(.....) Prison- Prisoners' Trusts". The PIN of the deposit card shall be handed to the of the prison warden. ATM cards and credit cards shall not be issued for such account.
6. The bank may, at its discretion and upon its approval, offer online banking and telephone banking services, based on a formal letter from the entity operating the account, for only checking account balances and inquiring about transactions.

• **Bank accounts of heirs:**

If the bank receives an official notice of, or becomes aware of, the death of an account holder, it should apply the following measures based on the applicable regulations:

1. The provisions of the supervisory Rule (10.2) should be applied.
2. The name of the account should be changed to "Heirs of.....", or a new account should be opened under this name.
3. The determination of heirs deed (or an original copy thereof) should be accepted as, and considered, an ID for maintaining the existing account or for opening a new account for the balances.
4. In completing the account information, the ID number is the number of the determination of heirs deed, the date of the ID is the date of such deed, and the place of issue is the court issuing the deed.
5. The person authorized to sign shall be the heirs themselves or their agent(s), collectively or individually. The bank is required to register the personal data of heirs and authorized agent(s) as well as including copies of their respective IDs and the legal power(s) of attorney in the account file.
6. The account shall be valid for one year from the date of determining the authorized persons as per the abovementioned paragraphs. The account shall be annually updated. If the account has had no activity for five years starting from the date of death, the provisions set forth in Rule (5) of the Supervisory Rules and Controls shall be applied.
7. Only checkbooks can be issued for such accounts and not ATM cards or credit cards.

• **Receiver:**

Opening accounts for a receiver is permitted upon completing the following:

1. Submitting a copy of the court order appointing the receiver and stating his powers.
2. Submitting a copy of the national ID of the receiver.
3. Submitting a copy of the receiver's license unless appointed by the concerned parties.
4. Submitting a copy of each document pertaining to the subject of dispute under receivership (for which the court order of receivership was issued). Such documents include the determination of heirs deed if the dispute is over an heirloom, or the

memorandum of association and its annexes if the dispute is over a company. The document(s) required in other cases should be based on the distinction made in the previous point.

5. The name of the account should indicate its purpose, in addition to including the expression "Under Receivership".
6. The court order should be used as an ID for opening the account or maintaining its use.
7. In completing the account information, the ID number is the number of the court order, the date of the ID is the order date, and the place of issue is the court issuing the order.
8. The authorized signatory for the account shall be the receiver or as specified by the court order.
9. The account shall be valid for one year from the date of the court order. The account shall be updated annually by the authorized signatory in accordance with Paragraph (8). If the account has had no activity for five years from the date of its opening, the provisions provided for in Rule (5) of the Supervisory Rules and Controls shall be applied.
10. Only checkbooks can be issued for such accounts and not ATM cards or credit cards.

200.1.2 GCC natural persons:

The bank may open accounts for GCC natural persons, after obtaining a copy of the customer's national ID, his/her address in Saudi Arabia (proved by a service invoice, residential lease agreement, real estate ownership deed—or an original copy thereof, or a testimony by a Saudi person stating that the customer resides in the mentioned address), and his/her address in his/her home country. A GCC natural person is allowed to authorize a Saudi person or a another GCC citizen to open and operate his/her bank accounts.

200.1.3 Expatriates in Saudi Arabia:

- **Expatriate holding residence permit (Iqama):**

The bank may open bank accounts for expatriates holding residence permits (Iqama) after obtaining a copy of Iqama. Such Iqamas might be issued by the Passport Department against the applicable fees or free of charge, such as Iqamas issued to students of universities, students of military colleges, and students of institutes, who obtained scholarships or training approvals, or might be issued by the Protocol Affairs at the Ministry of Foreign Affairs or the like. In addition, the bank should obtain the expatriate's address in Saudi Arabia as well as his/her address in his/her mother country.

- **Expatriate dependents (whose Iqamas include a statement indicating that they are dependents and are "not authorized to work"):**

The bank may open bank accounts for expatriate dependents whose Iqamas indicate that they are dependents and not authorized to work in Saudi Arabia. The bank shall comply with instructions related to expatriates' bank accounts. If the bank suspects that the bank account is being used for illegal purposes or it finds out that the

deposited funds are from the work of those dependents and not from their families, then the bank must inform the Saudi Arabia Financial Investigation Unit (SAFIU).

- If the expatriate whose Iqama indicates that he/she is a dependent and not authorized to work in Saudi Arabia is a son/daughter of a Saudi mother but a Non-Saudi father, then he/she is allowed to open a salary account, provided that he/she submits official documents proving that his/her mother is Saudi. The requirements mentioned above shall also be fulfilled.
- If the expatriate whose Iqama indicates that he/she is a dependent and not authorized to work in Saudi Arabia works for a licensed educational institution and wishes to open a salary account, then the bank account might be opened for him/her upon satisfying the following requirements:
 1. Submitting a copy of Iqama.
 2. Completing an account opening form by the customer for the purpose of receiving salary from the contracting institution.
 3. Providing a written undertaking by the customer to notify the bank upon the expiration or termination of his/her contract.
 4. Submitting a letter of employment from the general management of the educational institution contracting with the account applicant. Such letter should provide basic information about the expatriate and his/her salary and bonuses and should also state that he/she is currently employed by the educational institution by an "Ajeer" notice (work permit). Moreover, the letter should indicate that it is provided for the purpose of opening a salary account. Further, the following documents should be attached to the letter:
 - a. A copy of the valid Ajeer notice issued in the expatriate's name and verified by the contracting institution.
 - b. A copy of the contracting institution's license as issued by the supervising body.
 - c. A copy of the validity certificate issued in the expatriate's name by the supervising body and verified by the contracting institution.
 - d. An undertaking to notify the bank upon expiration or termination of the account holder's contract.
 5. The bank account shall be valid for a period identical to the validity period of the account holder's Iqama or Ajeer notice, whichever expires first.
 6. The approval of compliance department for opening the bank account shall be obtained.
- If the expatriate whose Iqama indicates that he/she is a dependent and not authorized to work in Saudi Arabia is a minor (under the age of 15 years), then his/her account shall be operated by the main, sponsoring expatriate residing in Saudi Arabia. However, if the main expatriate is a woman and her husband is her escort, the minor's account in this case shall be operated by his/her father since he is the legal guardian. If the minor reaches the age of 15 Hijri years, receives an independent Iqama, and applies directly for opening a bank account, the bank shall seek the approval of the guardian or curator for opening the account. In this case, no checkbook shall be issued until the minor reaches the age of 18 years.

- This type of bank accounts shall be classified as a high-risk account.

- **Expatriate with a temporary (90-day) work visa in his/her passport:**

Bank account may be opened for expatriates whose employers are individuals, institutions, official entities, or companies in order to transfer or deposit their salaries and financial entitlements during the temporary residence period in accordance with the following:

1. The account is to be opened for the expatriate employee upon receiving an official request from the employer. Such request shall state that the holder(s) of the account(s) works/work for the employer and that no Iqama was issued for the expatriate due to not completing 90 days from the date of arrival in Saudi Arabia. The request shall also specify the occupation and task of the expatriate, why the account is needed, sources of money to be deposited in the account, and his/her salary. The bank shall check the original passport(s) including work visa.
2. The employer shall undertake to notify the bank once the account holder leaves Saudi Arabia (on a final exit visa) during this period (the first three months of arrival in Saudi Arabia). Once notified, the bank must immediately freeze the account and contact the customer to submit to him/her the balance left and close the account. If the communication is not possible, the account freeze should continue and after the elapse of 90 days starting from the end of the 3-month period (the first three months from the date of expatriate's arrival) or starting from the date of the account freeze due to the expatriate's final exit, the account shall be dealt with according to the requirements of Rule (3) on Freezing of Bank Accounts.
3. The bank must meet the expatriate (account holder) in person and obtain his/her signature on an account opening agreement. The bank must also obtain documents and data needed to open the account (except Iqama). The customer shall sign an undertaking to submit his/her Iqama once issued (during the three legal months). The bank may also request the customer to agree on any other requirements the bank deems appropriate in relation to balance, transfer, and/or account closing. Additionally, the bank should inform the customer that his/her account will be frozen if his/her Iqama is not submitted during the first three months of arrival in Saudi Arabia.
4. Approval of the manager of compliance department at the bank shall be sought.
5. This type of bank accounts shall be classified as of high risk.
6. The bank account shall be valid for a period identical to the validity period of the visa. Only issuing an ATM card and performing transfer transactions are permitted for the account. No checkbooks, credit cards and/or any other services shall be issued or provided for this account during this period.
7. Operating the account after three months from the expatriate's (account holder) arrival in Saudi Arabia is not allowed unless the bank meets the account holder and verifies his/her Iqama. After meeting the customer and verifying his/her Iqama, his/her account will have the same procedures implemented on other bank accounts.

- **Expatriates with a visit visa to carry out certain assignments for entities in Saudi Arabia:**

A bank account may be opened in Saudi riyal for an expatriate holding a government visit visa to carry out certain assignments for a government or quasi-government entity or for any other juristic entity contracting with a government or quasi-government entity in Saudi Arabia, for an expatriate holding a business visit visa (provided for employees of companies and institutions), or for an expatriate holding scientific or professional visit visa and the like after fulfilling the following requirements:

1. A copy of the valid passport including the visit visa should be submitted.
2. A letter from the inviting entity (endorsed by the Chamber of Commerce if it is a business visit visa) should be submitted. The letter should clarify the mission of the individual, the reasons for not issuing a residence permit for him/her, why the account is needed and its validity period, and sources and amounts of money to be deposited therein.
3. The account shall be valid for a period identical to the validity period of the visa. If the visa is for a single entry, the account shall be immediately closed once the visa expires. If the visa is for multiple entries, the account validity shall be for (6) months from the date of entry to Saudi Arabia and should be renewed for the same period or less, taking into consideration the validity of the visa. The bank must obtain a written undertaking from the inviting entity to inform the bank when the expatriate leaves Saudi Arabia permanently in order to close the account.
4. It is permitted to provide the expatriate with an ATM card that only operates on the Saudi Payment Network (MADA). However, no checkbook shall be provided for this account.
5. This type of accounts shall be classified as of high risk and shall be subject to the supervision of compliance officers.
6. Approval of the manager of compliance department for opening the account shall be sought.
7. If the expatriate leaves Saudi Arabia permanently and then comes back with a new visa to carry out any of the assignments mentioned above for the same entity or for any other entity, the bank shall apply all the requirements set forth in the paragraphs above. The old account shall be treated according to Rule (3.2) on General Instructions for Freezing of Bank Accounts stated in Chapter II on Supervisory Rules and Controls, taking into account the account balance.

- **Foreign pilgrims:**

A foreign natural person having a Hajj identification card issued by the Ministry of Hajj and Umrah, pilgrim guiding institutions, or others, permitting him/her to perform Hajj, is not allowed to open bank accounts.

- **Transfer via bank account or transfer membership:**

After the elapse of the first three months of the expatriate's arrival in Saudi Arabia or after he/she obtains an Iqama during that period, all banks are prohibited from carrying out any transfers, issuing any checks or exchanging any currencies for the expatriate, except through a bank account opened in his/her name. Customer number

is sufficient in the Express Transfers System as a substitute for bank account for customers of this service only, provided that the bank obtains the personal data and Iqama of customers. In addition, customer number should be based on Iqama number. Moreover, the Transfers System should be subject to regulatory procedures for accounts, such as freezing, verification of the ID validity, checking customer's name against his/her passport for expatriates holding non-magnetic Iqama, limits placed on concerned customers, etc.

- **Transfer limit during the 3-month work visa:**

The maximum amount of a transfer or a check which banks may effect for an expatriate during the first three months of his/her arrival in Saudi Arabia for work and before obtaining an Iqama and opening an account in his/her name shall be ten thousand Saudi riyals (SAR 10,000). This limit is applicable to professionals, such as physicians, engineers and senior administrative officers whose salaries are commensurate with such limit or are above. For individuals in normal jobs or workers, the maximum limit of each transfer should be commensurate with the type of profession specified in the work visa placed in the passport. The bank shall use the passport number as a reference for the transactions executed during such period.

- **Expatriates exempted from working for their sponsors:**

An expatriate having a valid Iqama including a statement to the effect that its holder is exempted from working for his/her sponsor may open a bank account by providing his/her Iqama and an employment letter from the person or entity for which he/she works.

- **Expatriates working in Saudi Arabia without Iqama:**

No bank account may be opened for an expatriate working under (monthly or annual) employment contract for any entity in Saudi Arabia without a valid Iqama. In this case, an explicit approval from the Ministry of Interior must be obtained for each case and should then be communicated to the bank through SAMA along with any applicable procedures.

- **Valid Iqama holders without passport:**

Bank accounts may be opened and maintained for expatriates having valid Iqama including the word "without" next to the "nationality", by providing their Iqama only. No passport, copy or number thereof, shall be required.

- **Expatriates having Saudi passports**

No bank account may be opened by presenting a Saudi passport issued to some expatriate individuals. Such an expatriate must present a valid Iqama, and the validity of his/her Saudi passport shall not be required. However, where the expatriate has no identification document except his/her Saudi passport, the approval of SAMA shall be obtained for opening the account. Such approval shall include a reference to the approval of the Ministry of Interior. Once the account is opened, SAMA shall be provided

with the number of the account and address of the expatriate. The bank shall classify this type of accounts as of high risk to be subject to continuous monitoring.

- **Authorization by expatriate to others, or opening joint accounts by expatriate:**

An expatriate may neither authorize another person to open a bank account in his/her name, nor may he/she open a joint account with others, except in the following cases:

- The expatriate husband and his expatriate wife and vice versa, and their first-degree expatriate relatives.
- The female expatriate working in Saudi Arabia and her legal escort, provided that the Iqama of the legal escort or any other official document states that he is the legal escort of the female expatriate.
- The female expatriate and her Saudi husband.
- The female expatriate and her Saudi father, mother, son or daughter.
- The male expatriate and his Saudi wife.
- The male expatriate and his Saudi father, mother, son or daughter.

The male or female expatriate and his/her abovementioned relatives should hold valid Iqamas. The bank should record the number of Iqama for each male or female expatriate as an electronic reference number for the expatriate.

- **Standing instructions on the account of an expatriate:**

Expatriates may set up and renew standing orders for one year only through e-banking services. The personal information of the client shall be verified using documents, data or information acquired from a reliable and independent source. Such information shall be documented as well. Expatriates may set up standing orders to make regular domestic or international money transfers. The standing order payment shall be made once a month only and the amount shall be determined by the bank according to the client's risk assessment.

200.1.4 Tribe members: Displaced tribes/Ar Rub' al-Khali tribes:

The bank may open accounts for those tribal individuals residing in Saudi Arabia, and the validity of their accounts should be linked to the validity of their Iqamas. The bank must obtain the individual's Iqama which has a statement in the "nationality" space that reads "tribe members", "displaced tribes", or "Ar Rub' al-khali tribes". The supervisory and control requirements implemented on expatriates residing in Saudi Arabia, stated herein, shall apply to this category of customers.

200.1.5 The Beluchis and Turkistanians:

Bank accounts may be opened for Beluchis and Turkistanians by presenting a valid Iqama. The bank should not require such customers to present the original passport or a copy thereof. Before opening a new account, updating an existing one or effecting any other banking transactions, the bank shall require the customer to identify his/her address in Saudi Arabia and submit an employment letter. Such letter should be authenticated by the Chamber of Commerce or the official organization the customer is employed under its supervision. If the customer does not work and his/her Iqama has no employer mentioned, he/she shall be required to present a letter from the mayor of the area (district, governorate or town) where he/she lives, duly authenticated by the police station of the area of such mayor. In addition, the addresses mentioned in such letter should be clear enough to allow easy access to him/her when necessary. Such requirements shall be updated annually.

200.1.6 Expatriate stewards and stewardesses of the national airlines, expatriate ship crews and the like:

Bank accounts may be opened for expatriate stewards and stewardesses of the national airlines, expatriate ship crews and the like by presenting a valid visa included in the passport. The visa should be checked against the identification card provided to such individuals by their employers. The bank account validity shall be identical to the validity period of visa or renewal period thereof.

200.1.7 Bank accounts for employees of enterprises wishing to pay employee salaries through prepaid electronic records:

The bank may allow its customers to pay the salaries of their employees through prepaid electronic records. In doing so, the bank must comply with the provisions of the Regulatory Rules for the Prepaid Payment Services in the Kingdom of Saudi Arabia.

200.1.8 Credit cards for non-resident foreigners employed by resident Saudi companies:

The bank may issue credit cards to a selected, limited category of non-resident foreigners employed by a limited category of major Saudi companies having relationship with the bank. Such employees should have jobs that necessitate moving from a place or country to another (such as private airline pilots, stewards and stewardesses), and they do not have residence cards for any country where they go, including Saudi Arabia. The Saudi company hiring such employees is responsible for covering their local and international transportation expenses by credit cards. In this case, the bank shall observe the following conditions when issuing such credit cards for those employees:

1. The credit cards shall be issued through the resident Saudi company for which such employees work.
2. The Saudi company shall have good creditworthiness and a sound financial position.

3. All individuals, for whom credit cards or debit cards are required to be issued, shall be employed by the Saudi company, and documents proving such shall be obtained.
4. The Saudi company shall ensure in writing that the said cards will be properly used and that the company will bear all implications of use thereof by its employees.
5. The Saudi company, rather than the employees to whom the cards are delivered, shall pay all due payments related to the cards.
6. The maximum credit limit per card shall not exceed the limit allowed to other customers, corresponding to card category.
7. Dealing under this system shall be based on a formal agreement entered into between the bank and the company prior to the issuance of such cards.
8. The company shall provide the bank with the agreement, signed by the company and its employees, that determines the responsibility related to the issuance and use of such cards.

200.1.9 Opening bank accounts to raise blood money to be paid for reconciliation in murder cases:

The bank must comply with the following when opening and operating such bank accounts:

- I. Any activity aimed at raising funds for reconciliation shall not be undertaken without the consent of the Minister of Interior, after reporting of such activity by the emirate of the concerned region.
- II. If the approval of the Minister of Interior is issued, the emirate of the region shall communicate with SAMA and request opening of a bank account at a specified bank to raise blood money. The following requirements shall be satisfied:
 1. Approval of the Ministry of Interior for opening the bank account shall be obtained. The approval should indicate the period of the account validity.
 2. A copy (or an original copy) of the legal deed indicating that the victim's heirs waive the right of legal retribution (Qisas) and agree to receive the required amount of monetary compensation (Diyah), shall be submitted. Such legal deed shall indicate the time agreed upon to submit such compensation.
 3. The bank account to raise blood money shall be subject to the supervision of the emirate of the concerned region, and no party of the case shall have any rights thereon, whatsoever.
 4. The emirate of the concerned region shall specify the names of persons authorized to manage the account (supervision of the account and following-up of deposits); copies of their IDs, specimen signatures (joint signature) and contact details shall also be included.
 5. The bank shall not issue checkbooks or ATM cards for the account. Further, no transfers from the account shall be allowed.
 6. The name of the account shall be as follows (the Emirate of... Region, Diyah Money Raising for... (the full name of the murdered shall be written)).
 7. The bank shall stop the account automatically once the required amount of blood money is reached, and the account shall not accept any extra money.

8. The account shall be valid for one year, as a maximum, starting from the date of opening the account. After one year, it shall be deactivated. The account may continue to operate for another year by a letter from SAMA upon the request of the emirate of the concerned region.
9. If the amount of blood money is completely raised, the emirate of the concerned region should request a bank check and hand it to the beneficiary through the court.
10. If the victim's heirs reduce the amount agreed upon in the original legal waiving deed, this reduction shall be recorded in a similar legal deed or expressly added to the original legal waiving deed that includes the previously agreed-upon amount.
11. If the amount of blood money is not completely raised and the victim's heirs are not satisfied therewith, or if the victim's heirs waive the amount, the funds raised shall be returned to their depositors whose names are known through deposit slips. As for anonymous deposits, the emirate of the concerned region shall present the case to the Mufti to give a formal legal opinion (Fatwa) regarding how to handle such funds. (The bank shall satisfy this requirement upon receiving the direction of the emirate of the concerned region, which is delivered to the bank by authorized individuals.)
12. Only one bank account shall be opened for each case involving raising blood money (Diyah). In addition, opening more accounts in other banks for the same case is not allowed.
13. The account shall be closed once the amount of the blood money is completely raised. Then a bank check of the amount shall be issued.
14. This rule also applies to bank accounts dedicated to raising funds to be paid as compensation in injury cases.

200.2 Natural persons outside Saudi Arabia:

200.2.1 Saudi citizens residing outside Saudi Arabia:

Saudi citizens residing outside Saudi Arabia for study, medical treatment or official work (such as in embassies, consulates, or multilateral organizations) may open bank accounts upon the following:

1. Providing a copy of the passport.
 2. Providing a copy of the national ID.
 3. Submitting a specimen signature.
 4. Completing the account opening form or authorizing a Saudi citizen to open the bank account.
 5. Obtaining verification of such documents from the Saudi embassy or consulate in the foreign country.
- Saudi individuals residing in a GCC country may provide such data via the correspondent GCC bank for the bank operating in Saudi Arabia.

200.2.2 GCC nationals not residing in Saudi Arabia:

Bank accounts may be opened for GCC nationals who are not residing in Saudi Arabia, directly by themselves or by a Saudi or GCC citizen authorized by a power

of attorney. The bank should obtain the following documents from such individuals:

1. A copy of the valid national ID.
 2. A copy of the valid passport (if any).
 3. An employment letter from the entity for which he/she works, or from his/her personal business.
 4. A completed account opening form.
 5. A specimen signature.
- Such documents shall be obtained by the employees of the local bank directly or by the correspondent GCC bank in the GCC country where such individual resides. The GCC bank shall authenticate all documents obtained, and all deposit, withdrawal and transfer transactions shall be effected through the correspondent bank. Receiving such documents and effecting deposit, withdrawal and transfer transactions are also possible through a correspondent bank in the GCC country where the GCC citizen resides. No cash deposits by third party shall be accepted.
 - No checkbook, ATM card or credit card may be given to such individual unless he/she comes to Saudi Arabia and presents to the bank adequate data proving his/her residence in Saudi Arabia. In this case, Rule (200.1.2) shall be applied to such customer, and his/her account status shall be changed.

200.2.3 Non-Saudi and non-GCC natural persons not residing in Saudi Arabia:

The bank shall not open an account in Saudi riyal or in any foreign currencies, or any other account, for non-Saudi and non-GCC natural persons not residing in Saudi Arabia unless written approval from the Ministry of Interior or the Ministry of Foreign Affairs is received through SAMA. If so, the account may be opened by the passport of the individual.

300. Rules for Opening Bank Accounts for Juristic Persons

300.1 Resident juristic persons (including embassies and multilateral organizations):

300.1.1 Licensed businesses and shops:

The bank may open bank accounts for these licensed businesses and shops upon completing the following:

1. Obtaining a copy of the entity's commercial register, or license if it is the only item required for practicing the entity's business without the need for a commercial register.
2. Verifying the identity of the owner of the entity against his/her name in the commercial register or license, and checking the information and validity of the owner's ID.
3. Obtaining copies of the IDs of individuals authorized to manage and operate the accounts.

- If the owner of entity or shop is an endowment or private societies/foundations or cooperative associations, the bank must then request the following, in addition to the aforementioned requirements:
1. A copy of a valid endowment registration certificate issued by the General Authority of Awqaf, including at minimum the following: Name of endowment, endowment deed number and date, and names of administrators and their ID numbers (for endowments); or a copy of the license issued by the Ministry of Human Resources and Social Development, a copy of the decision of the board of directors of the society/foundation (meeting minutes) approving the establishment of the business, entity or shop, and the approval for the account's authorized signatories (for private societies/foundations or cooperative associations).
 2. Copies of the IDs of administrators whose names are stated in the endowment registration certificate (for endowments).
 3. This type of accounts shall be classified as a high-risk account.

300.1.1.1 Special-purpose entities:

The bank may open accounts for these special-purpose entities upon completing the following:

1. Obtaining a copy of the license of the special-purpose entity, issued by the Capital Market Authority (CMA).
2. Obtaining a copy of the license (if any) or commercial register of the owner, issued by the concerned authority.
3. Obtaining a copy of the entity's articles of association.
4. Checking the IDs (for natural persons) and licenses or commercial registers (for juristic persons) of registered board members.
5. Obtaining a copy of the decision made by the authorized signatory in such entity, authorizing specific individuals to manage and operate the accounts.
6. Obtaining copies of the IDs of individuals authorized to manage and operate the accounts; and
7. Checking the IDs (for natural persons) and licenses or commercial registers (for juristic persons) of the special-purpose entity's owners whose names are stated in its articles of association and amendments thereto.

300.1.1.2 Foreign schools:

The bank may open accounts for these resident foreign schools upon completing the following:

1. Receiving a letter from the board chairman or school principal, containing a request to open a bank account and the names of the account's authorized signatories (a joint signature), along with copies of their IDs attached.
2. Receiving the approval of the Ministry of Education for opening the bank account and for the authorized signatories.
3. Obtaining a copy of the school's license that is issued by the Ministry of Education.

4. Receiving a copy of the decision of forming the school board, approved by the Ministry of Education, and copies of members' Iqamas.
5. The account shall be valid for a period identical to the validity period of school license and the term specified for the school board as per its formation decision approved by the Ministry of Education.
6. The signatories shall be the school principal and its financial officer (who shall be employed in the same school), or one of them and a school board member, provided that such member is not a diplomat or an embassy employee. Such member may be from outside this school as an exemption from Paragraph (3) of Rule (4) of Chapter IV on the General Rules for Operation of Bank Accounts, regarding controls for authorizing non-Saudis.
7. Withdrawal from these accounts shall be as per dual control, and in case of withdrawal by checks, check shall be payable to the first beneficiary.
8. ATM cards or credit cards shall not be issued for such accounts.

300.1.1.3 E-commerce businesses with no official premises:

The bank may open accounts for e-commerce businesses as per the requirements of Rule (300.1.1) on Licensed Businesses and Shops. The following shall also be observed:

1. The account name shall be as shown in the commercial register of the business, and the purpose of opening the account shall be "e-commerce".
2. The e-platform of the business shall be as shown in the commercial register.
3. The national address of the entity or its owner shall be obtained.
4. This type of bank accounts shall be classified as of high risk and shall be updated every two years.

300.1.1.4 Freelance job permit holder:

The bank may open bank accounts for freelancers upon completing the following:

1. Obtaining a copy of the freelancer's permit issued by the Ministry of Human Resources and Social Development.
2. Obtaining a copy of the national ID of the person holding the freelance job permit.
3. Obtaining the national address of the freelancer.
4. The bank account shall be in the name of the person holding the freelance job license. The work type stated in such license shall also be added to the name of the account.
5. The account shall be for one person only and shall not have signatories.
6. This type of accounts shall be classified as of high risk, and the purpose of opening such account shall be specified.
7. The account shall be valid for a period identical to the validity period of the freelance job license.

300.1.2 Licensed money changers:

The bank may open accounts for licensed money changers upon completing the following:

1. Copies of licenses issued by SAMA shall be obtained. The account shall be valid for a period identical to the validity period of the license issued by SAMA.
2. A copy of the commercial register shall be obtained.
3. The bank shall verify the information contained in the commercial register or in the license issued by SAMA matches the information contained in the owner's ID card.
4. A copy of the owner's ID shall be obtained.
5. Copies of the IDs of individuals authorized to manage and operate the accounts shall be obtained.

300.1.3 Resident companies:

The bank may open accounts for companies residing in Saudi Arabia upon completing the following:

1. A copy of the commercial register shall be obtained.
2. Obtaining a copy of the memorandum of association and its annexes.
3. Obtaining a copy of the ID of the manager in charge.
4. Verifying the identity of board members.
5. Obtaining the power of attorney issued by a notary public or a notary (or the authorization made in the bank by the person/persons who, by virtue of memorandum of association, partners' decision or board of directors' decision, has/have the power to authorize), authorizing natural persons to sign for and operate the accounts.
6. Obtaining copies of the IDs of individuals authorized to sign for and operate the accounts.
7. Verifying the IDs of the owners of the company, whose names are included in the last update of the memorandum of association. Public joint-stock companies are excluded from this requirement.
- Where the owner or one of the owners of the company is an endowment, private society/foundation or cooperative association, according to the memorandum of association, the bank must then fulfill the following, in addition to the above requirements:
 1. Obtaining a copy of a valid endowment registration certificate issued by the General Authority of Awqaf, including at minimum the following: Name of endowment, endowment deed number and date, and names of administrators and their ID numbers (for endowments); or a copy of the license issued by the Ministry of Human Resources and Social Development and the decision of the board of directors of the society/foundation (meeting minutes) approving the establishment of the company (for private societies/foundations or cooperative associations).
 2. Obtaining copies of the IDs of administrators whose names are stated in the endowment registration certificate (for endowments).

3. This type of accounts shall be classified as of high risk if the ownership of endowments, private societies/foundations or cooperative associations exceeds 50% of the company's capital.

300.1.3.1 Joint-stock companies:

- **Companies under formation:**

If the company is under formation, a copy of its preliminary memorandum of association must be submitted so that the bank may accept deposits from subscribers in an account of a joint-stock company under formation only (Account of "name of the company" Under Formation). Payment from this under-formation company account shall only be allowed upon announcement of the company formation. If the founders wish to open a special account for the formation expenses, the bank shall obtain an application to this effect from the individuals authorized under the preliminary memorandum of association, indicating the purpose of the account, the amounts specified, the authorized persons and how to treat such amounts after the formation of the company. In addition, the bank must receive the approval of the Ministry of Commerce for such expenditure account, which shall be opened under the name "Account of (name of the company) Company Formation Expenses".

- **Licensed joint-stock companies:**

Documents required are as specified in (300.1.3) above.

300.1.3.2 Limited liability companies:

Documents required are as specified in (300.1.3) above.

300.1.3.3 General partnerships:

Documents required are as specified in (300.1.3) above.

300.1.3.4 Limited partnerships:

Documents required are as specified in (300.1.3) above.

300.1.3.5 GCC commercial non-banking companies residing in Saudi Arabia:

Should a GCC company acquire a commercial register in Saudi Arabia (without investment license issued by the Ministry of Investment), such company shall be treated as a resident company, subject to the same requirements applicable to Saudi resident companies. Consequently, such GCC company shall submit the required documents specified in (300.1.3) above.

300.1.3.6 Escrow account for real estate development–off-plan unit sale and rental project:

The bank may open an escrow account in Saudi riyal for a real estate developer upon fulfilling the following:

- a. **Documents related to the real estate developer, the consulting office and the certified public accountant:**

1. Obtaining the commercial register and the license issued by the competent authority to practice the activity, if needed for such an activity.
2. Obtaining the memorandum of association and its annexes, if any.

3. Verifying the IDs of the owners of the entity, whose names are included in the memorandum of association (public joint-stock companies are excluded from this requirement).
 4. Obtaining a copy of the entity's board formation decision and verifying the IDs of the board members.
- b. Controls related to opening each individual account:**
1. The bank shall not activate the escrow account for the project unless the license of the project issued by the Off-Plan Sales or Rent Committee in the Ministry of Housing is received.
 2. The agreements signed by the real estate developer, the bank, the consulting office and the certified public accountant, covering disbursement conditions, the account operation, and rights and commitments of the contracting parties, shall be submitted, be in line with the regulations for the escrow account, and have the endorsement of the Chamber of Commerce and Industry thereon.
 3. Only one account shall be opened for each individual project and shall be named as follows: "*name of project*" Project– Escrow Account for "*name of real estate developer*". Sub-accounts linked to the main account of the project may be opened, such as administrative and marketing expenses account, savings account, construction cost account, incentives account and finance account.
 4. The bank shall keep 5% of the total value of the cost of construction works via deductions from each amount deposited into the account (until the 5 percent is reached), or the developer should submit a bank guarantee for the same percentage to the bank after obtaining a completion certificate issued to it by the consulting engineering office.
 5. A written undertaking shall be made by the real estate developer stating that no disbursement shall be made from the account for purposes other than those concerning the project determined.
 6. A written undertaking shall be made by the real estate developer stating its consent to amend the signed agreement between it and the bank in case of issuance of new, or amendment of existing, relevant regulations.
- c. Account management controls:**
1. Payment shall be made from the account by the payment document submitted by the real estate developer to the bank. Such document shall be certified by the consulting office and the certified public accountant and shall include amounts required and on which they will be spent.
 2. A list of the persons authorized to manage the account, as specified in the agreement, copies of their IDs (the national ID for Saudis/Iqama for foreigners), and their specimen signatures shall be submitted.
 3. Payment from the account shall be made by check or transfers only and shall be within the limits stated in (C-1) mentioned above.
 4. Project's sub-accounts shall be used only for receiving/making deposits and transfers from and (in)to the main account.

5. Deposit in the account shall be made by buyers and financiers via any means of payment accepted by the bank other than cash.
6. The real estate developer shall provide the bank with a detailed list of the project's real estate units, subject of contracts, and their prices.

d. Other controls:

1. The bank shall not attach the account for its own interest or that of the creditors of the real estate developer.
2. No funds may be transferred from the escrow account to any other accounts other than that of its sub-accounts whose purposes are specified.
3. The guarantee amount mentioned in Paragraph (B-4) shall not be disbursed nor delivered to the real estate developer except after the elapse of one year from the date of handing over the project from the developer to buyers and meeting all sound implementation terms during that year.
4. When a real estate developer obtains finance for a project, the finance amount shall be deposited in the escrow account of the project.
5. Checkbooks may be issued for this account at the request of the real estate developer. However, ATM cards and/or credit cards shall not be issued for this account.
6. Funds in the account shall not be used in any investment or speculation of any kind.

300.1.3.7 Collection accounts for depositing and retaining the funds of payment companies' clients:

The collection accounts for depositing and retaining the funds of payment companies' clients shall be opened and managed in accordance with the following requirements:

1. A letter from the Chairperson of the Board of Directors of the company or their authorized representative to the bank, stating the purpose of opening the account under the name "Deposit and Retention of the Funds of (name of payment company)'s Clients", and identifying the persons authorized to manage the account.
2. A copy of SAMA's non-objection letter to open a collection account for the company for the purpose of depositing and retaining the funds of their clients.
3. Copies of all the company's incorporation documents, including the memorandum of association, articles of association and Board formation decision.
4. Copies of the IDs of persons authorized to manage the account.
5. The name of the account shall be "Deposit and Retention of the Funds of (name of payment company)'s Clients".
6. The account shall be separate and independent from the accounts opened for managing the company's business, including the fees and commissions collected by the company. The account shall not be used for any financial obligations or rights of the company.
7. Payment transactions and transfer of money to other accounts, other than the payment orders made by clients, shall only be made after submitting SAMA's non-objection for such transaction.

8. Cash deposits to or withdrawals from the account shall not be allowed.

300.1.3.8 Collection accounts for managing the finance value of debt-based crowdfunding companies:

The collection accounts for collecting funds from participants in order to extend credit to beneficiaries shall be opened and managed in accordance with the following requirements:

1. A letter from the Chairperson of the Board of Directors of the company or their authorized representative to the bank, stating the purpose of opening the account under the name "Management of the Finance Value of (name of debt-based crowdfunding company)", and identifying the persons authorized to manage the account.
2. Copies of all the company's incorporation documents, including the memorandum of association, articles of association and Board formation decision.
3. Copies of the IDs of persons authorized to manage the account.
4. The name of the account shall be "Management of the Finance Value of (name of debt-based crowdfunding company)."
5. The account shall be separate and independent from the accounts opened for managing the company's business, including the fees and commissions collected by the company. The account shall not be used for any financial obligations or rights of the company.
6. Transfer of money to other accounts without the approval of the participants shall only be made after submitting SAMA's non-objection for such transaction.
7. Cash deposits to or withdrawals from the account shall not be allowed.

9.3.1.300 Companies in the Special Logistics Zone

The bank may open accounts for companies that are established and registered in the Special Logistics Zone of the General Authority of Civil Aviation (GACA)- under Companies Regulations for the Special Integrated Logistics Zone- after submitting the following documents:

1. A copy of the commercial register issued by the GACA.
2. A copy of the company's memorandum of association and appendixes.
3. Verifying the IDs of the board members/executives.
4. A power of attorney issued by a notary public or a notary or an authorization made in the bank by the person(s) who has the authority, by the memorandum of association or partners' decision or board/executives' decision, to authorize natural persons to sign and operate accounts.
5. Copies of the IDs of individuals authorized to sign for and operate the accounts.

300.1.4 Residents investing under Foreign Investment Law:

The bank may open accounts for entities wholly owned by a foreign investor or jointly owned by a foreign investor and a Saudi investor upon receiving the following:

300.1.4.1 Joint-venture entities owned by a Saudi investor and a foreign investor:

- **Joint-venture entity owned by a foreign investor (natural or juristic) and a Saudi investor (natural or juristic):**
 1. A copy of the license issued by the Ministry of Investment.
 2. A copy of the commercial register without the need to acquire the business license, or a copy of the professional license of the entity if the entity is a service provider.
 3. A copy of the memorandum of association and its annexes.
 4. A copy of the ID of the manager in charge in the entity. A copy of the passport can be sufficient, provided that a copy of the Iqama is submitted (90) days after opening the account.
 5. A copy of the commercial register or professional license, as well as the memorandum of association of the juristic Saudi partner. The identities of the partners whose names are mentioned in the memorandum of association and its annexes must be verified, except for partners in listed joint-stock companies.
 6. A copy of the commercial register or professional license, as well as the memorandum of association of the juristic foreign partner in the home country, certified by the Saudi embassy. The identities of the partners whose names are mentioned in the memorandum of association and its annexes must be verified, except for partners in listed joint-stock companies.
 7. A copy of the power of attorney certified by the notary public if issued inside Saudi Arabia and by the Saudi embassy if issued outside Saudi Arabia, or an authorization prepared inside the bank specifying the persons authorized to operate and manage the account under the memorandum of association.
 8. Copies of the IDs of persons authorized to operate and manage the account.
 - The identities of the partners whose names are mentioned in the memorandum of association must be verified, except for partners in listed joint-stock companies. The identity of the natural foreign partner can be identified by providing a copy of his/her passport, provided that a copy of the Iqama is submitted 90 days after opening the account.

300.1.4.2 Entities wholly owned by a foreign investor:

- **Branches of foreign corporations or companies:**
 1. A copy of the license issued by the Ministry of Investment.

2. A copy of the commercial register without the need to acquire the business license, or a copy of the professional license of the entity if the entity is a service provider.
3. A copy of the ID of the manager in charge in the entity. A copy of the passport can be sufficient, provided that the Iqama is submitted (90) days after opening the account.
4. A copy of the commercial register or professional license, as well as the memorandum of association of the entity in the home country, certified by the Saudi embassy. The identities of the partners whose names are mentioned in the memorandum of association and its annexes must be verified, except for partners in listed joint stock companies.
5. A copy of the authorization issued by the main office of the company or corporation in the home country and certified by the Saudi embassy must be obtained. The authorization must name the persons authorized to sign on behalf of the company in respect of all financial transactions, including signing checks and managing related accounts, in Saudi Arabia.
6. Copies of the IDs of persons authorized to operate and manage the accounts.
 - **An entity owned by a foreign investor or jointly owned by more than one foreign investor:**
 1. A copy of the license issued by the Ministry of Investment.
 2. A copy of the commercial register without the need to acquire the business license, or a copy of the professional license of the entity if the entity is a service provider.
 3. A copy of the memorandum of association and its annexes.
 4. A copy of the ID of the manager in charge in the entity. A copy of the passport can be sufficient, provided that the Iqama is submitted (90) days after opening the account.
 5. A copy of the commercial register or professional license, as well as the memorandum of association of the juristic foreign partner in the home country, certified by the Saudi embassy. The identities of the partners whose names are mentioned in the memorandum of association and its annexes must be verified, except for partners in listed joint stock companies.
 6. A copy of the power of attorney certified by the notary public if issued inside Saudi Arabia and by the Saudi embassy if issued outside Saudi Arabia, or an authorization prepared inside the bank giving the persons authorized to operate and manage the account such right under the memorandum of association.
 7. Copies of the IDs of persons authorized to operate and manage the accounts.
 - The identities of the partners whose names are mentioned in the articles of association must be verified, except for partners in listed joint stock companies. The identity of the natural foreign partner can be identified by

providing a copy of his/her passport, provided that the Iqama is submitted (90) days after opening the account.

- **Foreign individual investor:**

1. A copy of the license issued by the Ministry of Investment.
2. A copy of the commercial register, provided that the name of the line of business in the commercial register is the same as that specified in the license and that the name of merchant and his/her ID number indicated in the commercial register are true against his/her ID.
3. A copy of the Iqama. A copy of the passport can be sufficient, provided that the Iqama is submitted (90) days after opening the account.
4. The full address of the investor in his/her home country.
5. A copy of the power of attorney certified by the notary public if issued inside Saudi Arabia and by the Saudi embassy if issued outside Saudi Arabia, or an authorization prepared inside the bank if there is an agent or person authorized to manage and operate the account.

300.1.5 Rules for non-profit sector, Hajj and Umrah entities, and public entities:

The bank may open accounts for non-profit sector, Hajj and Umrah entities, and public entities upon fulfilling the requirements set forth for each activity as outlined below. Only residents in Saudi Arabia are allowed to operate the accounts of these licensed entities, with the exception of individuals authorized to operate Hajj and Umrah accounts as per Rule (300.1.5.1). Copies of the IDs of such persons must be obtained for account opening.

300.1.5.1 Hajj, Umrah and visiting the Prophet's Mosque in Madinah:

- **Pilgrim affairs offices:**

- a. **Requirements for opening a bank account:**

1. Bank accounts shall be opened in Saudi riyal only.
2. The Hajj organizer shall present to the bank a letter from the Ministry of Hajj and Umrah approving opening a bank account for the pilgrim affairs office and including the office's information as follows:
 - The official name of the pilgrim affairs office.
 - Names of the persons authorized to sign for the account (joint signature), provided that they shall be members of the pilgrim affairs office or shall be officials in the embassy of the country of such office.
 - The position of each account signatory and his/her information as per his/her passport.
 - The bank account shall be limited to Hajj purposes only.
 - The office's bank account number in its home country and the name of the bank transferring the money, which the office deals with in its home country, shall also be stated.

3. The bank shall conclude an account opening agreement with the authorized signatories specified in the letter of the Ministry of Hajj and Umrah, addressed to the bank.
4. The account signatories shall determine, in Saudi riyal, the approximate total amount that their respective office will transfer for Hajj purposes.
5. Upon meeting the above requirements by the bank, the bank's compliance department shall submit an application to SAMA along with all necessary documents to obtain SAMA approval for opening the bank account.
6. The bank shall ensure that such accounts are subject to dual control.
7. The bank shall provide the pilgrim affairs office and the Ministry of Hajj and Umrah with the IBAN number of the office's bank account.
8. If the requirements for opening a bank account are not met, the bank branch manager must inform the applicant of the necessary requirements for opening a bank account. Such process shall be documented in a special file designed for this purpose in the bank branch. In addition, measures taken in this regard shall be reported to the compliance department at the head office of the bank on the same day.
9. If the requirements for opening a bank account are met, the documents shall be submitted on the same day to the compliance department at the bank's head office. Consequently, the compliance department, in turn, shall submit such documents to SAMA on the same day or at the beginning of the following working day, at the most.
10. The pilgrim affairs office may open multiple accounts, provided that these accounts are opened in the same bank only. The office may not open other accounts in other banks. If the office requests to transfer its accounts from one bank to another, it shall provide compelling justifications that are not related to meeting the requirements. Approval of the Ministry Hajj and Umrah and SAMA for that matter shall be secured.

b. Requirements for account operation and management:

1. The account shall be operated under a new approval letter from the Ministry of Hajj and Umrah to the bank on the account operation. The letter should specify the operation period, which should be from the beginning of Rabi II up till the end of Muharram of the following year. The letter shall be accompanied by a list provided by the pilgrim affairs office. This list shall include the names of Saudi natural persons, companies and establishments that the office will be dealing with in housing, catering and transportation, and it shall be attested by the Ministry of Hajj and Umrah.
2. Deposits shall be made in the accounts of the pilgrim affairs office via remittances from a bank in the office's home country. The remittance shall include the official name of the transferring office, and the purpose of such remittance shall be specified as "office's expenses related to Hajj only".

3. Deposits may be made in the account via checks under collection, drawn by the office itself on a bank in the office's home country only.
4. Remittances, checks or cash deposits from entities inside Saudi Arabia shall not be accepted, except in the following cases:
 - By persons whose names are included in the list, submitted in advance to the Ministry of Hajj and Umrah by the pilgrim affairs office and attached to the ministry's letter to the bank. Such list should include the names of service providers dealing with the pilgrim affairs office. The amounts of such remittances, checks or cash deposits shall be less than or equal to the amounts stated in contracts concluded with each beneficiary (at the bank's discretion).
 - By authorized persons, provided that such an amount is within normal limits, i.e. is less than or equal to the withdrawn amount as petty expenses (at the bank's discretion).
 - The amounts (in SAR/foreign currencies) disclosed at ports of entry (land ports, seaports, or airports) shall be delivered to the bank branch at the port or the bank representative in the seasonal office at the port as per a document from the Saudi Customs Authority. Such document shall include the name of the pilgrim affairs office and its account number (IBAN) in Saudi Arabia, as well as the name of the cash carrier and a copy of his/her passport. The bank employee shall give the depositor a deposit or transfer receipt attested by the bank.
5. The pilgrim affairs office may withdraw from the account by checks for the parties included in the list submitted previously to the Ministry of Hajj and Umrah by the pilgrim affairs office (specifying the names of the parties that the office has contracted with) and for other parties, provided that the office provides copies of its contracts therewith and the bank accepts. The office may also transfer funds via the electronic portal of the Ministry of Hajj and Umrah.
6. The organizer may pay authorized signatories by checks for petty expenses.
7. The approval of the bank's compliance department is required for the operation of the office's account.
8. The office shall not use its account balances for investments.
- c. Operating the pilgrim affairs office's account after Hajj season:**
 1. At the end of the Hajj season (end of Muharram), amounts left in the account of the pilgrim affairs office shall be returned to a bank in the office's home country only at the request of the authorized persons in the office. Such a request shall be indicated in the bank account opening agreement signed by the office.
 2. If the office wants to keep the balance in the same account to be used in the subsequent Hajj year, the account will be frozen at the end of Muharram until the beginning of the subsequent Hajj season (which is to be specified by the Ministry of Hajj and Umrah).
 3. In exceptional cases, operating the account of the pilgrim affairs office may be allowed during the period in which using the account is originally prohibited, provided that the bank obtains SAMA written approval therefor.

d. Reactivating and operating the pilgrim affairs office's account in the following Hajj year:

To reactivate the pilgrim affairs office's bank account in the following Hajj year, the bank shall obtain a letter from the Ministry of Hajj and Umrah, including the same information specified in the form filled out by the ministry when it first approved the account opening. In particular, the information should include the names of authorized persons and their information. The approval letter should be obtained along with the list provided by the pilgrim affairs office for the Ministry of Hajj and Umrah, stating the parties that the office has contracted with in the Hajj year and that the office will write checks and make payments for. This list shall be attested by the Ministry of Hajj and Umrah.

• **Tourism companies and travel agencies organizing pilgrim arrival from outside Saudi Arabia:**

a. Requirements for opening a bank account:

1. Bank accounts shall be opened in Saudi riyal only.
2. The Hajj organizer shall present to the bank a letter from the Ministry of Hajj and Umrah approving opening a bank account for the pilgrim affairs office and including the office's information as follows:
 - Official name of the organizer (tourism company, agency or association approved to organize pilgrims' arrival) in Arabic and English.
 - The computer number given to the organizer by the Ministry of Hajj and Umrah.
 - Name(s) of person(s) authorized to manage the bank account, provided that they are officials in the tourism company, agency or association approved to organize pilgrim arrival. Full names shall be written in English and Arabic as shown in their passports, along with their passport number.
 - The authorized person's title shall be a "Hajj organizer".
 - The bank account shall be limited to Hajj purposes only.
 - The organizer's bank account number in its home country shall be specified, as well as the name of the bank transferring funds, which the organizer deals with in its home country.
3. A copy of the organizer's commercial register and/or license issued for the organizer in its home country shall be submitted. Such commercial register and/or license shall be attested by the concerned Saudi embassy and/or the Ministry of Foreign Affairs.
4. The bank must obtain copies of the passports of person(s) authorized to operate the bank account for dual control.
5. The bank shall conclude an account opening agreement with the authorized signatories.
6. The organizer shall determine, in Saudi riyal, the approximate total amount that it will transfer for Hajj purposes.

7. Upon meeting all the above requirements by the bank, the bank's compliance department shall submit an application to SAMA along with all necessary documents to obtain SAMA approval for opening the bank account.
8. The bank shall ensure that such accounts are subject to dual control.
9. The bank shall provide the organizer and the Ministry of Hajj and Umrah with the IBAN number of the organizer's account on a form designed for this purpose.
10. If the requirements for opening a bank account are not met, the bank branch manager must inform the applicant of the necessary requirements for opening a bank account. Such process shall be documented in a special file designed for this purpose in the bank branch. In addition, measures taken in this regard shall be reported to the compliance department at the head office of the bank on the same day.
11. If the requirements for opening a bank account are met, the documents shall be submitted on the same day to the compliance department at the bank's head office. Consequently, the compliance department, in turn, shall submit such documents to SAMA on the same day or at the beginning of the following working day, at the most.
12. Where all requirements are met, the period for opening a bank account shall not exceed two working days.
13. The Hajj organizer may open multiple accounts, provided that these accounts are opened in the same bank only. The organizer may not open other accounts in other banks. If the organizer requests to transfer its accounts from one bank to another, it shall provide compelling justifications that are not related to meeting the requirements. Approval of the Ministry Hajj and Umrah and SAMA for that matter shall be secured.

b. Requirements for account operation and management:

1. The account shall be operated under a new approval letter from the Ministry of Hajj and Umrah to the bank on the account operation. The letter should specify the operation period, which should be from the first day of Rabi II up till the last day of Muharram of the following year. The letter shall be accompanied by a list provided by the Hajj organizer. This list shall include the names of Saudi natural persons, companies and establishments that the organizer will be dealing with in housing, catering and transportation, and it shall be attested by the Ministry of Hajj and Umrah.
2. Deposits shall be made in the account of the Hajj organizer via remittances from a bank in the organizer's home country. The remittance shall include the official name of the organizer, and the purpose of such remittance shall be specified as "organizer's expenses related to Hajj only".
3. Deposits may be made in the account via checks under collection, drawn by the organizer itself on a bank in the organizer's home country only.
4. Remittances, checks or cash deposits from entities inside Saudi Arabia shall not be accepted, except in the following cases:
 - By persons whose names are included in the list, submitted in advance to the Ministry of Hajj and Umrah by the organizer and

attached to the ministry's letter to the bank. Such list should include the names of service providers dealing with the organizer. The amounts of such remittances, checks or cash deposits shall be less than or equal to the amounts stated in contracts concluded with each beneficiary (at the bank's discretion).

- By authorized persons, provided that such an amount is within normal limits, i.e. is less than or equal to the withdrawn amount as petty expenses (at the bank's discretion).
- The amounts (in SAR/foreign currencies) disclosed at ports of entry (land ports, seaports, or airports) shall be delivered to the bank branch at the port or the bank representative in the seasonal office at the port as per a document from the Saudi Customs Authority. Such document shall include the name of the organizer and its account number (IBAN) in Saudi Arabia, as well as the name of the cash carrier and a copy of his/her passport. The bank employee shall give the depositor a deposit or transfer receipt attested by the bank.

5. The Hajj organizer may withdraw from the account by checks for the parties included in the list submitted previously to the Ministry of Hajj and Umrah by the organizer (specifying the names of the parties that the organizer has contracted with) and for other parties, provided that the organizer provides copies of its contracts therewith and the bank accepts. The organizer may also transfer funds via the electronic portal of the Ministry of Hajj and Umrah.
6. The organizer may pay authorized signatories by checks for petty expenses.
7. The approval of the bank's compliance department is required for the operation of the organizer's account.
8. The organizer shall not use its account balances for investments.

c. Operating the organizer's account after Hajj season:

1. At the end of the Hajj season (end of Muharram), amounts left in the account of the organizer shall be returned to a bank in the organizer's home country only at the request of the authorized persons. Such a request shall be indicated in the bank account opening agreement signed by the organizer.
2. If the organizer wants to keep the balance in the same account to be used in the subsequent Hajj year, the account will be frozen at the end of Muharram until the beginning of the subsequent Hajj season (which is to be specified by the Ministry of Hajj and Umrah).
3. In exceptional cases, operating the account of the organizer may be allowed during the period in which using the account is originally prohibited, provided that the bank shall obtain SAMA written approval therefor.

d. Reactivating and operating the organizer's account in the following Hajj year:

To reactivate the organizer's bank account in the following Hajj year, the bank shall obtain a letter from the Ministry of Hajj and Umrah, including the same information

specified in the form filled out by the ministry when it first approved the account opening. In particular, the information should include the names of authorized persons and their information. The approval letter should be obtained along with the list provided by the organizer for the Ministry of Hajj and Umrah, stating the parties that the organizer has contracted with in the Hajj year and that the organizer will write checks and make payments for. This list shall be attested by the Ministry of Hajj and Umrah.

- **Saudi establishments and companies organizing the arrival of Umrah performers and visitors of the Prophet's Mosque:**
 - Documents required from those Saudi establishments are as specified in Rule (300.1.1) above.
 - Documents required from those Saudi companies are as specified in Rule (300.1.3) above.
 - All bank accounts of Saudi establishments and companies licensed to offer Umrah and holy site visit services shall be separated from one another, in that bank accounts designated for Umrah and holy site visit services shall be separate from other bank accounts designated for other activities and services. In addition, all bank transactions related to Umrah services shall be separate from those related to other services and activities that such establishments and companies may carry out.

300.1.5.2 Private associations

This section covers private associations licensed by the Ministry of Human Resources and Social Development (MHRSD) to carry out different activities, including their branches, as well as Da'wah (invitation to Islam) offices and the like. Bank accounts for these associations and offices shall be opened in Saudi riyal only. The following requirements and controls shall be met and applied:

- a. Requirements and controls for opening and managing main bank accounts:**
 - **Requirements for opening main account:**
 1. A copy of the license issued to the association by the Ministry of Human Resources and Social Development (MHRSD) to practice the activity for which a bank account is to be opened, or a copy of the approval of His Majesty the King where the entity is approved as per a royal order.
 2. A copy of the association's bylaws, attested by the MHRSD or one of its branches.
 3. A copy of the decision to form the association's board and appoint officials, which is issued by the MHRSD.
 4. A copy of the board's authorization, which specifies the Saudi persons authorized to open and manage the association's bank account; such authorization shall allow for joint signature by two officials. One of them should be the board chairman or vice-chairman, and the other should be the financial officer/corporate treasurer. The financial officer shall be the

principal signatory. Should the board wish to authorize person(s) other than those mentioned above, the approval of the MHRSD shall be obtained.

5. Copies of national IDs of board members and of Saudi persons who are authorized to open and manage the bank account, provided that such copies are attested by the association.
6. Approval of the manager of compliance department at the bank for opening the account.

- **Controls for managing the main account:**

1. Only one main account may be opened in each bank for each association in the name stated in its license.
2. Deposits in the main account may only be accepted if it is from inside Saudi Arabia whether in cash, checks or domestic transfers upon ensuring that all data in the forms to be processed are complete and after verifying the full data, including the address, of the depositor or transferor by the bank employee. Cash donations or donations made via banking services to the bank accounts of associations may be accepted as long as these donations come from banking sources inside Saudi Arabia only, through which donor's information can be retrieved.
3. Payment from the main account may be made only under dual control of the persons authorized to manage the account.
4. If disbursement is made by a check, the check shall be payable to the first beneficiary.
5. Transfers may be made to the bank accounts of beneficiaries of charity inside Saudi Arabia only. The transfer forms shall be filled in by the persons authorized to manage the account. In addition, the transfers shall be monitored by the bank to ensure that they go in line with the nature of the association's activities.
6. ATM cards and/or credit cards shall not be issued for such accounts.
7. Checks drawn only by the first beneficiary may be collected through the clearing system between banks operating in Saudi Arabia only.
8. No transactions (e.g. remittance, collection of checks, etc.) from the association's accounts to any beneficiaries outside Saudi Arabia shall be made, except for transferring money for the purpose of managing the association's activities. For example, remittance for paying fees of consulting services or of participation in external symposiums, conferences and the like may be made after the bank obtains the official approval therefor from the MHRSD and the supervisory authority.
9. Remittances or checks coming from outside Saudi Arabia to the association's account at the bank (or coming to other banks operating in Saudi Arabia via the bank) shall not be accepted, unless written approval therefor is obtained from the MHRSD and the supervisory authority.

10. Sub-accounts may be opened for investing the private association's funds that exceed its needs in activities with financial returns that would help the association achieve its objectives. To do so, the bank must first obtain and review the association's rules that govern the investment of its surplus funds, which are approved by its general assembly and the MHRSD.

b. Requirements and controls for opening and managing sub-accounts for sub-activities and branches:

1. Where there are multiple activities or branches of the association and should the association wish to open several accounts for those activities or branches, sub-accounts may be opened under the main account upon obtaining the approval of the MHRSD and the supervisory authority for establishing such a branch, with no need to license the activity.
2. Sub-accounts of activities and/or branches shall be used only for receiving deposits, transfers and donations. Withdrawals or transfers from such sub-accounts shall not be permitted, unless made to the main account. The only exception to this restriction is when withdrawals and transfers are made for activity-related purposes. Moreover, no checks may be issued for such sub-accounts.
3. Documents and papers for opening and managing the main account shall suffice for the main account and its sub-accounts designated for various activities and branches. Funds of sub-accounts can be used only through the main account.

c. Requirements and controls for opening and managing sub-accounts for expenses:

One sub-account may be opened in Saudi riyal for each of the association's branches that operate inside or outside the city where the association's headquarters is located. Such sub-account shall be used only for "expenses", transferred to it from the main account. The following requirements and controls shall be met and applied:

- **Requirements for opening sub-accounts for expenses:**
 1. Approval of the MHRSD for opening a sub-account for expenses.
 2. A copy of the approval of the MHRSD and the supervisory authority for establishing the branch for which a sub-account is to be opened.
 3. A copy of the association 's bylaws.
 4. A copy of the decision to form the association's board and appoint its officials.
 5. Approval of the MHRSD for forming a committee of working members to supervise the association's branch.
 6. Approval of the MHRSD for the Saudi persons authorized to manage the association's bank account (with joint signature). The persons authorized to manage the account shall not be changed without obtaining the approval of the MHRSD therefor.

7. Copies of the IDs of the members of the committee supervising the branch's activities, including persons authorized to open and manage the branch's account. Such copies shall be attested by the head office of the association.
- **Controls for managing expense sub-accounts:**
 1. Only one expense sub-account may be opened for each branch of the association, regardless of the number of the branch's activities, programs and services and regardless of the branch's other sub-accounts in other banks.
 2. The branch's expense sub-account is considered a subordinate account under the main account of the association.
 3. The branch's expense sub-account shall be named "Branch of... Association/Office in (City)–Subaccount of Periodic Advance".
 4. The expense sub-account shall be opened in the same bank where the association's main account is opened.
 5. Deposits in the expense sub-account shall be limited only to funds received from the main account of the association under a check, bank transfer, etc. No deposit of any funds in the expense sub-account shall be accepted other than the periodic expenses coming from the main account.
 6. Disbursements from the expense sub-account shall be limited to the following:
 - Personal and bank checks withdrawn only by the first beneficiary.
 - Transfers made to the bank accounts of beneficiaries of charity inside Saudi Arabia only. The transfer forms shall be filled out by the persons authorized to sign for the advances' account. In addition, the transfers shall be monitored by the bank to ensure that they go in line with the nature of the branch's activities.
 - Paying salaries of the association branch's staff.
 - Paying utility bills and government invoices.
 7. ATM cards and/or credit cards shall not be issued for the expense account.
 8. Approval of the manager of compliance department at the bank for opening a sub-account for expenses.

300.1.5.3 Private foundations:

The bank may open accounts only in Saudi riyal for private foundations licensed by the Ministry of Human Resources and Social Development (MHRSD). The following requirements and controls shall be met and applied:

- a. **Requirements and controls for opening and managing main bank accounts:**
 - **Requirements for opening main account:**
 1. A copy of the license issued to the private foundation by the MHRSD, or a copy of the approval of His Majesty the King where the entity is approved as per a royal order.
 2. Copies of the IDs of members of trustee board.
 3. A copy of the foundation's bylaws.

4. A copy of the trustee board's authorization, which specifies the Saudi persons authorized to open and manage the foundation's bank account; such authorization shall allow for joint signature by two officials. One of them should be the board chairman or vice-chairman, and the other the financial officer. Should the trustee board wish to authorize person(s) other than those mentioned above, the approval of the MHRSD shall be obtained.
5. Approval of the manager of compliance department for opening the account shall be sought.

- **Controls for managing the main account:**

1. Private foundations are not allowed to carry out any cash dealings. Withdrawal from the foundation's main account shall be made under dual control.
2. If disbursement is made by a check, the check shall be payable to the first beneficiary.
3. Transfers made to the bank accounts of beneficiaries of material support inside Saudi Arabia only. The transfer forms shall be filled out by the persons authorized to sign for the main account. In addition, the transfers shall be monitored by the bank to ensure that they go in line with the nature of the charitable foundation's activities.
4. ATM cards and/or credit cards shall not be issued.
5. The private foundation may accept gifts and bequests. However, such foundation shall not receive donations, unless the approval of the MHRSD is obtained. As such, the bank shall perform due diligence to verify the sources of funds.
6. The private foundation shall not send remittances or issue checks to beneficiaries outside Saudi Arabia, except for transferring money for the purpose of managing the foundation's activities. For example, remittance for paying fees of consulting services or of participation in external symposiums, conferences and the like may be made after the bank obtains the official approval therefor from the MHRSD and the supervisory authority.
7. The private foundation may invest its funds.

b. Requirements and controls for opening and managing sub-accounts for expenses:

The bank may open one sub-account in Saudi riyal for each of the foundation's branches that operate inside or outside the city where the foundation's headquarters is located. Such sub-account shall be used only for "expenses", transferred to it from the main account. The following requirements and controls shall be met and applied:

- **Requirements for opening sub-accounts for expenses:**

1. Approval of the MHRSD for opening a sub-account for expenses.

2. A copy of the approval of the MHRSD and the supervisory authority for establishing the branch for which a sub-account is to be opened.
3. Approval of the MHRSD on the Saudi persons authorized to manage the foundation's bank account (with joint signature). The persons authorized to manage the account shall not be changed without obtaining the approval of the MHRSD therefor.
4. Copies of the IDs of persons authorized to manage the account, attested by the head office of the private foundation.
5. Approval of the manager of compliance department at the bank for opening a sub-account for expenses.

- **Controls for managing expense sub-accounts:**

1. Only one expense sub-account may be opened for each branch of the foundation, regardless of the number of the branch's activities, programs and services and regardless of the branch's other sub-accounts in other banks.
2. The branch's expense sub-account is considered a subordinate account under the main account of the private foundation.
3. The branch's expense sub-account shall be named "Branch of... Private Foundation in (City)–Expense Subaccount".
4. The expense sub-account shall be opened in the same bank where the foundation's main account is opened.
5. Deposits in the expense sub-account shall be limited only to funds received from the main account of the private foundation under a check, bank transfer, etc. No deposit of any funds in the expense sub-account shall be accepted other than the periodic advances coming from the main account.
6. Disbursements from the expense sub-account shall be limited to the following:
 - Personal and bank checks withdrawn only by the first beneficiary.
 - Transfers made to the bank accounts of beneficiaries of material support inside Saudi Arabia only. The transfer forms shall be filled out by the persons authorized to sign for the expense sub-account. In addition, the transfers shall be monitored by the bank to ensure that they go in line with the nature of the branch's activities.
 - Paying salaries of the foundation branch's staff.
 - Paying utility bills and government invoices.
7. ATM cards and/or credit cards shall not be issued for the expense account.

• **Family funds:**

The bank may open accounts only in Saudi riyal for family funds. The requirements are as follows:

1. A letter from the chairman of the trustee board of the family fund (or their authorized representative) to the bank in which the account is to be opened clearly indicating the purpose of opening the account.

2. A copy of the license issued by the Ministry of Human Resources and Social Development.
3. A copy of the fund's bylaws.
4. A copy of the trustee board formation decision and copies of board members' IDs.
5. The bank account shall be managed by a joint signature of at least two persons: one shall be the chairman or the vice-chairman of the trustee board, and the other shall be the financial officer (principal signature). The trustee board may authorize two of its members or two senior Saudi managers of its executive management to manage the bank account, subject to the approval of the Minister or their authorized representative.
6. Disbursement from the fund shall be in accordance with the methods and conditions stipulated in the fund's bylaws.
7. The family fund may accept funds, gifts, bequests, Zakat and subscriptions (if any) from its founders and family members only, provided that the bank obtains a pledge from the chairman of the fund's trustee board to comply with this requirement.
8. The family fund is allowed to invest its money according to the provisions stipulated in the fund's bylaws.
9. The family funds are not allowed to make any transfers or issue bank or personal checks to parties outside Saudi Arabia.
10. Approval of the director of the compliance department for opening the account.

• **Charitable activities of (civil and military) government bodies:**

The bank may open accounts only in Saudi riyal for charitable activities of (civil or military) government bodies. The following requirements and controls shall be met and applied:

1. The bank shall obtain, through SAMA, the approval of the Ministry of Finance for opening a bank account or for maintaining the operation of an existing account, if the account's funds (or part of them) are from public funds.
2. The bank shall receive a request from the ultimate authority in the government body carrying out the charitable activity or the person he/she authorizes to open the account, if the account's funds are not from public funds.
3. The bank shall receive from the ultimate authority or his/her authorized representative a letter containing the names of the persons authorized to manage the bank account (by joint signature), provided that such authorized persons are Saudi employees of the same government body.
4. Such government body shall not raise funds or accept donations, aids or gifts from anyone except from its staff.

5. Deposits are accepted in cash, by checks, and through domestic direct transfer. In addition, deposits can be carried out using ATMs, Internet or credit cards. In all deposits, depositor's information shall be obtained.
6. No ATM cards and/or remittance membership shall be issued/granted for the account.
7. The government body wishing to open such bank account shall undertake that the beneficiaries of such account are from its staff and their families.
8. Disbursement from the account shall be made by checks payable to the first beneficiary, or via wire transfer from the main account to the first beneficiary's account.
9. Sub-accounts under the main account may be opened. Sub-accounts shall be used only for receiving deposits and making transfers to the main account. Checkbooks shall not be issued for such sub-accounts. Moreover, neither withdrawal nor transfer from these sub-accounts shall be allowed except to the main account.
10. Approval of the manager of compliance department for opening the account shall be sought.

300.1.5.4 Public welfare committees (e.g. committees of patients' friends, committees caring for people with disabilities or blind people, committees of academic excellence awards, charitable warehouses licensed by regional governors, and the like):

- The bank may open accounts for these committees only in Saudi riyal upon obtaining a copy of the committee's license issued by the concerned official authority as per its jurisdiction, such as the Ministry of Education, the concerned emirate of the region, etc. Bank accounts for such committees shall be opened and managed under a joint signature of the committee chairman (or secretary) and its financial manager. Further, the bank shall obtain copies of the IDs of those two officials (the committee chairman/secretary and the financial manager), along with copies of the IDs of the members of the board of directors (or board of trustees). Copies of the bylaws of the committee/organization shall also be submitted to the bank. Approval of the manager of compliance department for opening the account shall be sought. Additionally, SAMA shall be informed about opening such accounts.
- Bank accounts may be opened for annual or seasonal public welfare activities, such as festivals, celebrations and the like, whose funds are not from the state budget. In this case, the bank shall receive a formal request from the concerned official entity organizing such activity to open the bank account. Such bank account shall be opened and managed under a joint signature of the person authorized to manage the activity and the financial

manager; copies of their IDs shall also be obtained. In addition, the bank shall obtain copies of the IDs of the activity committee members. Moreover, the validity period of the account shall be specified; after such period the account shall be closed. Further, approval of the manager of compliance department for opening the account shall be sought. SAMA shall be informed about opening the account.

- Transferring funds from such accounts to parties outside Saudi Arabia is not permitted.

300.1.5.5 Bank accounts for collection of shoppers' donations of remaining halalas (change) in favor of charities:

1. Donation collection service shall be restricted to commercial enterprises with commercial registers.
2. Charities that can benefit from such voluntary donation shall be licensed to operate in Saudi Arabia, and its articles of association or bylaws shall permit collection of donations.
3. No commercial enterprise shall be allowed to provide the voluntary donation service of remaining halalas (change) in favor of charities (whether societies, foundations, committees or others) wishing to receive such donations without official permission from the Ministry of Human Resources and Social Development or the authority supervising the charity.
4. The supervisory authority's permission shall include (or have enclosed therewith) the license number for collection of donations and its validity period, as well as the name of the commercial enterprise and its commercial register number.
5. Collection of donations of remaining halalas shall be subject to a two-party contract, i.e. a contract between the commercial enterprise collecting donations of remaining halalas and the charity receiving such donations. The contract shall state obligations of both parties, including that the commercial enterprise will not charge any fees for providing such service.
6. The contract may be extended for more than one period with the consent of the authority supervising the charity. In this case, all previous licenses of donation collection and their related accounts shall be revoked or settled prior to granting renewal approval at the end of the financial year.
7. Donations collected shall be submitted to the concerned charity by a crossed check or a bank transfer to its account at the end of each quarter of the Gregorian calendar year. In addition, the supervisory authority shall be furnished with copies of paid checks or bank transfer receipts.
8. The commercial enterprise shall state in the crossed check or transfer slip the name or account number of the charity and that the amount presented is the donation of remaining halalas by shoppers.
9. The halala-donation procedures, automatic system, and controls of the commercial enterprise shall consider the following:

- Using a separate special payment means (e.g. cash/sale points) for donation of halalas.
- Allocating a separate bank account under the name of the commercial enterprise with the clause "remaining halalas" for keeping amounts donated by costumers. This account shall include sub-accounts; each of which shall be designated for one charity with which the commercial enterprise has contracted.

300.1.5.6 Cooperative associations and funds

- **Cooperative associations**

- a. Cooperative associations under establishment:**

A Saudi Riyal trust account may be opened for a cooperative association under establishment for the purpose of capital raising. The following requirements shall be satisfied:

1. The bank shall receive a letter from the competent authority at the Ministry of Human Resources and Social Development (MHRSD), stating that the cooperative association is under establishment and that the MHRSD agrees on opening an account for the association to raise its capital. The letter shall specify the name of the cooperative association under establishment and the name and ID number of the founding committee's chairman, who is in charge of communicating with the bank for the account opening. In addition, a copy of the association's preliminary memorandum of association shall be submitted to the bank with the letter.
2. The trust account shall be opened only for six months. The bank may extend this period for another six months upon receiving a request from the concerned authority at the MHRSD.
3. If the association is not registered and established within the period specified in Paragraph (2) above, amounts deposited in the trust account shall be returned upon the approval of the concerned authority at the MHRSD. The approval shall specify the method of returning such amounts and their recipient.
4. If the association is registered and established, the bank shall fulfill the requirements of Paragraph (b) below and shall convert the trust account into a current account.

- b. Licensed cooperative associations:**

The bank may open a Saudi Riyal account for cooperative associations upon fulfilling the following conditions and requirements:

1. Receiving a request of the association's board chairman to open a bank account; the account to be opened shall be managed under a joint signature of the board chairman (or his/her vice-chairman) and the treasurer (principal signatory).
2. Obtaining a copy of the association registration and establishment decision (the association registration certificate) issued by the MHRSD.

3. Obtaining a copy of the entity's board formation decision that is issued, approved or attested by the MHRSD.
4. Obtaining a copy of the entity's memorandum of association.
5. Obtaining a copy of the entity's bylaws.
6. Obtaining copies of the board members' IDs.

- **Cooperative funds:**

The bank may open accounts for the cooperative funds upon fulfilling the following conditions and requirements:

1. Obtaining a copy of the decision allowing or approving the establishment of the fund, issued by the concerned minister, general director or sector head.
2. Naming the fund after the organization establishing it.
3. Ensuring that the account is opened and operated by the manager and treasurer of the organization that owns the fund.
4. Obtaining a copy of the regulations governing the fund, issued by the concerned government body.
5. Obtaining a copy of the regulations governing the fund, issued by the concerned government body.

300.1.5.7 Homeowners' associations/housing societies licensed by the Real Estate General Authority:

Banks may open bank accounts for homeowners' associations/housing societies upon obtaining the following:

1. A letter from the real estate manager requesting the opening of the account, including the names of those authorized to manage and operate the account, certified by the chairman of the association/society.
2. A copy of the articles of association of the association/society.
3. A copy of the association/society registration certificate issued by the Real Estate General Authority.
4. Copies of the IDs of persons authorized to manage and operate the account.

300.1.5.8 Endowments and bequests:

Without prejudice to Rules (300.1.1) and (300.1.3), bank accounts shall be opened in Saudi Riyal for endowments and bequests as follows:

1. Endowments:

a. Endowments under the administration of the General Authority for Awqaf:

1. A letter by the Governor of the General Authority for Awqaf, requesting the opening of a bank account under the name of "Revenues" shall be submitted. The persons authorized to operate the account shall be identified, and dual authorization shall be applied. The financial powers of or right to delegate for the persons authorized must be specified.
2. Copies of the IDs of persons authorized to operate the account shall be submitted.

b. Endowments not under the administration of the General Authority for Awqaf:

1. The bank shall receive a copy of the valid endowment registration certificate issued by the General Authority for Awqaf, including at minimum, the following: name of endowment, endowment deed number and date, and names of administrators and their ID numbers.
2. A copy of the legal deed of the endowment shall be submitted.
3. A letter from the authorized signatory under the endowment deed, specifying the persons authorized to operate the account, shall be submitted.
4. Copies of the IDs of persons authorized to operate the account shall be submitted.
5. Copies of the IDs of administrators whose names are stated in the endowment registration certificate shall be submitted.
6. No transactions (e.g. remittance, collection of checks, etc.) from the endowment accounts to any beneficiaries outside Saudi Arabia shall be made, except for transferring money for the purpose of managing the association's activities. For example, remittance for paying fees of consulting services or of participation in external symposiums, conferences and the like may be made after the bank obtains the official approval therefor from the General Authority for Awqaf.

c. Foreign endowments:

1. The bank shall receive a copy of the valid endowment registration certificate issued by the General Authority for Awqaf, including at minimum, the following: name of endowment, endowment deed number and date, and names of administrators and their ID numbers.
2. The bank shall receive a letter from the endowment administrator or agent (Saudi national), requesting the opening of a bank account. The letter shall be accompanied by a request from the authority responsible for endowments in the home country of the foreign endowment (or by a request from the ambassador of that country) and by the approval of the General Authority for Awqaf.
3. The bank shall receive a copy of the endowment's legal deed stating that the property is allocated as Waqf (endowment) and registered with the competent authority in Saudi Arabia.
4. The bank shall receive a copy of the administration deed/power of attorney issued by the competent authority in Saudi Arabia, which provides for the full right to handle endowment and fulfill the donor's conditions. The administration deed does need to contain a provision for opening bank accounts, as the endowment administration includes this authority.

5. The bank shall receive a copy of the national ID of the endowment administrator/agent.
6. The bank account shall be in the name of the endowment as stated in the endowment deed and the registration certificate issued by the General Authority for Awqaf.
7. SAMA must be informed when the account is opened.
8. Withdrawal from this account shall be made by checks.
9. Transferring funds or issuing personal/bank checks from this account to beneficiaries outside Saudi Arabia shall not be allowed.
10. ATM cards and/or credit cards shall not be issued for such accounts.
11. Receiving remittances or checks from beneficiaries outside Saudi Arabia shall not be permitted without written approval from the General Authority for Awqaf.

2. Bequests:

1. The bank shall receive a copy (or a certified copy) of the guardianship deed, which provides for the bequests.
2. The bank shall receive a copy of the national ID of the trustee(s).
3. The account shall be in the name of the bequest (Bequest of...).

300.1.5.9 Cultural, sports and social clubs and youth hostels:

- **Sports clubs licensed by the General Sports Authority:**

The bank may open Saudi Riyal accounts for sports clubs licensed by the General Sports Authority upon receiving the following documents:

1. The approval of the Ministry of Finance for opening the account.
2. A copy of the license issued by the General Sports Authority.
3. A copy of the decision to form the club's board of directors.
4. A copy of the authorization letter by the board of directors (joint signature), allowing specific persons to open and operate the account.
5. Copies of the IDs of the authorized persons and board members.
- Bank accounts for contributions of the club's members of honor and fans may be opened without the approval of the Ministry of Finance. Such accounts may be opened in Saudi Riyal or foreign currencies, but they shall be separated from the government subsidy account.

- **Youth hostels:**

Requirements for the sports clubs licensed by the General Sports Authority shall also apply to youth hostels.

- **Cultural and literary clubs supervised by the Ministry of Culture:**

The bank may open Saudi Riyal accounts for cultural and literary clubs supervised by the Ministry of Culture upon receiving the following documents:

1. The approval of the Ministry of Finance for opening the account.
2. A copy of the license issued by the supervisory authority.
3. a copy of the decision to form the club's board of directors;

4. The authorization letter by the board of directors, allowing specific persons to open and operate the account under a joint signature.
5. Copies of the IDs of the authorized persons and board members.

• **Camel Club, and its branches and offices:**

The bank may open Saudi Riyal accounts for camel club and its branches and offices upon receiving the following documents:

1. A copy of the decision to form the club's board of directors, issued by the Council of Ministers.
2. A copy of the authorization letter by the board of directors, allowing specific persons to open and operate the account.
3. Copies of the authorized signatories' IDs.
4. Copies of the board members' IDs.
5. Payment from the main account shall be made only for the purposes for which the account was established.

300.1.5.10 Public corporations and public sector institutions:

The bank may open accounts for public corporations and public institutions (see Appendix "B" for further information on such entities and their names) upon obtaining the following documents:

1. A copy of the decision to form the entity's board of directors, issued by the Council of Ministers.
2. A copy of the authorization letter by the board of directors, allowing specific person(s) to operate the account, along with copies of those persons' IDs and their specimen signatures.

300.1.5.11 Chambers of commerce and industry:

The bank may open accounts for chambers of commerce and industry upon obtaining the following documents:

1. A copy of the decision to form the chamber's board of directors.
2. A copy of the authorization letter by the board of directors, allowing specific person(s) to open and operate the account, along with copies of those persons' IDs and their specimen signatures.

300.1.5.12 Building, renovating or expanding small and large mosques:

The bank may open bank accounts designated for building, renovating or expanding small or large mosques. The following requirements shall be fulfilled:

1. The bank shall receive a letter from the Ministry of Islamic Affairs, Dawah and Guidance (MoIA) or any of its branches in the concerned region, requesting the opening of a bank account and indicating its purpose.
2. The bank shall obtain a copy of the approval of the MoIA or any of its branches in the concerned region for building, renovating or expanding a small or large mosque.
3. The bank shall obtain the decision made by the MoIA or any of its branches in the concerned region to form a committee to supervise the mosque construction, renovation or expansion process. The committee formed shall

- be chaired personally by the branch manager of the MoIA and include two members of the officials of MoIA branch in the concerned region.
4. The account shall be named “Branch of the Ministry of Islamic Affairs, Dawah and Guidance in... (building, renovating or expanding) (name of the mosque)”.
 5. The account shall be operated personally by the manager of MoIA branch in the concerned region (principal signatory) with one or both of the committee members indicated above.
 6. The bank shall obtain copies of the IDs of committee members who are authorized to sign for the account.
 7. If funds are donations, the approval of the concerned authority shall be submitted.
 8. Disbursement from the account shall be made only by checks, under a joint signature. In addition, ATM cards and/or credit cards shall not be issued for this account.
 9. The account shall be valid for a period identical to the period specified by the MoIA for the mosque construction, renovation or expansion. Should there be a need to extend the validity period of the account, a letter to this effect shall be submitted to the bank by the MoIA or its concerned branch.
 10. If account funds are from the state budget, as per a request from the MoIA, the approval of the Ministry of Finance shall be communicated to the bank through SAMA.
 11. Approval of the manager of compliance department for opening the account shall be sought.

300.1.5.13 National societies and committees:

The bank may open accounts for national societies and committees, such as the National Society for Human Rights and the National Prevention of Blindness Committee, upon completing the following:

1. Receiving a request from the chairman of the society/committee for opening a bank account.
2. Obtaining a copy of the royal approval or the resolution of the Council of Ministers, allowing the society or committee to exercise its activities.
3. Obtaining a copy of the articles of association of the society/committee.
4. Obtaining a copy of the society's/committee's regulations governing its financial affairs.
5. Obtaining copies of the IDs of society's/committee's executive council members.
6. The names of authorized signatories shall be determined by the chairman of the society/committee. The bank shall obtain copies of those signatories' IDs and their specimen signatures. Such copies shall be attested as true copies of the original by both the society/committee and the bank. Changing the

authorized signatories requires sending a letter from the chairman of the society/committee to the bank where the account is opened.

7. Withdrawal from these accounts shall be as per dual control, and in case of withdrawal by checks, check shall be payable to the first beneficiary.

300.1.5.14 Trial and enforcement courts:

Bank accounts for trial courts, such as commercial courts and family courts, may be opened for the purpose of managing the cases pending before such courts and for the enforcement courts for the purpose of depositing execution funds as follows:

1. The bank shall receive a letter from the Deputy Minister of Justice for Enforcement or his authorized representative (for the bank accounts of enforcement courts), or a letter from the Deputy Minister of Justice for Judicial Affairs or his authorized representative (for the bank accounts of trial courts). The letter shall be addressed to the bank, requesting the opening of a bank account and stating the names of persons authorized to manage and operate the account under a joint signature (two signatories are required).
2. The bank shall obtain copies of the authorized signatories' IDs and their specimen signatures.
3. The account shall be separate from other accounts of each court.
4. Disbursement from the account shall be made by checks payable to the first beneficiary, by transfers to the collection accounts such as the account opened under the name "Ministry of Justice/Deputyship for Enforcement) and designated for receiving funds via SADAD system, or by transfers to beneficiaries' accounts. Where checks are used, the purpose of the check and the case number and date shall be written on the check.
5. ATM cards and/or credit cards shall not be issued for such accounts.
6. Transferring funds from these accounts to beneficiaries outside Saudi Arabia shall not be allowed. The exception to this rule is when the beneficiary is a foreign (natural or legal) person residing outside Saudi Arabia and the approval of the concerned deputy minister or the chief judge is obtained for the transfer.

300.1.5.15 Property conveyancing processes:

The bank may open collection accounts for the purpose of property conveyancing and for enforcement of related decisions. The following requirements and controls shall be met and applied:

1. The bank shall receive a letter from the Minister of Justice or his delegate, specifying the names of persons (two as a minimum) authorized to manage the account under a joint signature.

2. The account shall be named “Property Conveyancing for....”. The account shall also be separate from the accounts of the Ministry of Justice.
3. The bank shall obtain copies of the authorized signatories’ IDs and specimen signatures.
4. Bank transfers related to the electronic property conveyancing, whether made to the collection accounts opened under the name (Property Conveyancing) or to the accounts of beneficiaries, shall be made using electronic banking services. Withdrawal from the account shall be made only by checks payable to the first beneficiary. The purpose of the check and the ID number of the payee shall be written on the check.
5. ATM cards and/or credit cards shall not be issued for such accounts.
6. Transferring funds from these accounts to beneficiaries outside Saudi Arabia shall not be allowed.

300.1.5.16 Civil rights–personal debt settlement account

Bank accounts in Saudi Riyal only may be opened for any verdict execution administrations, divisions or sections, or for rights units at police centers. The following requirements shall be fulfilled:

1. The bank shall receive a letter from the head of the verdict enforcement administration, division or section, or from the head of the police center, requesting opening a bank account and specifying its purpose and authorized signatories.
2. The account name shall be “the Ministry of Interior, Public Security, Verdict Enforcement Administration in ...(Region/City/Governorate)–Personal Debt Settlement Account”.
3. The account shall be operated under a joint signature of at least two persons. One of them shall be the head of the verdict enforcement administration, division or section (or the head of the police center) or his/her deputy. The other signatory shall be the treasurer or his/her deputy (principal signatory).
4. The bank shall obtain copies of the authorized signatories’ IDs and their specimen signatures.
5. Funds shall be deposited in the account only by the debtor, his/her family, and their representatives via the following means:
 - Bank checks in the following form: “Pay to the order of Civil Rights Department in ... Region/ City/Governorate–Personal Debt Settlement Account”. The purpose of the check shall be written on it as follows: “Repaying the debt of... (*debtor’s name and national ID number*), Case/Verdict/Resolution No. ... dated ...”.
 - Bank transfers, provided that all the required information of the transferor and the transfer purpose are indicated.
 - Points of sale.
 - Cash acceptance machines.
6. Withdrawal from the account shall be made only by checks signed by the authorized persons mentioned in point (3) above. The check shall be in the following form: “Pay to... (*name of the creditor*)”. The purpose of the check

shall also be written on it as follows: “Repaying the debt of ... (*debtor's name and national ID number*), Case/Verdict/Resolution No. ... dated...”.

7. ATM cards and/or credit cards shall not be issued for this account. Moreover, fund transfer from such account shall not be allowed.
8. The compliance officer at the bank shall ensure that all the abovementioned requirements are fulfilled and documents are verified.
9. The bank shall send a free detailed account statement to the concerned civil rights department every month, or whenever requested.

300.1.5.17 Scientific societies:

The bank accounts of scientific societies may be opened as follows:

1. The bank shall receive a letter from the chairman of the society's board of directors requesting opening of the account. The letter must specify the persons authorized to manage and operate the account under a joint signature of the chairman (or his/her deputy) and the chief financial officer.
2. The bank shall receive a copy of the university council's decision to form the society.
3. The bank shall receive a copy of the decision to form the board of directors approved by the university council.
4. The bank shall receive a copy of the society's bylaws.
5. The bank shall receive copies of the IDs of the members of the board of directors and those authorized to manage and operate the account.
6. Acceptance of deposits shall be as determined by the bylaws (or financial regulations) of the society.
7. Transferring money to or receiving money from outside Saudi Arabia shall not be accepted, except for transferring money for the purpose of managing the society's activities. For example, remittance for paying fees of consulting services or of participation in external symposiums, conferences and the like may be made after the bank obtains the official approval therefor from the university council.
8. ATM cards and/or credit cards shall not be issued for such accounts.

300.1.5.18 Professional associations:

The bank accounts of professional associations may be opened as follows:

1. The bank shall receive a letter from the Secretary General of the association, requesting the opening of the account. The letter must specify the persons authorized to manage and operate the account under a joint signature of the chairman of the board (or his/her deputy) and the secretary general.
2. The bank shall receive a copy of the decision to form the board of directors approved by the government authority "competent authority" that supervises the work of the association.
3. The bank shall receive a copy of the association's bylaws.

4. The bank shall receive copies of the IDs of the members of the board of directors and those authorized to manage and operate the account.
5. Acceptance of deposits shall be as determined by the bylaws (or financial regulations) of the association.
6. Transferring money to or receiving money from outside Saudi Arabia shall not be accepted, except for transferring money for the purpose of managing the association's activities. For example, remittance for paying fees of consulting services or of participation in external symposiums, conferences and the like may be made after the bank obtains the official approval of the competent authority.
7. ATM cards and/or credit cards shall not be issued for such accounts.

300.1.6 Rules for foreign embassies, consulates, diplomats, airlines, multilateral organizations, and their employees

300.1.6.1 Embassies, consulates, and their educational institutions and employees:

- Foreign embassies and consulates and educational institutions operating under their auspices are permitted to open bank accounts. However, they are not permitted to open accounts for or on behalf of other entities, including businesses and charities.
- The bank shall receive a letter from such diplomatic entities, requesting to open a bank account. The letter shall specify the name and nature of the account as well as names of residents authorized to operate the account. Copies of the diplomatic cards of such authorized residents and of the ambassador/consul shall be authenticated and stamped by the embassy/consulate and attached to the letter. Alternatively, the letter may be certified by the Ministry of Foreign Affairs, authenticating the identity of official in charge and the name of embassy. In either case, the entity shall also complete the account opening agreement and submit it to the bank. If the embassy is under formation in Saudi Arabia, the bank may open an account for it upon receiving a letter from the Ministry of Foreign Affairs. The letter shall specify the name of the embassy, the name of the person authorized to open the account, and the type and number of his/her ID. The bank shall update the information related to the embassy and its staff once the embassy/consulate is set up.

300.1.6.2 Resident diplomats:

Subject to the provisions of the Anti-Money Laundering Law and its Implementing Regulations, the Law of Terrorism Crimes and Financing and its Implementing Regulations, and the guidelines issued thereunder concerning politically exposed persons, bank accounts may be opened for resident

diplomats working at foreign embassies and consulates. Such diplomats must present to the bank copies of their diplomatic cards, issued by the Ministry of Foreign Affairs, and copies of their diplomatic passports for verification. The bank shall keep such copies in the customer information file. Further, the bank may open accounts for diplomats whose embassies in Saudi Arabia are still under establishment upon receiving a letter from the Ministry of Foreign Affairs. The letter shall specify the name of the embassy, the name of the diplomat, and his/her ID information. A copy of his/her diplomatic passport shall also be submitted to the bank. Once the embassy is set up, the customer information file shall be updated.

300.1.6.3 Diplomats on temporary visit:

The bank may open accounts for diplomats visiting Saudi Arabia to carry out official temporary tasks. In addition to obtaining documents indicated in Rule (300.1.6.2) above, the bank shall receive from or through the embassy a letter of the Ministry of Foreign Affairs, specifying the term of the diplomat's task. Moreover, approval of the manager of the bank's compliance department for opening the account shall be sought. SAMA must be informed about opening the account. Such accounts must be closed when the visit (the assignment) term expires. Upon the expiration of the visit term and if no extension is granted and the account balance remains unsettled, the bank shall then obtain a letter from the customer, addressed to the bank and attested by the concerned embassy. The letter shall indicate that the account holder has left Saudi Arabia and shall specify the suitable method to return the account balance to him/her. However, the bank is not permitted to open accounts for visitors coming for other purposes other than the official tasks or visitors coming to engage in official tasks but for a few days.

300.1.6.4 Foreign airlines and their employees:

Foreign airlines can open bank accounts to serve their basic objectives. However, they are not permitted to open accounts for or on behalf of any other juristic entities, including corporations, organizations, businesses and charities. To open accounts for foreign airlines, the following requirements shall be met:

1. The person authorized to open the bank account for the airline shall be a resident of Saudi Arabia. If such person is non-Saudi, he/she must be under the sponsorship of the company or present the license of the agency (for agents).
2. The bank shall receive a copy of the approval or permission of the General Authority of Civil Aviation.
3. The bank shall receive a copy of the license issued by the Ministry of Investment to the company if the company directly undertakes its business without an agent, except GCC airlines.
4. The bank shall obtain a copy of the company's commercial register according to which the business is performed.
5. The account shall be used only for receiving business proceeds and for paying expenses to agents and other suppliers.

- Accounts of airlines employees shall be subject to Rule (200.1).

300.1.6.5 Rules for international multilateral organizations:

- **The Muslim World League and its affiliated councils and organizations:**
- **The Muslim World League (MWL):**

Banks accounts may be opened for the Muslim World League (MWL) as follows:

I. Main account:

a. Requirements for opening main account:

1. The bank shall receive a letter from the Secretary General or Vice Secretary General of the MWL, requesting opening of the account. The letter shall define the purpose of the account, provided that the persons authorized to operate it under a joint signature are the Secretary General or Vice Secretary General of the MWL and the chief financial officer (principal signatory).
2. The bank shall obtain a copy of the MWL Saudi Arabia Headquarters Agreement and the appended protocol.
3. The bank shall obtain a copy of the decision to form the MWL board of directors, appoint its executives and determine their powers.
4. The bank shall obtain copies of the IDs of the Secretary General of the MWL, Vice Secretary General, chief financial officer and board members. Such copies shall be attested by the MWL.
5. Only one main account shall be opened under the entity's name as stated in its Headquarters Agreement for deposit, withdrawal and transfer.
6. Approval of the manager of compliance department at the bank for opening the account.
7. Telephone banking and e-banking services shall be limited to balance inquiry and transfer from sub-accounts to the main account only.
8. SAMA shall be informed when the account is opened.

b. Deposit controls:

1. Deposited cash amounts to the MWL main account and sub-accounts from MWL official staff may be accepted.
2. The bank may accept cash deposits, checks and transfers to the main account and sub-accounts from non-official staff of MWL or MWL branches inside Saudi Arabia only if they are gift, subsidy or endowment and not donation.
3. Amounts incoming to the MWL main account or sub-accounts from outside Saudi Arabia clearly stating their purpose as gifts, subsidy or donation may be accepted. Such amounts shall not be deposited in the MWL accounts unless after the MWL submits to the bank the approval of the competent authority in Saudi Arabia to deposit the amounts, whether they are, for example, transfers or checks under collection.

c. Withdrawal controls:

Disbursement from the main account shall be limited only to checks or transfers to entities inside or outside Saudi Arabia. Transactions (remittance, issuance of

checks, etc.) made to outside Saudi Arabia shall be only for the purpose of managing the MWL or implementing its programs or projects.

d. Balance investment:

The MWL may open accounts to invest its excess funds in activities that have financial return to help achieving its objectives.

II. Sub-accounts for MWL branches and its various activities:

- Sub-accounts of or linked to the MWL main account for the same purposes of the branches or the activities of the MWL shall be opened after meeting and providing the following conditions and documents:
 1. A letter from the MWL Chairman or the Vice Chairman to the bank to open the sub-account specifying the purpose and persons authorized to manage the account.
 2. A copy of the official approval from the competent authority in Saudi Arabia to open a MWL branch or practice sub-activity.
 3. Copies of the authorized signatories IDs attested by the MWL.
 4. The MWL Chairman or the Vice Chairman may authorize members from the MWL staff to manage the account as the authorization shall be limited to making transfers from the sub-accounts to the main account.
- Documents required to open and update the main account shall be sufficient for sub-accounts as they are nested under the main account.
- **Institutions and organizations affiliated with the MWL, including the International Organization for Relief, Welfare and Development:**

Bank accounts may be opened for such entities as follows:

I. Main account:

a. Requirements for opening a main account:

1. A letter from the Chairman of the MWL affiliated entity to the bank requesting opening a main account or maintaining and updating the existing account specifying the purpose of the account, provided that the persons authorized to manage the account under a joint signature are the Chairman or the Vice Chairman of the entity and the chief financial officer (principal signatory).
2. A copy of the MWL Saudi Arabia Headquarters Agreement and the appended protocol.
3. A copy of the decision to form the Board of Directors of the entity and the appointment of its officials and their powers.
4. A copy of the by-law and procedures of the entity.
5. Copies of the IDs of the Chairman, Vice Chairman, Chief Financial Officer and the board members attested by the entity.
6. One main account only shall be opened under the entity's name as stated in the license for deposit, withdrawal and transfer.
7. Approval of the manager of compliance department at the bank for opening the account.

8. Telephone banking and e-banking services shall be limited to balance inquiry and transfer from sub-accounts to the main account only.
9. SAMA shall be informed when the account is opened.

b. Deposit controls:

1. Deposited cash amounts to the entity's main account and sub-accounts from MWL official staff may be accepted.
2. The bank may accept cash deposits, checks and transfers to the main account and sub-accounts from non-official staff of the entity or its branches inside Saudi Arabia only if they are gift, subsidy or endowment and not donation.
3. Amounts incoming to the entity main account or sub-accounts from outside Saudi Arabia clearly stating their purpose as gifts, subsidy or donation may be accepted. Such amounts shall not be deposited in the entity accounts unless after entity submits to the bank the approval of the competent authority in Saudi Arabia to deposit the amounts, whether they are, for example, transfers or checks under collection.

c. Withdrawal controls:

Disbursement from the main account shall be limited only to checks or transfers to entities inside or outside Saudi Arabia. Transactions (remittance, issuance of checks, etc.) made to outside Saudi Arabia shall be only for the purpose of managing the MWL or implementing its programs or projects.

d. Balance investment:

The entity may open accounts to invest its excess funds in activities that have financial return to help achieving its objectives.

II. Sub-accounts for the branches of the institution or organization and their various activities:

- Sub-accounts of or linked to the entity's main account for the same purposes of the branches or the activities of the entity shall be opened after meeting the following conditions and documents:
 1. A letter from the entity's Chairman or the Vice Chairman to the bank to open the sub-account specifying the purpose and persons authorized to manage the account.
 2. A copy of the official approval from the competent authority in Saudi Arabia to open a branch of the entity or practice sub-activity.
 3. The entity's Chairman or the Vice Chairman may authorize members from the entity staff to manage the account as the authorization shall be limited to making transfers from the sub-accounts to the main account.
 4. Copies of the authorized signatories IDs attested by the entity.
- Documents required to open and update the main account shall be sufficient for sub-accounts as they are nested under the main account.

• **World Assembly of Muslim Youth (WAMY):**

Bank accounts shall be opened for the WAMY upon fulfilling the following conditions and procedures:

I. Main account:

a. Requirements for opening a bank account:

1. A letter from the president of the WAMY affiliated entity to the bank requesting opening a main account or maintaining and updating the existing account specifying the purpose of the account and that the persons authorized to manage the account are the Chairman or Secretary General with joint signature and the Chief Financial Officer with main signature.
2. A copy of the WAMY Saudi Arabia Headquarters Agreement.
3. A copy of the protocol appended to the WAMY Headquarters Agreement.
4. A copy of the decision to form WAMY Board of Trustees and the appointment of its officials and their powers.
5. A copy of the by-law and procedures of WAMY.
6. The authorized persons must fulfil the account opening agreement (contract) determining the purpose of the account, the sources of income and the real beneficiaries.
7. Copies of the IDs of the Chairman, Secretary General, Chief Financial Officer and the members of the Board of Trustees attested by the entity.
8. One main account only shall be opened under WAMY's name as stated in Headquarters Agreement for deposit, withdrawal and transfer. The account shall be opened at the bank head office or main branch in the region.
9. Approval of the CEO/general director and the manager of compliance department of the bank to open the account or to maintain and update the existing account.
10. Telephone banking and e-banking services shall be limited to balance inquiry and transfer from sub-accounts to the main account only.
11. SAMA must be informed when the account is opened.

b. Deposit controls:

1. Deposited cash amounts to WAMY's main account and sub-accounts from WAMY official staff may be accepted.
2. The bank may accept cash deposits, checks and transfers to the main account and sub-accounts from non-official staff of WAMY or WAMY branches inside Saudi Arabia only if they are gift or subsidy.
3. Deposits or transfers for donation incoming to the bank from inside Saudi Arabia shall not be accepted.
4. Amounts incoming to the WAMY's main account or sub-accounts from outside Saudi Arabia clearly stating their purpose as gifts, subsidy or donation may be accepted. Amounts received by the bank to be

transferred to other banks operating inside or outside Saudi Arabia may also be accepted. Such amounts shall not be deposited in the WAMY's accounts or transferred to other banks unless after the WAMY submits to the bank the approval of the competent authority in Saudi Arabia to deposit the amounts, whether they are, for example, transfers or checks under collection.

c. Withdrawal controls:

Disbursement from the main account shall be limited only to checks or transfers to entities inside or outside Saudi Arabia through the main account or by the remittance membership linked to the main account for transfers.

d. Balance investment:

WAMY may open accounts to invest its excess funds in activities that have financial return to help achieving its objectives.

II. Sub-accounts for WAMY branches and their various activities:

Sub-accounts of or linked to WAMY's main account for the same purposes of the branches or the activities of WAMY shall be opened after meeting and providing the following conditions and documents:

1. A copy of the official approval from the competent authority in Saudi Arabia to open a branch of WAMY or practice sub-activity.
2. A letter from WAMY Chairman or Secretary General to the bank to open the sub-account specifying the purpose and persons authorized to manage the account.
3. WAMY Chairman or Secretary General may authorize members from WAMY staff to manage the account as the authorization shall be limited to making transfers from the sub-accounts to the main account.
4. Copies of the authorized signatories IDs attested by WAMY.
5. Documents required to open and update the main account shall be sufficient for sub-accounts as they are nested under the main account.

• **Islamic Development Bank (IsDB):**

Current bank accounts shall be opened for IsDB upon fulfilling the following conditions and procedures:

1. Request to open the account by a letter from the President or Vice President of the bank.
2. A copy of the bank Saudi Headquarters Agreement (permission).
3. Signature shall be joint.
4. Copies of the IDs of the authorized persons, the bank President or Vice President according to the request submitted.
5. Check books may be provided to the bank and its employees to cover the administrative expenses. The bank accounts are not required to be correspondent.

6. A copy of the procedures of money laundry and terrorist financing applied in the bank.

- **Organisation of Islamic Cooperation (OIC) and its affiliated entities:**

Bank accounts shall be opened for OIC upon fulfilling the following conditions and procedures:

1. Obtain a request to open the account from OIC Secretary-General or Vice Secretary-General specifying the names and functions of the persons authorized to open and manage the account of OIC or the affiliated entity.
2. A copy of the OIC Saudi Arabia Headquarters Agreement (or any other document for this purpose).
3. Signature shall be joint.
4. Copies of the IDs of the authorized persons, OIC Chairman or Vice-Chairman according to the request submitted.
5. OIC may transfer money related to its programs or projects to accounts outside Saudi Arabia.

- **Permanent Mission of the Russian Federation to the Organisation of Islamic Cooperation:**

Bank accounts shall be opened for the Mission after meeting and providing the following conditions and documents:

1. Submit a request approved by OIC to open an account in SAR or other currency to the bank in which the account is to be opened.
2. A certified copy of the approval of opening the Mission Office in Saudi Arabia stating the purpose of the Mission to OIC.
3. A letter from the Chairman of the Mission approved by the OIC specifying the person or persons authorized to manage the account.
4. Copies of the diplomatic cards or residence cards (Iqama) of the authorized persons to open and manage the account according to the identity card issued to them in Saudi Arabia.
5. The Mission may only receive and transfer money related to its purposes and programs.

- **Arab Red Crescent and Red Cross Organization (ARCO):**

Bank accounts shall be opened for ARCO upon fulfilling the following conditions and procedures:

1. Obtain a request to open the account from the Secretary-General or Vice Secretary-General of ARCO, office or program in Saudi Arabia.
2. A copy of ARCO Saudi Headquarters Agreement (permission).
3. Signature shall be joint.
4. Copies of the IDs of the persons authorized to manage the account, in addition to the ID of the Chairman or Vice-Chairman of ARCO, office or program according to the request submitted.
5. Approval of the CEO/general director and the manager of compliance department to open the account.

6. SAMA must be informed when the account is opened.
7. OIC may transfer money related to its programs or projects to accounts outside Saudi Arabia.

- **Other international multilateral organizations and funds:**

Bank accounts shall be opened according to the following conditions for international multilateral organizations and funds of a political, developmental or service nature, such as the United Nations, the Islamic World Conference, the World Bank and its affiliates, the International Monetary Fund and its affiliates, the Gulf Cooperation Council, the Arab League and Arab satellite broadcasters:

1. Obtain a request to open the account from the Chairman, Deputy or Vice-Chairman.
2. A copy of ARCO Saudi Headquarters Agreement (permission).
3. Signature shall be joint.
4. Copies of the IDs of the organization/fund Chairman, Deputy or Vice-Chairman according to the request submitted.

- **Personal accounts of staff of such organizations:**

The bank shall not require SAMA approval for opening accounts for the permanent staff of such organizations as the conditions and procedures stated in Rule (200-1) shall be applicable. However, conditions stated in Rule (300-1-6) shall be applicable to diplomats.

300.1.6.6 Bank accounts of relief committees and campaigns:

Bank accounts shall be opened for relief committees and campaigns according to the following controls:

1. Issuance of approval or permission of His Majesty the King to establish such committee or allow the relief campaign to raise money.
2. Approval of SAMA to open one main account under the name of the committee or campaign after determining the persons authorized to manage the account and providing their personal data and copies of their IDs and specimen signatures.
3. Authorized persons in the committee or campaign may request to open sub-accounts linked to the main account.
4. Consolidate the accounts of each committee or campaign at the bank in a one main account. Operational sub-accounts may be opened under the main account.
5. Deposit in such accounts may be accepted only in cash or by checks or local transfers.
6. Disbursement from the main account shall be limited only to checks issued to the first beneficiary inside Saudi Arabia.
7. ATM or credit cards shall not be issued for such accounts.
8. Money transfer to accounts outside Saudi Arabia shall not be carried out unless SAMA prior approval is obtained.

9. Withdrawals or transfers from sub-accounts shall not be made, except to the main account.
10. Such accounts shall only be operated upon joint signatures of two authorized persons after the provision of personal data and copies of their IDs and signatures.

300.1.6.7 Bank accounts of committees of friendship and foreign official relationships of Saudi Arabia:

Bank accounts shall be opened for such committees according the following controls:

1. An official directive from the Minister of Foreign Affairs approving the establishment of the committee.
2. A direction from SAMA to the bank, stating the name and purpose of the account and the names of persons authorized to manage the account.
3. Copies of the IDs of the authorized persons or a letter from the Ministry of Foreign Affairs containing their personal data.

300.1.6.8 Economic and technical liaison offices in Saudi Arabia:

Bank accounts shall be opened for foreign economic and technical liaison offices and their branches licensed by the Ministry of Investment in Saudi Arabia upon meeting and providing the following conditions and documents:

1. A request from the director of the office explaining the purpose of the account.
2. A copy of the license issued for the office by the Ministry of Investment.
3. Signatures of the persons authorized to manage the account and copies of their IDs.
4. The account name shall be (the economic/ technical liaison office of.....) and shall be linked to the validity of the license and renewable by a letter for extension or renewal issued by the Ministry of Investment.
5. The account shall be managed by Saudis who work at the office. If the account is managed by non-Saudis, they must be residing in Saudi Arabia under valid residence permits (Iqama).
6. The account shall be used only for the purposes specified in the license. Such offices shall not open accounts for or on behalf of other entities, such as companies or charities.
7. The persons authorized to manage the account shall only be replaced by the approval of the embassy of the office country and the approval of the Ministry of Investment.
8. Approval of the manager of compliance department for opening the account shall be sought.
9. SAMA must be informed when the account is opened.

300.1.7 Bank accounts for liquidation and financial restructuring:

The bank may open bank accounts for liquidation, for depositing the proceeds of the sale of the bankruptcy assets covering the debtor's debt in case of a financial restructuring under the Bankruptcy Law, or for liquidation under the Companies Law. The following conditions and documents shall be met and provided:

I. Commencement of any liquidation procedures under the provisions of Bankruptcy Law

1. The bank shall receive the court order that includes the following:
 - Commencing any liquidation or administrative liquidation procedures against a natural or juristic person.
 - Appointing one or more bankruptcy officeholder and specifying their names and powers, or forming a bankruptcy committee to manage the administrative liquidation procedures.
2. The bank shall receive a request to open the account from the liquidation officeholder or the representative of the bankruptcy committee, as the case may be, stating the purpose of the account.
3. The name of the account shall be (name of the natural or juristic person under liquidation... – Liquidation Account).
4. The bank shall receive copies of the commercial register and memorandum of association and its annexes for the juristic person under liquidation, and a copy of the national ID or Iqama for the natural person under liquidation.
5. The bank shall receive copies of the national ID and commercial register or license of the liquidation officeholder. In case of administrative liquidation, a letter shall be obtained from the bankruptcy committee that includes the data of the person authorized to manage the account and a copy of his/her national ID.
6. The account shall be operated by the liquidation officeholder or the representative of the bankruptcy committee, as the case may be, in accordance with the court order to commence any liquidation procedure.
7. Checkbooks may be issued for such accounts at the request of the liquidation officeholder or the representative of the bankruptcy committee, as the case may be. ATM cards and/or credit cards shall not be issued for such accounts unless the court order to commence the procedure otherwise provides.
8. The bank, the liquidation officeholder or the representative of the bankruptcy committee, as the case may be, must confirm that the IDs and documents are true copies of the originals.
9. Account validity:
 - a. Liquidation procedure: The account shall be valid until a court order to complete the procedure is issued. The account shall be closed by a letter

from the liquidation officeholder based on the court order to complete the liquidation procedure.

- b. Administrative liquidation procedure: The account shall continue to be valid according to the period stipulated in the Bankruptcy Law. Renewal shall be effected after the end of this period by a letter from the bankruptcy committee based on a court order, stating that the procedure is not completed and the period needed for completion. The account shall be closed upon the completion of the administrative liquidation procedure by a letter from the bankruptcy committee, stating that the committee has issued a decision to complete the procedure.

II. Liquidation for the termination reasons stated in Article 16 of Companies Law

1. The court order to liquidate a company shall be obtained. In case of a voluntary liquidation by partners, the decision issued by the partners or general assembly of the company to approve liquidation shall be obtained.
2. A request from the liquidator to open a bank account shall be obtained.
3. The liquidator (name and restrictions on powers) shall be appointed by a court order or decision of the company's partners or general assembly.
4. The bank shall receive copies of the commercial register and memorandum of association and its annexes of the company under liquidation.
5. The bank shall receive copies of the IDs of the owners of the company under liquidation, whose names are mentioned in the memorandum of association and its annexes. Listed joint-stock companies are excluded from this requirement.
6. The bank shall receive copies of liquidator's national ID and the commercial register or license.
7. The name of the account shall be (name of company under liquidation... – Liquidation Account).
8. The account shall be operated by the liquidator or as stated in the company liquidation decision.
9. Checkbooks may be issued for such accounts at the request of the liquidator. ATM cards and/or credit cards shall not be issued unless the company liquidation decision states otherwise.
10. The bank and the liquidator shall confirm that the IDs and documents are true copies of the originals.
11. The validity period of the account shall be as set forth in the court liquidation order. In case of voluntary liquidation, such period shall not exceed a maximum period of five years. Renewal shall be effected by a letter from the liquidator based on a court order, stating that liquidation procedure has not been completed and the period needed for completion.
12. The account shall be closed upon completion of liquidation procedure by a letter from the liquidator, to which a statement confirming the approval of the entity appointing the liquidator on the liquidation completion report is attached.

III. Accounts for proceeds from the sale of the bankruptcy assets covering the debtor's debt in case of financial restructuring

1. The bank shall receive the court order that includes the following:
 - The commencement of the financial restructuring procedure "the procedure" for the natural or juristic person "the debtor".
 - The appointment of a financial restructuring officeholder "the officeholder".
2. The bank shall receive a request to open the account from the officeholder, stating the purpose of the account "Depositing the proceeds of selling the bankruptcy assets covering the debtor's debt for which the procedure is commenced" and the validity period of the account. The account shall be closed based on the court order to complete the procedure.
3. The bank shall obtain a copy of and verify the national ID of the officeholder.
4. The name of the account shall be "Account of proceeds from sale of bankruptcy assets covering the debt of (name of the debtor) subject to financial restructuring".
5. The account shall be operated by the officeholder specified in the court order in accordance with the provisions of Article 82 of the Bankruptcy Law. Checkbooks may be issued for such accounts at the request of the officeholder. ATM cards and/or credit cards shall not be issued for such accounts.
6. The bank shall receive an undertaking from the officeholder to notify the bank once a court order to dismiss him/her or accept his/her resignation request is issued. The bank must enable the new officeholder to manage the account in accordance with the provisions of this clause after receiving the court order appointing him/her. The bank must also obtain a copy of and verify the national ID of the new officeholder.

300.2 Non resident juristic persons:

300.2.1 Non-banking GCC companies not residing in Saudi Arabia:

300.2.1.1 Current accounts and deposits for business and credit purposes:

Bank accounts shall be opened for GCC companies for business and credit purposes according to the following conditions and requirements:

1. A copy of the license/commercial register issued by the government authority in the GCC country of residence.
2. Submitting a request to open a bank account stating the business purpose of the account which should conform to the purposes of the company according to the memorandum of association and license.

3. Verifying the national ID(s) of the owner(s) of the GCC establishment (excluding listed joint stock companies).
4. The memorandum of association and its annexes which clearly indicate the composition of both the capital and the establishment's management and that the ownership of GCC citizens (natural or juristic) exceeds 50% of the company's capital.
5. Verifying the IDs of the members of the board of directors, provided that the majority of members shall be GCC citizens or from GCC establishments.
6. Copies of IDs of the authorized managers and their nationalities.
7. A copy of the authorization issued by the board of directors authorizing persons to manage the bank account unless specified in the memorandum of association.
8. The person authorized to manage the bank account shall be a GCC citizen. If the purpose of the account is to receive facilities from a bank licensed to operate in Saudi Arabia, the person authorized may be a non-GCC individual working in the company and residing in the company's country.
9. Approval of the Saudi embassy in the company's GCC country for all the above requirements.
10. The above documents shall be completed by the bank's employees directly by interviewing the clients personally (authorized persons) or by a national GCC correspondent bank residing in the country of the company. The correspondent bank shall verify that copies provided for all the required documents, even documents certified by the Saudi embassy, are true copies of the original documents. Deposit, withdrawal and transfer shall be carried out by the correspondent bank. Documents may be completed by a correspondent bank residing in the GCC country of the company that is one of the Saudi bank partners in capital and technical management or by the branches of Saudi banks in the GCC country. The final responsibility for the customer data shall rest with the bank operating in Saudi Arabia.
11. Once the above documents are provided and the requirements satisfied, the bank shall apply the KYC principle.
12. Approval of the CEO/general director and the manager of compliance department to open the account.
13. The permission to open accounts includes all GCC companies and those carrying out commercial, industrial, service, agricultural and real estate businesses.
14. Banks, money changers (other than correspondent accounts), investment companies, financial institutions, independent or affiliated investment funds, insurance companies, sole proprietorships and licensed shops are prohibited from opening bank accounts.

300.2.1.2 Bank accounts of GCC juristic persons for the purpose of trading in securities listed in the Saudi Stock Exchange:

Bank accounts may be opened for these juristic persons after carrying out and providing the following:

- An application for opening a bank account shall be submitted, specifying that it is for the purpose of investment in joint-stock companies shares or securities. The bank shall ascertain that the investment purpose conforms with the company's objectives as specified in its memorandum of association and license. It shall also ensure that the company's memorandum of association and articles of association are free of any restrictions that might prevent or limit the company's ownership of shares of joint-stock companies.

a. GCC companies:

1. A copy of the license / commercial register issued by a competent government authority in the GCC country of residence and attested as a true copy of the original.
2. The company's articles of association or memorandum of association, or the decision issued by a shareholders' association or the company partners, must provide that the company is allowed to invest in securities.
3. Real beneficiaries holding ultimate control shall be identified and verified (as a minimum, a natural owner holding 25% as specified in the company's memorandum of association and its annexes or according to the available data).
4. A copy of the company's memorandum of association and its annexes clearly showing the company's capital structure and management and that the share of GCC citizens (natural and juristic) shall exceed 50% of the company capital.
5. Verifying the identity of board members.
6. Copies of IDs of the authorized managers and their nationalities.
7. A copy of the authorization issued by the company's board of directors empowering the persons concerned to manage accounts and investment portfolios, unless such authorization is included in the company's memorandum of association.

b. GCC investment institution:

Documents of establishment which prove that the institution is owned by the government, including its memorandum of association, decision to form its board of directors, names of those authorized to manage the accounts and copies of their ID cards.

c. Pension and social insurance organizations:

Documents pertaining to the establishment of these organizations, board formation decision, names of those authorized to manage the accounts and their authorization decision as well as copies of their IDs.

d. Affiliated investment funds:

1. A copy of the fund's or the managing fund's articles of association or memorandum of association and any amendments thereto.
 2. Documents relating to the license to establish the fund, received either from a capital market authority or a central bank in a GCC Country.
 3. Names of the board members responsible for managing the fund and its policy.
 4. The resolution nominating those empowered to operate the fund and copies of their IDs.
 5. A copy of the fund's or the managing fund's memorandum of association and its annexes which clearly show the structure of its capital and its management and that the share of GCC citizens (natural or juristic) exceeds 50%.
- The documents mentioned in a, b, c and d shall be received by directly meeting the customers (authorized persons) in person or through a GCC agent.
 - The AML/CFT form shall be completed by a GCC agent. However, when meeting customers (authorized persons) in person, in the case of a GCC company and an investment fund only, such form shall be completed by these two parties themselves as applicable.
 - The bank shall apply the KYC principle and exercise due diligence.
 - The bank shall obtain a declaration from a GCC agent in which the agent undertakes to provide the bank or the supervisory authorities in Saudi Arabia with any information about customer investors at any time upon request. This is in the case that the bank is dealing with a GCC customer through a GCC agent.

300.2.2 Non-resident, non-banking (non-GCC) companies and businesses with no contracts or projects in Saudi Arabia:

Banks are not permitted to open any account for such companies and businesses, except for the intermediary accounts allowed under Rules (400.1) and (400.2). An exception is companies and institutions which have SAMA's approval to obtain facilities, finance or loans from banks operating in Saudi Arabia according to the following conditions and controls:

1. Providing copies of the following documents:
 - a. License/commercial register issued by the government authority in the country of residence.
 - b. Memorandum of association and its annexes, clearly showing the structure of capital and company management.
 - c. Authorization issued by the company's board for persons to handle credit processes and manage bank accounts, unless this is specified in the memorandum of association.
2. Providing a list of names and copies of the identities of board members and authorized managers showing their nationalities.
3. Determining the (natural) real beneficiary of ownership.

4. Verifying the ownership of any politically exposed person, if any, and verifying its source of funds.
5. Opening an intermediary account with the bank for the purpose intended, named (..... Company Loan Account).
6. The intermediary account shall be managed by officers from the executive level in the bank.
7. The account shall not provide any kind of services (checks, ATM cards, etc.)
8. Requests of a customer who obtains a finance loan (borrower) to withdraw from the account shall be made through any of the following:
 - A SWIFT message from the customer through the correspondent bank which the customer deals with in its home country.
 - Written instructions signed by two authorized persons in the company obtaining the finance, whose names are included in the finance request.
9. Repayment is made through remittances from the borrower's country or from banks in the Kingdom by a resident customer specified in the loan agreement. Cash deposits, checks and transfers from domestic accounts with the same bank are not permitted.

300.2.3 Non-resident and non-banking companies and businesses with contracts or projects in Saudi Arabia:

When a non-resident business or company has a contract or a project in Saudi Arabia, it may have accounts with a bank in Saudi Arabia for the duration of the project or the contract according to the following conditions:

1. Obtaining permission from the Ministry of Commerce and/or a provisional license from the Ministry of Investment and approval from the company's head office. This approval must be certified by the Saudi embassy in the company's country of origin.
 2. A copy of company's memorandum of association duly attested by the Saudi embassy in the company's home country.
 3. A recommendation from a bank rated by an approved rating agency with which it deals in the country of origin.
 4. A copy of the authorization from the company's head office certified by the Saudi embassy, nominating the persons authorized in Saudi Arabia to sign on behalf of the company for all financial transactions (including opening and operating accounts and checks), along with copies of their Iqamas.
 5. Approval of the CEO/general director and the manager of compliance department to open the account.
- Banks must close all such accounts upon expiry of the contract. In order to manage post-project receivables and payables, including zakat and income tax payments, special accounts can be maintained specifically for this purpose until completion. After that, such accounts must be closed according to the following:
1. Considering such account as a trust account under the control of the operations manager at the bank's head office only.
 2. Obtaining a letter from the company's head office, duly attested by the Saudi embassy in its home country, identifying the authorized signatories to sign for

- the trust account after completion of the company's business and specifying the method for transferring the remaining amounts and paying zakat or income tax.
3. Limiting deposits in such account to the amounts payable to the company by other parties such as the Ministry of Finance (government checks) or a private entity if the contract is made with a private or semi-government business sector.
4. Classifying this account as of high risk.

300.2.4 Non-resident and non-banking companies and businesses leasing spaces in deposit areas in Saudi Arabia:

Banks may open accounts for companies and institutions licensed to sell and re-export commodities in deposit areas at local ports in Saudi Arabia, whether leasing was directly through contracts with the Saudi Ports Authority or through concession. This shall be for a period equal to the duration of the lease contract and according to the following requirements:

1. A copy of the lease contract attested by the Chamber of Commerce and Industry and the port management.
2. A copy of the lessee's commercial register issued by the country of origin and attested by the Saudi embassy in addition to the full address of the entity.
3. A letter from a bank in the lessee's country of origin.
4. The persons authorized to manage the entity's account must be Saudis or non-Saudis with valid Iqamas.
5. The purpose of the account must be specified through a letter from the lessee to the bank.
6. The account must be closed by the bank upon expiry of the lease period if a renewal notification is not received.

300.2.5 Non-resident commercial banks (including GCC banks):

Correspondent accounts may be opened for non-resident commercial banks (including GCC banks), including correspondent accounts for central banks, in accordance with the following conditions:

1. Approval of the CEO/general director and the manager of compliance department to open the account.
2. SAMA must be informed when the account is opened.
3. Obtaining license documents (except for situations where the correspondent is the central bank itself) issued by the competent foreign licensing authority of the foreign correspondent bank, such as the central bank or the banking control commission in the country of origin.
4. Banks should refuse to enter into or continue a banking relationship with a correspondent bank in a country where it has no physical presence and which is not affiliated with a regulated financial group (e.g. shell banks).
5. Banks should select or approve correspondent banks whose countries apply strong measures to identify customers and cooperate in combating money laundering. These correspondent banks should be under the control of

competent authorities. Moreover, it is possible to have an easy access to information related to such banks' management, main line of business, locations, reputation and the level of control applied by their regulators.

6. Banks shall obtain a completed AML/CFT form from each correspondent bank, stating that such bank is committed to the AML/CFT policies and procedures regarding relations with new banks as well as existing relations. Banks shall also access the correspondent bank's internal controls to combat these crimes and ensure their adequacy and effectiveness and that the correspondent bank does not allow shell banks to use its accounts.
7. Banks should ensure, through publicly available information and research (such as media), that the correspondent banks, which a bank plans to deal with or continue to deal with, are not subject to any investigation on money laundering or terrorist financing, involved in cases brought against them in this regard, or subject to any legal action.
8. Banks are not allowed to start new relations with any correspondent bank or open a correspondent account without the approval of their senior management.
9. Banks should ensure that operating these accounts is restricted to dealings among correspondent banks only. Such accounts shall not be used or treated as current accounts and no check books should be issued for them. Additionally, they may not be used for cash depositing or by a third party to conduct activities for its own account.

300.2.6 International investment companies and mutual funds and other non-resident financial institutions (including GCC institutions):

Banks may not open any bank account for foreign investment companies, mutual funds or financial institutions, including GCC investment companies and brokers who illegally sell their products in Saudi Arabia and raise funds in Saudi riyals and other foreign currencies. Saudi banks may not facilitate the business of such entities in any way. An exception to this is the cases and categories permitted by the CMA, in which investment in the shares of Saudi joint-stock companies is allowed.

300.2.7 Non-resident insurance companies and money changers:

Saudi banks may not open bank accounts for such juristic entities except in the following cases after obtaining approval of the CEO/general director and the manager of compliance department to open the account and informing SAMA when opening the account:

- **A non-resident insurance company with an agreement with a Saudi bank to offer insurance products:**

Such company may only open an escrow account in Saudi riyal and other foreign currencies with the partner bank to facilitate its business under the agreement.

- **A non-resident money changer:**

It may only open a correspondent account after providing the documents related to practicing (banking activities) currency exchange activities as specified in Rule (300.2.5).

300.2.8 Payment card companies not residing in Saudi Arabia and not GCC affiliated:

Banks are not permitted to open accounts for such companies. However, after obtaining approval of the CEO/general director and the manager of compliance department to open a bank account and informing SAMA when opening such account, the bank may hold intermediary accounts in Saudi riyals for these companies to enable them to pay the value of customer purchases to the merchants in Saudi Arabia. Banks should also obtain authenticated licenses or registration documents from these companies in order to be able to identify them.

400. Rules for Opening Bank Accounts for Resident and Non-Resident Foreign Investors Not Covered by the Foreign Investment Law:

400.1 Rules for opening bank accounts for the purpose of linking investment deposits only or linking investment deposits for issuing letters of guarantee to non-resident juristic persons:

Banks may open accounts for non-resident juristic persons (for instance, sovereign wealth funds, mutual funds, cash funds, investment companies, and the like) for the purpose of linking investment deposits only or linking investment deposits for issuing letters of guarantee in banks operating in Saudi Arabia. Banks shall take into consideration the provisions of Article (11) of the Anti-Money Laundering Law and Article (66) of the Law of Terrorism Crimes and Financing. Non-resident foreign investors' documents shall be obtained by the correspondent banks outside Saudi Arabia. The correspondent bank's verification of all documents is required in addition to identifying the customer's account number held by the bank. This should be subject to the following conditions:

1. Obtaining copies of the following documents:
 - a. License\commercial register issued by the competent authority in the country of origin.
 - b. Memorandum of association and its annexes or the founding document in the case of sovereign wealth funds and the like, clearly showing the structure of capital and management.
 - c. The authorization issued by the board for the persons authorized to open and operate the bank account, unless this is specified in the memorandum of association.
2. Obtaining a list of names and copies of the identities of board members and authorized managers showing their nationalities.
3. Identifying and assessing ML/TF risks, applying preventive measures, and exercising due diligence when handling such accounts.

4. Opening an intermediary account with the bank for the purpose intended, named (investment deposit account).
5. The account shall not allow any kind of services (checks, ATM cards, etc.).
6. The customer's request to break the deposit or issue a bank guarantee shall be made through any of the following:
 - a. A SWIFT message from the customer through the correspondent bank which the customer deals with in its home country.
 - b. Written instructions signed by two authorized persons in the non-resident foreign company, whose names are included in the deposit request.
 - c. The beneficiary shall be the same juristic person.
7. Cash deposits, checks and transfers from domestic accounts with the same bank are not permitted.
8. The bank shall confirm that all IDs and documents are true copies of the originals, and documents issued outside Saudi Arabia shall be verified by relevant authorities, the Saudi Embassy in the relevant country and the Ministry of Foreign Affairs in Saudi Arabia.
9. Obtaining approval of the CEO and the manager of compliance department to open the account.
10. SAMA must be informed when the account is opened.
11. The account must only be used for purposes of deposits, and it is not allowed to be used to carry out any other transactions.

400.2 Rules for opening intermediary investment accounts:

- A bank offering among its investment products and services pooled accounts managed by professional intermediaries or lawyers (such as mutual funds, cash funds, deposit funds, etc.) shall obtain from the intermediary ID documents of beneficiaries of the account where there are sub-accounts for each real beneficiary. The bank shall also ensure that the intermediary is subject to the same regulatory requirements applicable to banks pertaining to AML/CFT and KYC principle.
- Banks must obtain copies of the intermediary's licenses to practice business attested by the correspondent bank or the Saudi Embassy.
- Approval of the CEO/general director and the manager of compliance department to open the account.
- SAMA must be informed when the account is opened.

400.3 Rules for opening bank accounts for juristic persons (licensed companies, institutions and shops) owned by foreign residents permitted to practice business but not included in the Foreign Investment Law:

Banks may open bank accounts for this category after obtaining the following:

1. A copy of the commercial register issued by the Ministry of Commerce.
2. A copy of the license if it is the only requirement or if it is required along with the commercial register.
3. A copy of the memorandum of association and its annexes (if any).

4. A copy of the business owner's Iqama or national ID card (for GCC citizens). The information (name, ID number and expiry date) contained in the commercial register and/or license provided by a non-Saudi merchant must be verified.
5. A list of owners as mentioned in the memorandum of association (if any) as well as copies of their IDs.
6. Non-Saudi owner of an entity is not allowed to authorize others (Saudis or non-Saudis) to manage the accounts of the entity.

400.4 Rules for opening bank accounts for foreign financial institutions qualified to invest in securities listed in the Saudi Stock Exchange:

Banks may open bank accounts for this category after the following is met:

1. An application is submitted by a person authorized by CMA or a qualified foreign investor in accordance with the Rules for Qualified Foreign Financial Institutions Investment in Listed Securities issued by CMA, in which it is specified that the account is for investment in the securities listed in the Saudi Stock Exchange.
2. Obtaining a copy of the foreign investor's license or commercial register issued by a competent authority in the state of origin, where applicable.
3. Obtaining a copy of the foreign investor's business license to practice the activity in the country of origin issued by a supervising body (CMA or SAMA counterpart), where applicable.
4. Obtaining a copy of the articles of association and its annexes and/or memorandum of association and its annexes, where applicable.
5. Real beneficiaries holding ultimate control shall be identified and verified (as a minimum, a natural owner holding 25% as specified in the memorandum of association and its annexes or according to the available data).
6. Identifying the control and ownership structure.
7. Obtaining a list of names and copies of ID cards of the legal entity managers and the persons authorized to sign on behalf of the foreign investor regarding account transactions.
8. Obtaining an authorization from the foreign investor's board specifying the persons authorized to sign on his/her behalf regarding account transactions, where applicable.
9. Completing the KYC principle and AML/CFT form (prepared by SAMA).
10. Obtaining a declaration from the foreign investor and/or authorized person to provide the Saudi supervisory authorities with any information at any time upon request, in accordance with relevant laws and regulations.
11. A copy of the notice issued by the person authorized to confirm acceptance of the investor as a qualified customer.
12. Approval of the bank's senior management to open the account for the foreign investor.
13. The account shall not provide any kind of services (checks, ATM cards, etc.).
14. Cash withdrawals and deposits shall not be accepted.
15. Banks may open accounts only for licensed foreign investors or foreign founders (where applicable) whose countries apply strong measures to identify customers and cooperate in combating money laundering and terrorist financing. Amounts

transferred to accounts in Saudi Arabia's banks must come from a foreign investor's account in a country applying such measures (to be specified in the account opening agreement if possible) and be transferred again to the same account. Applications submitted by foreign investors whose countries never (or insufficiently) apply the FATF Recommendations, or some decisions have been issued against them by the Security Council, shall not be accepted.

500. Rules for Opening Bank Accounts for Government Entities:

500.1 Rules for opening bank accounts for ministries and Saudi government entities:

500.1.1 Ministries and government entities listed in Appendix (A) and the like:

Banks may open Saudi riyal accounts for government entities subject to the following:

1. The government entity shall submit an account opening application to the Ministry of Finance (the Deputyship for Financial and Accounts Affairs). In order to complete the opening application process or activate the account, a list of existing bank accounts with SAMA and other banks must be attached so as to avoid replication of accounts with the same purpose. After considering the application, the Ministry of Finance shall inform SAMA about opening the account, and the government entity shall provide the bank with the names, specimen signatures and ID copies of the authorized persons.
2. Name of the beneficiary shall be included in the payment order related to deposits to the account (Due to the order of the bank, Account No...).
3. The bank account shall be in the name of the government entity, not a natural person or his/her position or job, and its purpose shall be specified in order to differentiate it from other accounts.
4. If a government entity wishes to change its account name, it shall submit an application in this regard to the Ministry of Finance (the Deputyship for Financial and Accounts Affairs) to make a decision of approval or disapproval and then notify SAMA of such decision to be communicated to the bank.
5. A checkbook shall be requested by an official letter signed by those authorized to withdraw funds.
6. Authorization to deposit and withdraw amounts shall be issued by the concerned party. Authorized persons may not delegate their power to others unless authorized to do so by the concerned party. Official letters addressed to the bank by authorized persons to issue bank checks or make internal or external transfers in the official entity's forms or the approved bank forms may be accepted, provided that such letters are jointly signed by the authorized persons only.
7. Withdrawal from the account shall be as per dual control, and in the case of withdrawal by checks, the check shall be jointly signed by the authorized persons.
8. E-services provided to government entities must include the following: Viewing and extracting of account statements, internal and external transfers, and payment of bills.

9. A government entity may not open any account in a foreign currency unless this is included in an approval given by the Ministry of Finance and communicated to the bank by SAMA.
10. Banks may not extend to any government entity any loans or facilities or allow any overdraft of more than the amounts drawn under payment orders upon the Ministry of Finance, whether for salaries or for any other purposes, except on approval of the Council of Ministers.
11. Government accounts shall not be transferred from one bank to another unless the approval of the Ministry of Finance is obtained therefor and communicated to the bank through SAMA. In addition, there shall be cogent reasons supporting the transfer. If the purpose of the account is fulfilled and the account is no longer needed, the Deputyship for Financial and Accounts Affairs at the Ministry of Finance shall be informed in order to request SAMA to close the account.
12. Signatories of the accounts of Saudi government entities and agencies shall be Saudis only. No authorization shall be granted to no-Saudis in this regard.

500.1.2 Rules for opening bank accounts for government entities to receive donations for their own account:

The bank may open Saudi Riyal accounts for government entities to receive gifts and donations for their own account. The following requirements shall be met:

1. The request to open a bank account shall be submitted by the concerned minister or his/her delegate. Such request shall indicate that the purpose of opening the account is to receive donations for the government entity.
2. Two signatories shall be determined by the concerned minister, in addition to the financial controller in the government entity. The bank shall obtain IDs copies and specimen signatures of such authorized persons. Those copies shall be attested as true copies of the original by both the government entity and the bank. Changing the signatories or financial controller requires sending a letter from the concerned minister to the bank where the account is opened.
3. Deposit in the account shall be by checks only. The name of the payee shall be the government entity, and such checks shall be presented for deposit through the signatories.
4. A checkbook shall be requested by an official letter signed by those authorized to withdraw funds.
5. Withdrawal from the account shall be made only by checks signed jointly by the authorized signatories and the financial controller.

500.1.2.1 Bank accounts of government entities, designated for activities and services financed through sources other than the state budget:

The bank may open separate accounts for academic and specialized government entities (e.g. universities, institutes and research centers) for the purposes of research works, studies, consultation, specialized services and the like that are funded by beneficiaries (not through the state budget). The following requirements shall be met:

1. The bank shall receive a request from the rector/head of the entity (university, institute, scientific center, and the like) to open an account; such request shall indicate that the account is designated for an activity to be funded through sources other than the state budget.
2. The government entity shall specify the purpose of the account and, if possible, the reasons supporting being contracted with or assigned to carry out advisory or technical tasks.
3. The name of the account shall reflect its purpose.
4. Signatories shall be determined by the government entity's rector/head. The bank shall obtain IDs copies and specimen signatures of such authorized persons. Those copies shall be attested as true copies of the original
5. by both the government entity and the bank. Changing the signatories requires sending a letter from the entity's rector/head to the bank where the account is opened.
6. The bank shall obtain a copy of the government entity's regulations governing the financial affairs of the financed activity (university, institute ...).
7. The account shall be opened for the duration of the project or for a period of one year where the duration is not defined. The validity of the account may be extended for another period/additional periods by a letter from the rector/head of the entity to the bank, requesting an extension and including supporting reasons.

500.1.3 Bank accounts to invest the funds of persons covered by the Law of the General Commission for the Guardianship of Trust Funds for Minors and their Counterparts (Wilayah):

Bank accounts for these entities shall be opened after fulfilling the following requirements:

1. The bank shall receive a letter from SAMA, requesting the opening of a specific bank account for investing funds of those covered under Wilayah's law (unknown persons, minors, mentally ill persons, etc).
2. The concerned division at Wilayah shall provide the bank with the names of persons authorized to operate the account under a joint signature, copies of their IDs and their specimen signatures. Further, the bank shall also ensure that the account opening agreement is completed and signed by such persons.

500.2 Bank accounts of countries and non-Saudi and non-resident government entities:

500.2.1 GCC countries and GCC government and quasi-government entities:

The bank may open accounts for GCC government and quasi-government entities. The following requirements shall be met:

1. The bank shall obtain a copy of the ministerial resolution issued by the GCC country, requesting opening of a bank account.

2. The concerned GCC entity shall send a letter to its Saudi counterpart, the Saudi Ministry of Finance or the Saudi Ministry of Foreign Affairs, requesting opening of a bank account.
3. The bank shall obtain copies of the IDs of persons authorized to sign jointly for the account.
4. The bank shall obtain the signatories' specimen signatures.
5. The bank shall receive SAMA's approval for opening the bank account.

500.2.2 Non-GCC countries and non-GCC, non-resident government and quasi-government entities, except Hajj missions:

Banks operating in Saudi Arabia shall not open bank accounts for non-GCC countries and non-GCC, non-resident government and quasi-government entities, except Hajj missions, unless official approval of the Minister of Foreign Affairs is granted and communicated to the bank through SAMA. Such approval shall indicate the name of the account, sources of funds, names of signatories and how to change them. Changing the signatories requires the approval of the Ministry of Foreign Affairs unless the approval for opening the account as communicated through SAMA has clearly allowed changing such signatories by a specific person(s) or entity. The bank shall classify such accounts as of high risk.

600. Clearance Bank Accounts:

The bank may open clearance accounts, which are designated for those wishing to discharge their liability toward public funds. The following requirements shall be met:

1. The account shall be named "Clearance Account for (name of the concerned entity shall be specified here)".
2. The account shall be valid for one year only.
3. The account shall be monitored by the bank's compliance officer and shall be classified as of high risk.
4. The bank shall present to SAMA a detailed report of the account at the end of the year.
5. Before operating the account, the bank shall coordinate with the entity requesting such account to provide SAMA with the mechanism that will be used for announcing the account creation.
6. To withdraw funds from the account, the entity shall submit a request thereon to the bank. Such request shall be signed, and one of the signatories shall be the chairman of the entity.
7. The bank shall obtain the necessary documents required for opening such accounts, as per the requirements of the rules for opening bank accounts and subject to the classification of the entity.
8. The bank shall submit to SAMA all the aforementioned documents to receive its approval for opening the account.

Chapter IV. General Rules for Operation of Bank Accounts

1. The bank account shall be operated originally by the account holder or other persons authorized by the account holder and approved by the bank. Where applied, the authorization remains valid until the account holder notifies the bank of its cancellation, it expires (after five years), or the authorized person's ID expires and no renewed ID is presented to the bank. The authorization for operating and cancelling the bank account shall be granted through a power of attorney or an authorization letter prepared at the bank. E-services may be used to verify the authorization.
2. Saudi individuals (whether account holders or authorized to operate the account) are not allowed to operate bank accounts, encash personal checks, make transfers, or carry out any other credit transactions to their order or to the order of a third party unless their valid national IDs are registered in the bank's automated system. The exceptions to this rule are customers of bank branches at airports, who are traveling abroad; in such case, the customer is required to present his/her passport and boarding pass, and the bank branch shall in turn check customer's name against documents submitted.
3. The authorization to operate bank accounts on behalf of juristic entities shall be granted by competent individuals who are permitted to give such authorization. The official approval for such authorization shall be granted by the concerned public or private entity. The approval may come from the board of directors, the partners, the employer, any person designated by the owner (or the person in charge) of the entity, a party determined in the agreement concluded between the bank and the concerned entity, or other parties as per the jurisdiction.
4. Authorization by a Saudi (natural or juristic) person to a non-Saudi or non-GCC individual to manage his/her accounts shall be subject to the following conditions:

- **Natural persons and their sole proprietorships:**

Any authorization granted by a Saudi individual to a non-Saudi or a non-GCC individual to operate his/her personal accounts shall not be accepted by the bank. The only exception is when a Saudi individual authorizes his/her non-Saudi wife/husband, father, mother, son or daughter, provided that the authorized person has a valid Iqama.

- **Companies, factories, joint ventures, international trademark agencies, and other similar institutions:**

*Companies may authorize an expatriate employee who is under their sponsorship and residing in Saudi Arabia to manage their bank accounts. However, such expatriate employee may not be authorized to manage the accounts of another company, whether a subsidiary or sister company.

*Factories and trademark agencies wishing to authorize an expatriate employee working under their sponsorship shall be treated in accordance with their legal status indicated in their licenses/commercial registers issued by the concerned authority. Legal entities licensed as sole proprietorships shall be subject to the provisions of Paragraph (1) of Rule (4) on Natural Persons and their Sole Proprietorships while legal entities licensed as companies shall be subject to the provisions of Paragraph (2) of Rule (4) on Companies.

5. Management of investors' accounts under the Foreign Investment Law shall be subject to the following conditions:
 - The Saudi investing partner may authorize his/her foreign investing partner holding a valid Iqama or any of the non-Saudi expatriate employees working for his/her entity to manage and operate the entity's bank accounts.
 - The foreign investor may authorize a Saudi and/or a non-Saudi expatriate to manage the entity's bank accounts, provided that the non-Saudi expatriate is an employee of that entity and has a valid Iqama.
 - The Saudi investor and his/her foreign partner may authorize any other resident party to manage the entity's bank accounts.
6. The bank shall not accept any authorization given by an expatriate coming for work or investment in Saudi Arabia to others to manage and operate his/her personal accounts, except in the following cases:
 - The expatriate husband and his expatriate wife and vice versa, and their first-degree expatriate relatives.
 - The female expatriate working in Saudi Arabia and her legal escort, provided that the Iqama of the legal escort or any other official document states that he is the legal escort of the female expatriate.
 - The female expatriate and her Saudi husband.
 - The female expatriate and her Saudi father, mother, son or daughter.
 - The male expatriate and his Saudi wife.
 - The male expatriate and his Saudi father, mother, son or daughter.
 - The male or female expatriate and his/her abovementioned relatives should hold valid Iqamas. The bank should record the number of Iqama for each male or female expatriate as an electronic reference number for the expatriate.
7. As for companies, the account will be operational when the company becomes legal.
8. The following banking rules regarding checks shall be observed:
 - The name of the beneficiary must match the name shown on his/her ID.
 - Provisions of the Commercial Papers Law, including those related to payment term, shall be complied with.
 - Crossing out, erasure, or using chemical materials on the check is not permitted.
 - When amendment to a check is needed, the part that needs to be amended shall be crossed out, correction shall be written, and the signature of the drawer shall be placed next to the corrected mistake.

9. Rules for Deposits in Bank Accounts

9.1 Deposits through bank tellers:

The bank should give importance to cash and check deposits equal to that given to cash and check withdrawals. As a minimum requirement, the bank shall obtain full personal information of the depositor and his/her signature. A due consideration should be given to the volume and nature of other information that the bank should collect from depositors. Such information varies according to the type and nature of the deposited funds, deposit volume and recurrence, and the relationship between the depositor and the person/business receiving such deposit. Below are examples of different situations and how the bank should respond:

- When a natural person wants to deposit funds (personally in his/her name or in the name of another natural person) in his/her bank account, another natural person's account or juristic person's account, the bank in this case shall obtain the personal information of the depositor. Such information includes the depositor's full name, address, telephone number, signature, and ID number in accordance with the provisions of Rule (3.1.1) and Rule (3.1.2) of Chapter II herein.
- When a natural person wants to deposit funds in a bank account on behalf of a juristic person (e.g. establishment, company, shop or any other entity) he/she does not own or is not authorized to manage its accounts, the bank shall then obtain the abovementioned information from the depositor in addition to the following:
 - The purpose of the deposit clearly identified in the deposit slip.
 - The name of the principal depositor (the juristic person) and the name and information of the representative (depositing on behalf of the juristic person) as stated above. Such information shall be contained in the deposit slip. The bank shall not limit the deposit slip information to only the names of the company and depositor.
 - A copy of the authorization granted to the depositor (natural person) by the principal depositor (juristic person), not by the beneficiary. The authorization may be attested by the chamber of commerce or made on the bank's special form and the signature contained is certified by the bank. The authorization can also be in a form of a power of attorney issued by a notary public or a notary, permitting such natural person to deposit funds on behalf of the principal depositor (juristic person) in the bank account(s) of other natural or juristic persons. The authorization copy shall be certified by the bank as a true copy of the original and shall be kept in a separate file or attached to the deposit slip in the bank's daily work record.
- Banks shall not continue to use the word "himself/herself" next to the "customer's name" if the depositor is the account holder. In such case, the bank shall write the full name of the depositor and all data contained in the deposit slip. However, the exception to this provision is when the depositor's signature on the deposit slip is the same as that of the account holder, provided that the bank employee shall verify the authenticity of the depositor's signature and certify that he/she is the holder of the account.

9.2 Deposits via cash acceptance machines (CAM) and automated teller machines (ATM):

9.2.1 Deposits through ATMs, using ATM card and personal identification number (PIN) only:

All banks shall comply with the following controls on the acceptance of cash deposits through ATMs:

1. Cash deposits through ATMs shall be accepted only when using an ATM card and the associated PIN or using a credit card. The exceptions to this rule are the payment of utility bills, payment made to government entities (whether by bank customers or others), and other payments approved officially by SAMA.

2. The bank shall comply with the instructions related to amount limits and number of banknotes and coins that can be deposited in one transaction or per day. In addition, the bank shall ensure that the procedures implemented are in line with data and results of customer risk assessment. Moreover, the bank shall adhere to controls and guidelines of the ATM operation manual.
3. ATMs used for deposits must support obtaining information on the source of cash deposited and the purpose of deposit. If envelope-free deposits are to be made, the ATM must be able to detect counterfeit banknotes through checking security features.

9.2.2 Deposits through ATMs, using cash deposit card:

Banks may issue smart cards to be used for cash deposit through the ATMs of the issuing bank. Such cards shall use PIN. The following controls shall be applied:

1. The purpose of deposit shall be identified.
2. The cash deposit cards shall be issued to a selected category of customers (companies and establishments) determined by the bank according to its risk assessment.
3. The business of such customers shall include sales or collections representatives. The bank shall be responsible for obtaining from such customers and checking the necessary documents proving their lines of business. The number of representatives shall be consistent with the entity's business and size.
4. Such accounts shall be subject to constant monitoring by the compliance officer at the bank according to risk assessment. The monitoring process aims to ensure that the deposit transactions agree with the customer's business. Through reports of internal audit and monitoring process, the bank can prevent any suspicious financial transactions.
5. The cash deposit card(s) shall be restricted to a single account. In case of multiple accounts for a company, the bank may, at the request of the customer, issue one cash deposit card or more for each account. The cash deposit card shall be used for its associated account only.
6. The cash deposit card service shall be provided upon an official request from the person authorized to manage the account or from the authorized person in the entity.
7. The cash deposit card shall be issued only to the representatives of the entity upon presenting valid IDs. The entity's representative shall present his/her ID to the bank in person. If he/she is an expatriate, he/she shall be subject to expatriate authorization provisions. If he/she is Saudi, he/she shall present his/her employment card or an employment letter from the entity for which he/she works.
8. The cash deposit card shall be issued in the names of the entity and the representative who will use the card (...Company/representative's name). Personal photo of the representative shall, as possible, be placed on the cash deposit card.

9. The cash deposit card shall be valid for a period identical to the validity period of the ID or the entity's documents, whichever expires first. However, the validity period of the cash deposit card shall not exceed two years.
10. The bank shall obtain from both the entity and the cardholder a written undertaking that the card will be used only by the person to whom it is issued and only for cash deposits, but not for any other banking transactions.
11. Each cash deposit card held by each representative shall have a unique PIN.
12. The cash deposit card shall be used for deposits in the associated current account through the ATMs of the issuing bank only.
13. The cash deposit card shall be subject to the same procedures applied to other cards in terms of technical (in relation to deposit transactions only) and security specifications.
14. The cash deposit card shall not be used for deposits through the bank tellers.
15. The cash deposit card shall be used for direct cash deposit with no need to use sealed envelopes.
16. The cash deposit card and its associated PIN shall be delivered to the representative directly by the bank, and not through the entity.
17. The bank shall set procedures to change the card's PIN periodically pursuant to the nature of the entity, potential risks, and discretion of the departments of compliance and risk management at the bank.
18. The bank shall, based on risk assessment in terms of customer's activity and category, set a maximum limit for daily deposits for each account, taking into consideration the risks associated with carrying large amounts of cash.
19. The bank shall obtain SAMA preliminary approval for providing such product (service).

10. Account closure:

1. If the customer wishes to terminate his/her relationship with the bank, he/she should submit a request to the bank to close his/her account and should return checkbooks, the ATM card and the account information card. If the customer is unable to return them to the bank, the bank shall obtain a liability acknowledgement from the customer. The bank shall cut up the checkbooks and cards in the presence of the customer and return to him/her the account's funds. The bank may decline the customer's request if there are outstanding financial liabilities associated with the account, such as letters of guarantee, letters of credit and discounted bills with financial significance and effects that necessitate the continuation of the account. In this case, the bank shall explain to the customer when he/she will be able to submit an account closing request.
2. If problems related to the verification of the banking relationship occur after opening the account and the problems are not solved or if the relationship with the bank is used for other purposes other than its intended one, the bank shall terminate the banking relationship with the customer and return the account's funds to the source. If the verification problem or the misuse of the banking relationship is related to suspicious transactions carried out

by the customer (such as money laundering, terrorism financing and the like), the bank shall implement the Rules Governing Anti-Money Laundering and Combating Terrorist Financing, including reporting suspicious transactions.

3. If the account is opened, the customer deposits funds into it and then reduces his/her balance to zero, and the account has remained inactive or with zero balance for 4 years, the bank shall then close the account after verifying that it has no related commitments or obligations. Prior to account closure, the bank shall send one month's notice to the customer. Another notice shall be sent to the customer upon account closure. The bank must document and keep all notices sent in the customer's file. Further, the bank shall include terms on bank account closure in the main body of the account opening agreement or add such terms as an attachment appended thereto if it is difficult to modify the account opening agreement.
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Chapter V. Concluding Provisions

1. Any update to the Rules will be published immediately on SAMA's website.
2. These Rules shall supersede the Rules Governing the Opening of Bank Accounts and General Operational Guidelines in Saudi Arabia (4th Update) and any supplementary circulars.
3. The Rules shall supersede any provisions to the contrary.
4. The Rules, and any updates thereto, shall enter into force as of the date of its publication on SAMA's website.

Chapter VI. Appendices

Appendix (A)

Government Entities:

▪ Public Prosecution	▪ Control and Investigation Authority	▪ General Auditing Bureau	▪ Real Estate Development Fund (REDF)
▪ General Authority of Zakat and Tax	▪ King Faisal Specialist Hospital and Research Center	▪ Specialized central councils and committees	▪ Gov. Universities and Colleges
▪ King Abdulaziz City for Science and Technology	▪ National Cybersecurity Authority	▪ Technical and Vocational Training Corporation	▪ Any other similar government entities

Appendix (B)

Legal Entities in Public Sector:

▪ General Organization for Social Insurance (GOSI)	▪ General Commission for the Guardianship of Trust Funds for Minors and their Counterparts (Wilayah)	▪ Non-government universities and scientific institutes registered with the Ministry of Education
▪ Public Investment Fund (PIF)	▪ Saudi Arabian Airlines (Saudia)	▪ Saudi Industrial Development Fund (SIDF)
▪ Public Pension Agency	▪ Saudi Arabian Oil Company (Saudi Aramco)	▪ Any other similar legal entities

Appendix (C)

Explanation of the Combination of the Ten-Digit Computer Number of the Ministry of Interior:

1	2	3	4	5	6	7	8	9	10
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1. Digit number (1) on the left refers to the type of the computer number, and its value is as follows:

- The value is **(1)** for Saudi citizens. When a Saudi citizen is born, he/she is given a computer number (which is the number of his/her national ID). The computer number of an establishment of a Saudi natural person is the number of the owner's ID.
- The value is **(2)** for foreign residents of all nationalities. The computer number for a resident is the same as that of his/her Iqama. Each foreign resident in Saudi Arabia has his/her own unique number regardless of him/her being a family head or a dependent. The computer number of an establishment of a foreign natural person permitted to own businesses is the number of his/her Iqama.
- The value is **(3)** or **(5)** for visitors coming to Saudi Arabia for the purpose of a temporary visit rather than residence, such as those coming for Umrah, on a special or business visit, etc. This value is also used for GCC citizens. The computer number is given to a GCC citizen coming to Saudi Arabia and is used in each visit to Saudi Arabia.
- The value is **(6)** for pilgrims. The number is given to a pilgrim upon his/her arrival in Saudi Arabia to perform Hajj.

-The value is **(7)** for government entities, joint-stock companies, private entities, or any other entities, such as military missions, charities, international schools, sports clubs, or diplomatic bodies, etc.

2. The value from **digit number (2)** to **digit number (9)** is a serial number ranging from **00000000** to **99999999**.

3. Digit number (10) is a "verification" digit. Its value ranges from **(0)** to **(9)** and is derived from the values of the other nine digits. It is used to check the correctness of the computer number. Any entity wishing to receive the formula applied to derive this digit for programming purposes, may contact the National Information Center of the Ministry of Interior..